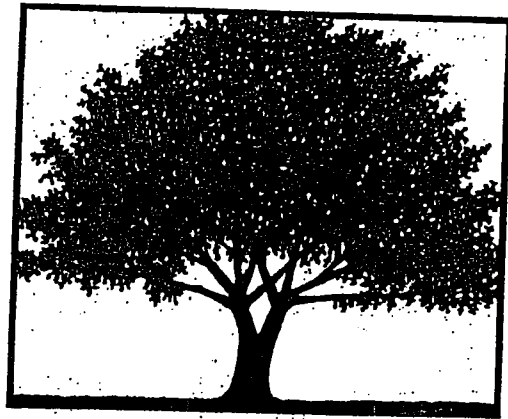




GOLDEN RAINTREE II

Homeowners' Association Documents

HOMEOWNERS' DOCUMENTS

affecting

GOLDEN RAINTREE II

City of Coconut Creek
Broward County, Florida

THIS BROCHURE CONTAINS IMPORTANT DOCUMENTS AFFECTING THE OWNERSHIP OF A RESIDENCE IN GOLDEN RAINTREE II.

ORAL REPRESENTATIONS CANNOT BE RELIED UPON AS CORRECTLY STATING THE REPRESENTATIONS OF THE DEVELOPER. REFER TO THESE DOCUMENTS AND YOUR CONTRACT FOR CORRECT REPRESENTATIONS.

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DECLARATION OF COVENANTS, CONDITIONS AND
RESTRICTIONS OF GOLDEN RAINTREE II

DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS FOR
GOLDEN RAINTREE II

ESTABLISHMENT OF GOLDEN RAINTREE II HOMEOWNERS' ASSOCIATION
AND DECLARATION OF PARTY FACILITIES FOR GOLDEN RAINTREE II

THIS DECLARATION, made this _____ day of _____, 1980
by MINTO BUILDERS (FLORIDA), INC., a Florida corporation, its
corporate successors and assigns, hereinafter called Developer.

W I T N E S S E T H:

WHEREAS, Developer is the owner of the real property described
in Article II of this Declaration and desires to create thereon an
exclusive residential community with driveways, walkways, parking
areas and other common facilities and services for the benefit
of the community to be known as GOLDEN RAINTREE II; and

WHEREAS, Developer desires to provide for the preservation of
the values and amenities in said community, and to create an agency
to which should be delegated and assigned the powers of maintaining
and administering the community properties, administering and en-
forcing the covenants and restrictions and collecting and disburs-
ing the assessments and charges hereinafter created; and

WHEREAS, Developer has incorporated under the Laws of the State
of Florida, as a non-profit corporation, GOLDEN RAINTREE II HOME-
OWNERS' ASSOCIATION, INC., for the purpose of exercising the functions
aforesaid; and

WHEREAS, there will be constructed within GOLDEN RAINTREE II,
single family Living Units connected by common walls and common
roofs; and the Developer desires to set forth the respective rights
and duties of the Owners of Living Units pertaining to the party
walls and party roofs.

NOW THEREFORE, the Developer declares that the real property
described in Article II is and shall be held, transferred, sold,
conveyed and occupied subject to the covenants, restrictions, ease-
ments, charges and liens hereinafter set forth.

ARTICLE I

Definitions

Section 1. The following words when used in this Declaration or any Supplemental Declaration (unless the context shall prohibit) shall have the following meanings:

- (a) "Developer" shall mean and refer to MINTO BUILDERS (FLORIDA), INC., a Florida corporation, its corporate successors and assigns.
- (b) "Association", also known as the "Homeowners' Association", shall mean and refer to the GOLDEN RAINTREE II HOMEOWNERS' ASSOCIATION, INC., a non-profit corporation chartered under the Laws of the State of Florida.
- (c) "The Properties" shall mean and refer to all property which is subject to this Declaration.
- (d) "Common Properties" shall mean and refer to those areas of land, together with any improvements thereon, which are actually deeded or leased to the Association singly or jointly or in common with any other Association and designated in such deed or lease as "Common Property". The term "Common Property" shall also include any personal property acquired by the Association if such property is designated "Common Property" in the bill of sale or instrument transferring it. Any land or personal property which is leased by the Association shall lose its character as "Common Property" upon the expiration of such lease.
- (e) "Lot" shall mean any parcel of land located within The Properties which has been conveyed or is intended for conveyance by the Developer and upon which a Living Unit has been or is intended to be constructed.
- (f) "Living Unit" shall mean and refer to any portion of a building situated upon The Properties designed and intended for use and occupancy as a residence by a single family.
- (g) "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot or Living Unit situated upon The Properties but, notwithstanding any applicable theory of mortgage, shall not mean or refer to the mortgagee unless and until such mortgagee has acquired title pursuant to foreclosure or any proceeding in lieu of foreclosure.

(h) "Member" shall mean and refer to all those Owners who are members of the Association as provided in Article IV, Section 1, hereof.

(i) "Architectural Committee" shall mean and refer to the Architectural Committee described in Article IX of this Declaration.

(j) "Golden Raintree II" shall refer to and be the name of The Properties.

(k) "Township" shall mean all those properties subject to the Master Declaration.

(l) "Master Declaration" shall mean and refer to the Declaration of Covenants, Conditions and Restrictions of The Township recorded in Official Record Book _____, page _____, public records of Broward County, Florida, and any amendments thereto.

(m) "Master Association" shall mean the Master Association referred to in Article VIII.

ARTICLE II

Property Subject to this Declaration

The real property which is, and shall be, held, transferred, sold, conveyed, and occupied subject to this Declaration is located in Broward County, Florida, and is more particularly described as follows:

Tract 5 of TARTAN COCONUT CREEK, PHASE I, according to the Plat thereof recorded in the office of the Clerk of the Circuit Court in and for Broward County, Florida, in Plat Book 103, page 29.

ARTICLE III

Description of Development

The Properties are being developed by the Developer with the construction of nineteen (19) buildings which will contain a total of ninety-four (94) Living Units (Townhomes) sharing party walls and roofs.

The buildings will be numbered A through S and the Living Units will be numbered 501 through 594.

The Developer will construct on The Properties, before the conveyance of one-half (1/2) of the Lots, an outdoor swimming

pool and restroom facilities for the exclusive use of the Owners within Golden Raintree II.

The Members recognize that Tartan Minto Corporation or the Developer may have the balance of The Township area under development for an extended time. Incident to that development, the Members acknowledge that the quiet enjoyment of their Living Units and the Property may be interfered with to some extent by the construction operations on the balance of The Township area. From time to time, Developer has presented to the public certain renderings, plans, and models showing possible future development of The Township area. Developer does not warrant in any way the schemes in these renderings, plans or models or actually how the future improvements in The Township area will be developed. The Members accept that any such renderings, plans or models are primarily schematic and in no way represent a final development plan of The Township area.

Further, the Members release the Developer of any claim that they might have against the Developer for the future development of The Township area, such as, but not limited to such renderings, plans or models. The Members accept and agree that the Developer and Tartan Minto Corporation will have sole right of design, construction, development, and improvements of future properties of The Township area. The Members waive all claims against the Developer for interference with their quiet enjoyment through development of the balance of The Township area, whether the construction operations are performed in the balance of The Township area or in the Common Properties, incident to the construction operation.

ARTICLE IV

Membership and Voting Rights in the Association

Section 1. Membership. Every person or entity who is a record owner of a fee, or undivided fee, interest in any Lot located upon The Properties, shall be a member, provided, however, that any such person or entity who holds such interest merely as a security for the performance of an obligation shall not be a member.

(a) the right of the Developer and of the Association, in accordance with its Articles and By-Laws and with the approval of mortgagees holding two-thirds (2/3) of the institutional mortgages placed upon the Lots, to borrow money for the purpose of improving the Common Properties and in aid thereof to mortgage said properties. In the event of a default upon any such mortgage the lender's rights hereunder shall be limited to a right, after taking possession of such properties, to charge admission and other fees as a condition to continued enjoyment by the members and, if necessary, to open the enjoyment of such properties to a wider public until the mortgage debt is satisfied whereupon the possession of such properties shall be returned to the Association and all rights of the Members hereunder shall be fully restored.

(b) the right of the Association to take such steps as are reasonably necessary to protect the above-described properties against foreclosure; and

(c) the right of the Association, as provided in its Articles and By-Laws, to suspend the enjoyment rights of any Member for any period during which any assessment remains unpaid, and for any period not to exceed thirty (30) days beyond compliance for any infraction of the General Covenants and Restrictions or the Association's published rules and regulations; and

(d) the right of the Association to charge reasonable admission and other fees for the use of the Common Properties; and

(e) the right of the Association to dedicate or transfer all or any part of the Common Properties to any public agency, authority, or utility for such purposes and subject to such conditions as may be agreed to by the Members, provided that no such dedication or transfer, determination as to the purposes or as to the conditions thereof, shall be effective unless an instrument or instruments signed by Members entitled to cast two-thirds of the total votes of the membership and by mortgagees representing two-thirds of the institutional mortgages placed upon the Lots has been recorded, agreeing to such dedication, transfer, purpose or condition, and unless written notice of the proposed agreement and action thereunder is sent to every Member at least ninety (90) days in advance of any action.

Section 3. Easements over Lots.

(a) Developer reserves to the Association an easement over each Lot in the Properties for the purpose of allowing the Association to perform the functions authorized by Article VI, Sections B and D.

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Section 2. Voting Rights. The Association shall have two classes of voting membership:

Class A. Class A members shall be all those owners as defined in Section 1, with the exception of the Developer. Class A members shall be entitled to one vote for each Lot in which they hold the interests required for membership by Section 1. When more than one person holds such interest or interests in any Lot all such persons shall be members, and the vote for such Lot shall be exercised as they among themselves determine, but in no event shall more than one vote be cast with respect to any such Lot.

Class B. Class B members shall be the Developer as long as it owns any Lot in The Properties. The Class B member shall be entitled to a number of votes equal to the total number of Class A votes plus one; provided, that the Class B membership shall cease and become converted to Class A membership on the happening of the following events, whichever occurs earlier:

(a) Two years after the first conveyance of a Living Unit.

(b) Upon voluntary conversion to Class A membership by the Developer.

From and after the happening of these events, whichever occurs earlier, the Class B member shall be deemed to be a Class A member entitled to one vote for each Lot in which it holds the interest required for membership under Section 1.

ARTICLE V

Easements

Section 1. Members' Easements of Enjoyment. Subject to the provisions of Section 2 following, every member shall have a right and easement of enjoyment in and to the Common Properties and such easement shall be appurtenant to and shall pass with the title to every Lot.

Section 2. Extent of Members' Easements. The rights and easements of enjoyment created hereby shall be subject to the following:

Each Owner by accepting a deed to a Lot grants such an easement and license to the Association sufficient to allow the Association to perform authorized maintenance on the Living Unit.

(b) The Owners of the respective Living Units agree that if any portion of a Living Unit or the Common Properties encroaches upon a Lot, a valid easement for the encroachment and its maintenance, as long as it stands, shall and does exist. In the event a Living Unit is partially or totally destroyed and then rebuilt, the Owners agree that encroachments due to construction shall be permitted and that a valid easement for the encroachments and the maintenance thereof shall exist.

(c) Easements are reserved over, through and underneath the Common Properties, Lots and Living Units for present and future utility services, including; but not limited to; easements for water pipes, sanitary sewer pipes, sprinkler pipes, electrical wires, T.V. wires, security wires and street lights. Such easements are reserved to the Developer, Owners and the Association. Easements for ingress and egress are reserved over and through the Common Properties as may be required for Owners, their guests and invitees and to the Developer, its guests and invitees. Easements for ingress and egress are reserved to the Association in, over and underneath Lots and Living Units, their ceilings, floor and walls for the purpose of making repairs to the buildings. Should the intended creation of any easement fail by reason of the fact that at the time of creation there may be no grantee in being having the capacity to take and hold such easement, then any such easement deemed not to be so created shall nevertheless be considered as having been granted directly to the Association for the purpose of allowing the original party or parties to whom such easements were originally granted the benefit of such easement. The Owners designate the Association and/or the Developer as their lawful attorney-in-fact to execute any instruments on their behalf as may be required for the purpose of creating such easement.

ARTICLE VI —

Functions of Association

The Association shall be empowered to provide the following services:

- A. Cleanup, landscaping, landscaping maintenance and other maintenance of the Common Properties.
- B. Painting maintenance of the exterior of the Living Unit.
- C. To improve, or acquire Common Properties and to operate them in accordance with the rules, regulations and standards adopted by the Association from time to time.
- D. To assign the exclusive use of parking spaces to Owners.
- E. Insect and pest control to the extent that it is necessary or desirable in the judgment of the Association to supplement the service provided by the state and local governments.
- F. Taking any and all actions necessary to enforce all covenants, conditions and restrictions affecting The Properties and to perform any of the functions or services delegated to the Association in any covenants, conditions or restrictions applicable to The Properties or in the Articles or By-Laws.
- G. To conduct business of the Association, including but not limited to administrative services such as legal, accounting and financial, and communication services informing members of activities, notices of meetings and other important events.
- H. To purchase general liability and hazard insurance covering improvements and activities on The Properties and all activities of the Association anywhere and in particular to insure the townhouse buildings against fire, windstorm and other usually insured hazards.

ARTICLE VII

Covenant for Maintenance Assessments

Section 1. Creation of the Lien and Personal Obligation of Assessments. The Developer, for each Lot owned by it within The Properties, hereby covenants and each Owner of any Lot by acceptance of a deed therefor, whether or not it shall be so expressed in any such deed or other conveyance, shall be deemed to covenant and agree to pay to the Association; (1) annual assessments or charges; (2) special assessments for capital improvements, such assessments to be fixed, established, and collected from time to time as hereinafter provided. The annual and special assessments, together with such interest thereon and

costs of collection thereof as hereinafter provided in Section 10, shall be a charge on the land and shall be a continuing lien upon the property against which each such assessment is made. Each such assessment, together with such interest thereon and cost of collection thereof as hereinafter provided, shall also be the personal obligation of the person who was the Owner of the property at the time when the assessment fell due.

Section 2. Purpose of Assessments. The assessments levied by the Association shall be used exclusively for the purpose of promoting the recreation, health, safety and welfare of the residents in The Properties and in particular for the acquisition, improvement and maintenance of properties, services, and facilities devoted to this purpose and related to the use and enjoyment of the Common Properties and of the homes situated upon The Properties, including, but not limited to, the maintenance of pathways, driveways, parking areas and associated drainage, the payment of taxes and insurance thereon and repair, replacement and additions thereto and for the cost of labor, equipment, materials, management, and supervision thereof and for fulfilling the assessment obligation established by the Master Declaration.

Section 3. Determination of Annual Assessments. The Board of Directors of the Association shall determine the total annual assessment for The Properties, provided that if such assessment for any year shall exceed the assessment for the preceeding year by 15%, such assessment shall have the assent of two-thirds of the combined votes of the two classes of Members who are voting in person or by proxy, at a meeting duly called for this purpose, written notice of which shall be sent to all Members at least thirty (30) days in advance and shall set forth the purpose of the meeting.

Section 4. Special Assessments for Capital Improvements. In addition to the annual assessments authorized by Section 3, hereof, the Association may levy in any assessment year a special assessment, applicable to that year only, for the purpose of defraying, in whole or in part, the costs of any acquisition construction or

reconstruction, unexpected repair or replacement of a described capital improvement upon the Common Properties, including the necessary fixtures and personal property related thereto, provided that any such assessment shall have the assent of two-thirds of the votes of each class of Members who are voting in person or by proxy at a meeting duly called for this purpose, written notice of which shall be sent to all Members at least thirty (30) days in advance and shall set forth the purpose of the meeting.

Section 5. Allocation of Assessments. The total assessment (exclusive of the individual assessments provided for in Section 6) shall be divided by the number of lots and the resulting figure shall be the assessment for each Lot.

Section 6. Special Individual Assessments. The Association may impose a special assessment upon any Owner whose use or treatment of his Lot or Living Unit increases the maintenance cost to the Association above that which would result from compliance by the Owner with the use restrictions imposed by this Declaration. The amount of such assessment shall be equal to such cost increase and may be enforced in the manner provided for any other assessment.

Section 7. Quorum for any Action Authorized Under Sections 3 and 4. The quorum required for any action authorized by Sections 3 and 4 hereof shall be as follows:

At the first meeting called, as provided in Sections 3 and 4 hereof, the presence at the meeting of Members or of proxies entitled to cast fifty percent (50%) plus one of the combined votes of the two classes of membership shall constitute a quorum. If the required quorum is not forthcoming at any meeting, another meeting may be called, subject to the notice requirement set forth in Sections 3 and 4, and the required quorum at any such subsequent meeting shall be seventy percent (70%) of the required quorum at the preceding meeting, provided that no such subsequent meeting shall be held more than sixty (60) days following the preceding meeting.

Section 8. Date of Commencement of Annual Assessments:

Due Dates. The annual assessments provided for herein shall be due and payable quarterly and shall commence on the first day of the month following the first conveyance of a Lot by the Developer.

Developer may be excused from the payment of assessments for any Lot owned by Developer during such period of time that it shall guarantee that the assessment imposed on other members shall not increase over a stated dollar amount and shall obligate itself to pay any amount or expenses of the Association incurred during that period not produced by the assessment at the guaranteed level receivable from the other members.

The first annual assessment shall be based upon an estimate of the operating expenses for the year plus adequate reserve for anticipated expenses not expected to be incurred on an annual basis. In the event this assessment proves insufficient to satisfy such expenses, the Board of Directors shall levy a supplementary assessment in the amount of the deficit. Notwithstanding any other provision herein, the supplementary assessment shall not require the assent of the Members.

The due date of any special assessment under Section 4 hereof shall be fixed in the resolution authorizing such assessment.

Section 9. Duties of the Board of Directors. The Board shall prepare a roster of the properties and assessments applicable thereto which shall be kept in the office of the Association and shall be open to inspection by any Owner.

Written notice of the assessment shall thereupon be sent to every Owner subject thereto.

The Association shall, upon demand, at any time, furnish to any Owner liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said assessment has been paid. Such certificate shall be prima facie evidence of payment of any assessment therein stated to have been paid.

Section 10. Effect of Non-Payment of Assessment: The Personal Obligation of the Owner; The Lien; Remedies of Association. If the assessments are not paid on the date due (being

the dates specified in Section 8 hereof) then such assessment shall become delinquent and shall, together with interest thereon and cost of collection thereof as hereinafter provided, thereupon become a continuing lien on the property which shall bind such property in the hands of the then Owner, his heirs, devisees, personal representatives and assigns. The personal obligation of the then Owner to pay such assessment, however, shall remain his personal obligation for the statutory period and shall not pass to his successors in title unless expressly assumed by them.

If the assessment is not paid within thirty (30) days after the delinquency date, the assessment shall bear interest from the date of delinquency at the maximum rate allowed by law, and the Association may bring an action at law against the Owner personally obligated to pay the same or to foreclose the lien against the property, and there shall be added to the amount of such assessment the costs of preparing and filing the complaint in such action, and in the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and a reasonable attorney's fee to be fixed by the court together with the costs of the action.

Section 11. Subordination of the Lien to the Mortgages.

The lien of the assessments provided for herein is unequivocally subordinate to the lien of any first mortgage now or hereafter placed upon the properties subject to assessment prior to the recording in the public records of a notice stating the amount of or unpaid assessment attributable to the Lot; provided, however, that such subordination shall apply only to the assessments which have become due and payable prior to a sale or transfer of such property pursuant to a decree of foreclosure, or any other proceeding in lieu of foreclosure. Such sale or transfer shall not relieve such property from liability for any assessments thereafter becoming due, nor from the lien of any such subsequent assessment.

Section 12. Exempt Property. The following property subject to this Declaration shall be exempted from the assessments, charge and lien created herein: (a) all properties to the extent of any easement or other interest therein dedicated and accepted by

the local public authority and devoted to public use; (b) all Common Properties as defined in Article I, Section 1, hereof.

Notwithstanding any provisions herein, no land or improvements devoted to dwelling use shall be exempt from said assessments, charges or liens and in particular no member may exempt himself from liability for assessments by waiver of the use and enjoyment of any of the Common Properties, or by the abandonment of his Living Unit.

ARTICLE VIII

Master Declaration and Township Community Master Association, Inc.

The Properties are a portion of a larger parcel of land under development known as the Township, P.U.D. In order to provide for unified control of certain aspects of development and operation of properties in the Township, there has been placed on public record a Declaration of Covenants, Conditions and Restriction of the Township; Declaration of Class "A" Residential Covenants, Conditions and Restrictions, Declaration of Class "B" Covenants, Conditions and Restrictions; and Declaration of Commercial Covenants, Conditions and Restrictions. The provisions of this Declaration will be carried out by the Township Community Master Association, Inc. (Master Association).

The Properties are subject to the matters contained in those documents and any amendments thereto. The documents also provide for the establishment of a Master Association of which each Owner in The Properties shall be a member.

ARTICLE IX

Architectural Committee

Section 1. Review by Committee. No building, fence, wall hedge, or other structure or landscape improvement shall be commenced, erected, removed or maintained upon The Properties, nor shall any exterior addition to or change or alteration therein be made until the plans and specifications showing the nature, kind, shape, height, materials, and location of the same shall have been submitted to and approved in writing as to harmony of external design and location in relation to surrounding structures and topography by the Board of Directors of the Association, or by an

Architectural Committee composed of three (3) or more representatives appointed by the Board and by the Architectural Review Committee established by the Master Declaration. In the event said board, or its designated committee, fails to approve or disapprove such design and location within thirty (30) days after said plans and specifications have been submitted to it, approval will not be required and this Article will be deemed to have been fully complied with.

Section 2. The Committee's approval or disapproval as required in these covenants shall be in writing.

Section 3. Provided, however, that no residence erected by Developer shall be subject to approval by the Architectural Committee.

ARTICLE X

Insurance

Section 1. Authority to Purchase; Named Insured. All insurance policies upon the Common Properties and upon the buildings shall be purchased by the Association. The named insured shall be the Association individually and as agent for the Owners, without naming them, and as agent for their mortgagees or an insurance trustee, if the Board of Directors so determines. Provision shall be made for the issuance of mortgagee endorsements and memoranda of insurance to the mortgagees of Lots. Such policies shall provide that payments by the insurer for losses shall be made to the Association for the benefit of the beneficial Owners, and all policies and their endorsements shall be deposited with the Association. Owners may obtain coverage at their own expense upon their personal property, any portion of their Living Unit not insured by the Association, and for their personal liability and living expenses.

Section 2. Coverage.

(a) All Living Units and improvements upon The Properties shall be insured in an amount equal to the maximum insurable replacement value, excluding foundation and excavation costs and excluding any improvements made by an individual Owner, and all personal property included in the Common Properties shall be insured for its value, all as determined annually by the Board of Directors of the Association. Such coverage shall afford protection against:

(i) Loss or damage by fire and other hazards covered by a standard extended coverage endorsement, and

(ii) Such other risks as from time to time shall be customarily covered with respect to buildings similar in construction, location and use as the buildings on The Properties, including but not limited to vandalism, malicious mischief, windstorm and water damage.

(b) Public Liability in such amounts and with such coverage as shall be required by the Board of Directors of the Association, including but not limited to hired automobile and non-owned automobile coverages, and with cross liability endorsements to cover liabilities of the Owners as a group and as individual Owners.

(c) Such other insurance as the Board of Directors of the Association shall determine from time to time to be desirable.

Section 3. Premiums. Premiums upon insurance policies purchased by the Association shall be paid by the Association and charged to the Owners as a portion of their maintenance assessments.

Section 4. Proceeds. All insurance policies purchased by the Association shall be for the benefit of the Association and the Owners and their mortgagees as their interest may appear, and shall provide that all proceeds covering property losses shall be paid to the Association. The Association or the insurance trustee, if any, shall hold the proceeds for the benefit of the Association and the Owners and their mortgagees in the following shares:

(a) Common Properties. Proceeds on account of damage to Common Properties - an equal undivided share for each Owner.

(b) Living Units. Proceeds on account of damage to Living Units shall be held in the following undivided share:

(i) When the buildings are to be restored - for the Owners of damaged Living Units in proportion to the cost of repairing the damage suffered by each such Owner, which cost shall be determined by the Association.

(ii) When the buildings are not to be restored pursuant to Article XI - an equal undivided share to each Owner within The Properties.

(c) Mortgages. In the event a mortgage endorsement has been issued as to a Living Unit, the share of the Owner shall be held for the mortgagee and the Owner as their interest may appear provided, however, that no mortgagee shall have any right to determine or participate in the determination as to whether or not any damaged property shall be reconstructed or repaired, and no mortgagee shall have any right to apply or have applied to the reduction of a mortgage debt any insurance proceeds made to the Owner and mortgagee pursuant to the provisions of this Article.

Section 5. Distribution of Proceeds. Proceeds of insurance policies received shall be distributed to or for the benefit of the beneficial Owners in the following manner:

(a) Expense of Trust. All expenses of insurance trustee, if any, shall be paid first.

(b) Reconstruction or repair. If the damage for which the proceeds are paid is to be repaired or reconstructed, the remaining proceeds shall be paid to defray the cost of such as elsewhere provided. Any proceeds remaining after defraying such costs shall be distributed to the beneficial Owners, remittances to Owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a Living Unit and may be enforced by such mortgagee.

(c) Failure to reconstruct or repair. If it is determined in the manner elsewhere provided that the damage for which proceeds are paid shall not be reconstructed or repaired, the remaining proceeds shall be distributed to the beneficial Owners, remittances to Owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a Living Unit and may be enforced by such mortgagee.

(d) Certification. In making distribution to Owners and their mortgagees, the Association or insurance trustee may rely upon a certificate of the Association made by its President and Secretary as to the names of the Owners and their respective share of distribution.

Section 6. Association as Agent. The Association or the insurance trustee, if any, is irrevocably appointed agent for each Owner and for each owner of a mortgage or other lien upon a Living Unit and for each owner of any other interest in the property to adjust all claims arising under insurance policies purchased by the Association and to execute and deliver releases upon the payment of claims.

ARTICLE XI

Reconstruction or Repair After Casualty

Section 1. Determination to Reconstruct or Repair. If any part of The Properties shall be damaged by casualty, whether or not it shall be reconstructed or repaired shall be determined in the following manner:

(a) Common Properties. If the damaged improvement is a portion of the Common Properties, the damaged property shall be reconstructed or repaired, unless within sixty (60) days after the casualty at least eighty-five (85%) percent of the Owners and all record owners of mortgages on Living Units otherwise agree.

(b) Living Units.

(i) Lesser damage. If the damaged improvement is a Living Unit or Units, and if eighty-five (85%) percent of the Living Units within The Properties are found by the Board of Directors of the Association to be tenantable, the damaged property shall be reconstructed or repaired unless within sixty (60) days after the casualty at least eighty-five (85%) percent of the Owners and all of the record Owners of mortgages on Living Units otherwise agree.

(ii) Major damage. If the damaged improvement is a Living Unit or Units, and if more than eighty-five (85%) percent of the Living Units within The Properties are found by the Board of Directors to be not tenantable, then the damaged property will not be reconstructed or repaired unless within sixty (60) days after the casualty the Owners of eighty-five (85%) percent of the Living Units agree in writing to such reconstruction or repair. Provided, however, until the Developer has closed sales of all Living Units, the Developer may direct that the damaged building be reconstructed or repaired, provided that any cost of such reconstruction or repair in excess of insurance proceeds shall be provided by Developer.

(c) If it is determined in the manner hereinabove provided that a Living Unit or Units shall not be reconstructed because of damage, the Owners shall own the Lots as tenants in common in equal undivided shares. By accepting a deed conveying a Lot within the Properties, each Owner covenants for himself, his heirs, assigns, successors and grantees to execute any and all instruments which may be reasonably required by the Association to carry out the terms of this Section.

Section 2. Plans and Specifications. Any reconstruction or repair must maintain the identical exterior profile of the destroyed or damaged Living Unit.

Section 3. Responsibility.

(a) The Association shall be responsible for reconstruction and repair after casualty to any portion of the Common Properties and to the following elements of the Living Units:

All boundary walls and boundary slabs, except interior surfaces, all roofs and portions of the Living Units contributing to the support thereof.

(b) In all other instances the responsibility for reconstruction and repair after casualty shall be that of the Owners.

Section 4. Estimates of Costs. Immediately after a determination is made to rebuild or repair damage to property for which the Association has the responsibility of reconstruction and repair, the Association shall obtain reliable and detailed estimates of the cost to rebuild or repair. Such costs may include professional fees and premiums for such bonds as the Board of Directors desire.

Section 5. Assessments. If the proceeds of insurance are not sufficient to defray the estimated costs of reconstruction and repair by the Association, or if at any time during reconstruction and repair, or upon completion of reconstruction and repair, the funds for the payment of the costs of reconstruction and repair are insufficient, including the aforesaid fees and premiums, assessments shall be made against the Owners who owned the damaged Living Units and against all Owners in the case of damage to the Common Properties, in sufficient amounts to provide funds for the payment of such costs. Such assessment against Owners for damage to Living Units shall be in proportion to the cost of reconstruction and repair of their respective Living Units.

Section 6. Construction Funds. The funds for payment of costs of reconstruction and repair after casualty, which shall consist of proceeds of insurance held by the Association and funds collected by the Association from assessments against Owners, shall be disbursed in payment of such costs in the following manner:

(a) Association - lesser damage. If the amount of the estimated costs of reconstruction and repair that is the responsibility of the Association is less than FIVE THOUSAND (\$5,000.00) DOLLARS, then the construction fund shall be disbursed in payment of such costs upon the order of the Association; provided, however, that upon request to the Association by a mortgagee that is a beneficiary of an insurance policy the proceeds of which are included in the construction fund, such fund shall be disbursed in the manner provided for the reconstruction and repair of major damage.

(b) Association - major damage. If the amount of the estimated costs of reconstruction and repair that is the responsibility of the Association is more than FIVE THOUSAND (\$5,000.00) DOLLARS, then the construction fund shall be disbursed in payment of such costs in the manner required by the Board of Directors of the Association and upon approval of an architect qualified to practice in Florida and employed by the Association to supervise the work.

(c) Owner. The portion of the insurance proceeds representing damage for which the responsibility of reconstruction and repair lies with an Owner shall be paid by the Association to the Owner, or if there is a mortgagee endorsement as to the Living Unit, then to the Owner and the mortgagee jointly, who may use such proceeds as they may be advised.

(d) Surplus. It shall be presumed that the first monies disbursed in payment of costs of reconstruction and repair shall be from insurance proceeds. If there is a balance in a construction fund after payment of all costs of the reconstruction

and repair for which the fund is established, such balance shall be distributed to the beneficial Owners of the Fund in the manner elsewhere stated; except, however, that the part of a distribution to a beneficial Owner that is not in excess of assessments paid by such owner into the construction fund shall not be made payable to any mortgagee.

ARTICLE XII

General Covenants and Restrictions for

Golden Raintree II

1. The use of any Lot must, at all times, be in accordance with the zoning laws and ordinances of the City of Coconut Creek, Florida. No Lot shall be used for other than residential purposes. No building other than one single family residence shall be erected, altered, placed or permitted to remain on any Lot. Such residence shall be attached to another residence on an adjoining lot.

2. No building, fence, wall or other structure shall be erected, placed or altered on any Lot until the construction plans and specifications and a plan showing the location of the structure have been approved as set forth in Article IX as to quality of workmanship and materials, harmony of external design with existing structures and location with respect to topography and finished grade elevation. No fence or wall shall be erected, placed or altered on any Lot nearer to any street than the minimum building setback line unless similarly approved.

3. Easements for installations and maintenance of utilities and drainage facilities are or will be recorded in the public records. Within these easements, no structure, planting or other material shall be placed or permitted to remain that may damage or interfere with the installation and maintenance of utilities, change the direction of flow of drainage channels in the easements or obstruct or retard the flow of water through drainage channels in the easements. The easement area of each Lot and all improvements on it shall be maintained continuously by the Owner of the Lot except for those improvements for which a public authority or utility company is responsible.

Purposed Changes to the Bylaws of Golden Raintree II Home Owners Association, Inc.

Page 2, Par. 14

Which reads: - and shall qualify. "The directors shall be elected at the annual meeting of the membership, and each director shall be elected to serve until the next annual meeting of the members and or until his successor shall be elected and qualify."

To read: - and shall qualify. "The directors shall be elected at the annual meeting of the membership or One [1] year from their date of installation, as chosen by the presiding board and each director shall be elected to serve until the next annual meeting of the members or until one [1] year from the date of their installation, as chosen by the presiding board and or until his successor shall be elected and qualify."

4. No noxious or offensive activity shall be carried on upon any Lot, nor shall anything be done on it that may be or may become an annoyance or nuisance to the neighborhood.

5. No structure of a temporary character, or outbuilding including trailer, basement, tent, shack, garage, or barn shall be used on any Lot at any time as a residence, either temporarily or permanently. This does not exclude the use of such structures by the developers or builders for the purpose of construction or sales offices.

6. In order to maintain an attractive appearance no sign, advertisement, notice or other lettering shall be exhibited, displayed, inscribed, painted or affixed, in, on or upon any part of The Properties, by an Owner or occupant without the written consent of the Board of Directors of the Association.

7. No animal, bird or pet of any kind shall be raised, bred or kept on any Lot except that dogs, cats or other household pets may be kept in a Living Unit, provided that it does not cause any unreasonable interference with the use and enjoyment of any unit. No animal, bird or pet shall be allowed on any part of the Common Properties except in transport and any animal in transport shall be carried by the Owner or other responsible person.

8. No Lot shall be used or maintained as a dumping ground for rubbish. Trash, garbage or other waste shall not be kept except in sanitary containers. All equipment for the storage or disposal of such material shall be kept in a clean and sanitary condition. No garbage incinerators shall be permitted.

9. No individual water supply system shall be permitted on any Lot.

10. No individual sewage disposal system shall be permitted on any Lot.

11. No clothes lines or drying yards shall be allowed on any Lot.

12. Unless prior written approval has been obtained from the Association, no exterior antenna or aerial of any kind may be erected or maintained anywhere with The Properties.

13. No weeds, underbrush or other unsightly growths shall be permitted upon The Properties and no refuse pile or unsightly objects shall be allowed to be placed or suffered to remain anywhere thereon.

14. Each Owner shall keep his Lot free and clear of trash and debris and shall reasonably maintain his Living Unit.

15. All materials used in construction shall comply with governmental requirements having jurisdiction thereon and shall be subject to written approval as provided in Article IX.

16. When the construction of any building is once begun, work thereon must proceed diligently and must be completed within a reasonable time.

17. No installation of additional street lights or exterior lighting shall be permitted without approval as provided in Article IX.

18. No vehicles other than automobiles shall be parked on any part of The Properties. The Association shall control the use of all parking spaces within The Properties and may from time to time assign and reassign the exclusive use of certain spaces to designated Owners.

19. No easements shall be granted by any Owner without the express written approval of the Association.

20. No Lot shall be subdivided.

21. In the event any Living Unit built in The Properties is destroyed or removed by or for any cause, such unit, if replaced, shall be replaced with a unit providing the identical exterior profiles as the destroyed Living Unit.

22. In order to enhance the beauty of the buildings and for safety purposes, the sidewalks, entrances, stairways and all of the Common Properties must not be obstructed or encumbered or used for any purpose other than ingress and egress, to and from the premises; nor shall any carts, carriages, chairs, tables, or any other similar objects be stored therein. Bicycles may be stored only in Living Units or in other specifically designated areas.

23. In order that all Owners may have the quiet enjoyment of their property, no Owner shall make or permit any disturbing noises in the building by himself, his family, servants, employees, agents, visitors, and licensees, nor do or permit anything by such persons that will interfere with the reasonable rights, comforts or conveniences of the other Owners. No Owner shall unreasonably play or suffer to be played upon any musical instrument or operate or suffer to be operated, a phonograph, television, radio or sound amplifier, in his Living Unit, in such a manner as to disturb or annoy other occupants of the building. No Owner shall conduct or permit to be conducted, vocal or instrumental instruction at any time.

24. No Owner or resident may direct, supervise, or in any manner attempt to assert control over the employees or agents of the Association.

(25.) In order that the buildings may maintain an attractive and uniform appearance, an Owner shall not cause anything to be affixed or attached to, hung, displayed or placed on the exterior walls, doors, balconies, windows or roof, nor shall an Owner place anything other than porch furniture or plants on any porch or balcony except with the prior written consent of the Board of Directors, and further, when approved, subject to the Rules and Regulations adopted by the Board of Directors.

26. Members must abide by right of entry into the Living Unit in emergencies. In case of any emergency originating in, or threatening any Living Unit regardless of whether the Owner is present at the time of such emergency, the Board of Directors, or any other person authorized by it, shall have the right to enter such Living Unit for the purpose of remedying or abating the cause of such emergency, and such right of entry shall be immediate. To facilitate entry in the event of any such emergency, the Board of Directors shall have a master key to fit the door locks to all Living Units. If an Owner wants a second lock installed as additional security, said Owner shall obtain approval from the Board of Directors and upon approval shall deposit with the Board of Directors a duplicate key for the second lock for use in emergencies.

27. Owners are not permitted on the roof for any purpose.

28. There shall be no solicitation by any person anywhere in the buildings for any cause, charity, or any purpose whatsoever, unless specifically authorized by the Board of Directors.

29. No waterbeds are to be brought into any Living Unit for any reason whatsoever.

30. Every lease of a Lot or Living Unit must contain a provision requiring the lessee to comply with all provisions of this Declaration, the Articles of Incorporation and By-Laws.

31. No exterior of a residential unit or fence shall be repainted in a color which is different from the original color without prior approval as provided by Article IX.

ARTICLE XIII

Abatement of Violations

All violations of the General Covenants and Restrictions shall be reported immediately to a member of the Board of Directors. Disagreements concerning violations, including, without limitation, disagreements regarding the proper interpretation and effect of the General Covenants and Restrictions, shall be presented to and determined by the Board of Directors of the Association, whose interpretation of these Covenants and/or whose remedial action shall be dispositive. In the event that any person, firm or entity subject to the General Covenants and Restrictions fails to abide by them, as they are interpreted by the Board of Directors of the Association, that person shall be liable to be fined by the Association for each such failure to comply or other violation of them. Such fine, which shall not exceed \$25.00 for each day such violation continues, shall be collected by the Association. If the Board of Directors of the Association deems it necessary, it may bring action at law or in equity (including an action for injunctive relief) in the name of the Association, to enforce the General Covenants and Restrictions. In the event any such action is instituted, and reduced to judgment in favor of the Association, the Association shall, in addition, be entitled to recover its costs and attorney's fees incurred in enforcing the General Covenants and Restrictions.

Violation of any conditions or restrictions or breach of any covenant herein contained shall also give the Developer, its successors and assigns, and/or the Association and its authorized agent or representative, in addition to all other remedies, the right to enter upon the land on which such violation or breach exists and summarily to abate and remove, at the expense of the Owner of said land, any construction or other violation that may be or exist thereon contrary to the intent and provision hereof; and the Developer, its successors and assigns shall not thereby become liable in any manner for trespass, abatement or removal.

ARTICLE XIV

Declaration of Party Facilities

Section 1. Each common wall shared by two Living Units which divides the two Living Units into separate and distinct single family residences, shall be a party wall for the perpetual benefit of and use by the two such Owners, including their respective heirs, assigns, successors and grantees.

Section 2. Each common roof shared by the Living Units located within a particular building shall be a party roof for the perpetual benefit of and use by all Owners within that building, including their respective heirs, assigns, successors, and grantees.

Section 3. In the event it should become necessary or desirable to perform maintenance on a party wall or party roof or to rebuild or repair the whole or any part of either a party wall and/or party roof, such expense shall be shared equally by the respective Owners. Whenever any such party wall and/or party roof or any part thereof shall be rebuilt, it shall be erected in the same manner and at the same location where it shall initially be constructed, and shall be of the same size and of the same or similar materials and of like quality; provided that if such maintenance, repair, or construction is brought about solely by the neglect or the willful misconduct of a particular record title holder, any expense incidental thereto shall be borne solely by such wrongdoer.

Section 4. Unless otherwise agreed in writing, the Owner of any Living Unit sharing a party wall with an adjoining Living Unit shall not possess the right to cut windows or other openings

in the party wall, nor make any alterations, additions, or structural changes in the party wall.

Section 5. The Owner of any Living Unit shall have the right to the full use of said party walls and party roofs for whatever purposes he chooses to employ, subject to the limitations that such use shall not interfere with the rights of other Owners of their enjoyment of said party walls or party roofs, or in any manner impair the value of the respective building.

Section 6. In the event repairs or reconstruction of a party wall or roof or any portion of a Living Unit shall be necessary, all necessary entries on any adjoining Living Unit shall not be deemed a trespass so long as the repairs and reconstruction shall be done in a workmanlike manner, and consent is hereby given to enter for such repairs or reconstruction.

Section 7. Each common wall and common roof is to be and remain a party wall and party roof, for the perpetual use and benefit of the respective Owners, and their heirs, assigns, successors, and grantees.

ARTICLE XV

Developer's Use of the Properties

Until Developer has completed all of the proposed Living Units and closed sales of all Lots neither the Members, nor the Association nor anything contained herein or in the Articles of Incorporation or By-Laws shall interfere with the construction and sale of the Living Units. Developer may make use of any Living Unit or model erected upon The Properties and of the common areas as may facilitate such completion and sale, including but not limited to maintenance of sales offices, the showing of the property and the display of signs. Any Living Unit or model placed upon The Properties may be used as a model or sales office for any other development within The Township.

ARTICLE XVI

Right to Modify or Cancel

Developer specifically reserves for itself, its successors and assigns and to the Association the absolute and unconditional

right to alter, modify, change, revoke, rescind, or cancel any or all of the restrictive covenants contained in this Declaration or hereinafter included in any subsequent Declaration.

ARTICLE XVII

Assignment

Any or all of the rights, powers and obligations, easements and estates reserved or given to the Developer or the Association may be assigned by the Developer or by the Association, as the case may be, and any such Assignee shall agree to assume the rights, powers, duties and obligations and carry out and perform the same; the entity accepting such assignment shall be composed of a majority of the then Owners of the property described in Article II hereinabove. Any such assignment or transfer shall be made by appropriate instrument in writing in which the assignee or transferee shall join for the purpose of evidencing its consent to such assignment and its acceptance of the rights and powers, duties and obligations herein contained; and such assignee or transferee shall thereupon have the same rights and powers and be subject to the same obligations and duties as are herein given to the Declarer and the Association. After such assignment the Developer and the Association shall be relieved and released of all responsibility hereunder.

ARTICLE XVIII

General Provisions

Section 1. Duration. The covenants and restrictions of this Declaration shall run with and bind the land and any Owner or lessee thereof, and shall inure to the benefit of and be enforceable by the Developer, the Association, or the Owner of any land subject to this Declaration, their respective legal representatives, heirs, successors and assigns, for a term of thirty (30) years from the date this Declaration is recorded, after which time said covenants shall be automatically extended for successive periods of ten (10) years unless an instrument signed by the then Owners of two-thirds of the lots or by the Association, has been recorded agreeing to change said covenants and restrictions in whole or in

part, or to terminate them. Provided, however, no such agreement to change or terminate shall be effective unless made and recorded at least ninety (90) days in advance of the end of the initial or any extension period hereof, and unless written notice of the proposed agreement is sent to every Owner at least ninety (90) days in advance of any action taken. Provided, further, that the provisions contained in Article XIV hereof shall run in perpetuity, unless otherwise agreed to by the record Owners of all Lots within The Properties.

Section 2. Amendment. This Declaration may be amended at any time and from time to time upon the execution and recording of an instrument executed by Owners holding not less than three-fourths (3/4) of the voting interests of the membership, provided that so long as Developer is the Owner of any Lot, or any property affected by this Declaration, or amendment hereto, no amendment shall be effective without Developer's express written consent and joinder.

Article VII hereof, the Covenant for Maintenance Assessments, may not be amended without the consent of each mortgagee holding a first mortgage upon a Lot in The Properties.

Section 3. Notices. Any notice required to be sent to any Member or Owner under the provisions of this Declaration shall be deemed to have been properly sent when mailed, postpaid, to the last known address of the person who appears as Member or Owner on the records of the Association at the time of such mailing.

Section 4. Enforcement. Enforcement of these covenants and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate any covenant or restriction, either to restrain violation or to recover damages, and against the land to enforce any lien created by these covenants; and failure by the Association or any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.

Section 5. Severability. Invalidation of any one of these covenants or restrictions by judgment or court order shall in no wise affect any other provisions which shall remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands and seals the day and year first above written.

Signed, sealed and delivered
in the presence of:

MINTO BUILDERS (FLORIDA), INC.

By _____
J. E. MacKenzie, Vice President

STATE OF FLORIDA)
) SS.
COUNTY OF PALM BEACH)

Before me, the undersigned authority duly authorized to administer oaths and take acknowledgments, personally appeared J. E. MACKENZIE, to me well known and known to me to be the Vice President of Minto Builders (Florida), Inc., a Florida corporation and did acknowledge before me that he executed the foregoing instrument on behalf of the corporation.

Notary Public, State of Florida

(Notary Seal)

My Commission Expires:

ARTICLES OF INCORPORATION OF
GOLDEN RAINTREE "II" HOMEOWNERS' ASSOCIATION, INC.

ARTICLES OF INCORPORATION

OF

GOLDEN RAINTREE II HOMEOWNERS' ASSOCIATION, INC.

THE UNDERSIGNED, in accordance with the provisions of §617.013, Florida Statutes, hereby make, subscribe and acknowledge these Articles of Incorporation.

I

The name of the corporation is GOLDEN RAINTREE II HOMEOWNERS' ASSOCIATION, INC.

II

The purpose for which the corporation is organized as a non-profit corporation in accordance with the provisions of Chapter 617, Part I, Florida Statutes, is to operate a development known as GOLDEN RAINTREE II upon real property lying and being in Broward County, Florida, and being more particularly described in the Declaration of Covenants, Conditions and Restrictions thereof.

III

The term for which the corporation is to exist is perpetual unless the corporation is dissolved pursuant to any applicable provision of the Florida Statutes.

IV

The names and addresses of the subscribers of these Articles are:

James E. MacKenzie
Minto Builders (Florida), Inc.
1580 N.W. 2nd Ave., Suite 6
Boca Raton, FL 33432

Jeffrey Miller
Minto Builders (Florida), Inc.
1580 N.W. 2nd Ave., Suite 6
Boca Raton, FL 33432

George P. Ord, Esq.
Alley, Maass, Rogers, Lindsay & Chauncey
321 Royal Poinciana Plaza, South
Palm Beach, FL 33480

V

The affairs of the corporation are to be managed by a President, a Vice President, a Secretary, a Treasurer and such other officers as the Bylaws of the corporation may provide for from time to time. All officers shall be elected at the first meeting of the Board of Directors following the annual meeting of the corporation and shall hold office until the next succeeding annual election of officers or until their successors are elected and qualify.

VI

The names of the officers who are to serve until the first election or appointment under the Articles of Incorporation and Bylaws are:

James E. MacKenzie, President and Treasurer

Jeffrey Miller, Vice President and Secretary

George P. Ord, Assistant Secretary

The foregoing shall hold office until the first meeting of the elected Board of Directors in 1981, unless the members are authorized to hold an earlier annual meeting. Commencing with the first meeting of the elected Board of Directors in 1981, or earlier, such officers will be elected annually to hold office until the next annual meeting of the Board of Directors or until their successors are elected and qualify. In the event of a vacancy in any office prior to the first meeting of the Board of Directors, such vacancy shall be filled by a majority, even though less than a quorum of the Board of Directors.

VII

The corporation shall be governed by a Board of Directors consisting of not less than three (3) nor more than six (6) persons. The initial Board of Directors shall consist of three (3) members. The names and addresses of the persons who are to serve as the Directors until the first election are:

James E. MacKenzie
Minto Builders (Florida), Inc.
1580 N.W. 2nd Ave., Suite 6
Boca Raton, FL 33432

Jeffrey Miller
Minto Builders (Florida), Inc.
1580 N.W. 2nd Ave., Suite 6
Boca Raton, FL 33432

George P. Ord, Esq.
Alley, Maass, Rogers, Lindsay & Chauncey
321 Royal Poinciana Plaza, South
Palm Beach, FL 33480

The above named Directors shall hold office until the first meeting when members other than the Developer hold a majority of votes of the corporation. Thereafter, the Board of Directors shall be elected as provided in the Bylaws. In the event of a vacancy on the Board of Directors, the vacancy shall be filled by the majority vote of the remaining Directors.

VIII

The Bylaws of said corporation may be amended, altered, rescinded, or added to by resolution adopted by two-thirds (2/3) vote of the Board of Directors of this corporation at any duly called meeting of said board and accepted by a two-thirds (2/3) vote of the members present at any duly convened meeting of the members; provided, however, that no such meeting shall be deemed competent to consider or amend, alter, rescind or add to the Bylaws unless prior written notice of said meeting specifying the proposed change has been given to all directors and members at least ten (10) days prior to the meeting or said notice is appropriately waived by written waiver. Any member of this corporation or any member of the Board of this corporation may propose an amendment to these Bylaws to the Board or the membership, as the case may be. Provided further that as long as the initial Board of Directors holds office, any changes in the Bylaws may be by a two-thirds (2/3) vote of the Board of Directors of the corporation.

IX

The Articles of Incorporation may be amended, altered, rescinded, or added to by resolution adopted by a two-thirds (2/3) vote of the Board of Directors of this corporation at any duly called meeting of said Board and accepted by a two-thirds (2/3) vote of the members present at any duly convened meeting of the members; provided, however, that no such meeting shall be deemed competent to consider or amend, alter, rescind or add to these Articles of Incorporation unless prior written notice of said meeting specifying the proposed change has been given to all directors and members at least fourteen (14) days prior to the meeting or said notice is appropriately waived by written waiver. Any member of this corporation may propose an amendment to the Articles of Incorporation to the Board or the membership, as the case may be. Provided further that as long as the initial Board of Directors holds office, any changes in the Articles of Incorporation may be made by a two-thirds (2/3) vote of the Board of Directors of the corporation.

X

Members of the initial Board of Directors need not be members of this corporation. Thereafter, members of the Board of Directors need not be members of this corporation if they are nominees of a corporate member. Otherwise, each member of the Board of Directors must be a member of the corporation.

XI

This corporation shall never have or issue shares of stock, nor will it ever have or provide for non-voting membership. No part of the earnings of the corporation shall inure to the private benefit of any member, officer or Director.

XII

The corporation shall have all the powers set forth and described in Chapter 617, Part I, Florida Statutes, as presently existing or as may be amended from time to time, together with those powers conferred by the aforesaid Declaration of Covenants, Conditions and Restrictions, these Articles of Incorporation and all lawful Bylaws of the corporation.

XIII

The corporation shall indemnify any and all persons who may serve or who have served at any time as directors or officers, and their respective heirs, administrators, successors and assigns against any and all expenses, including amounts paid upon judgments, counsel fees, and amounts paid in settlement (before or after suit is commenced), actually and necessarily incurred by such persons in connection with the defense or settlement of any claim, action suit or proceeding in which they or any of them, are made parties, or a party, or which may be asserted against them or any of them, by reason of having been directors or officers or a director or officer of the corporation, except in such cases wherein the director or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties. Such indemnification shall be in addition to any rights to which those indemnified may be entitled under any law, Bylaw, agreement, vote of members or otherwise.

James E. MacKenzie

Jeffrey Miller

George P. Ord

Designation of Registered Agent

The initial registered agent of this corporation shall be George P. Ord, 321 Royal Poinciana Plaza, Palm Beach, FL 33480.

Acceptance

Having been named registered agent to accept service of process for the above-named corporation, I hereby accept to act in this capacity and agree to comply with the provisions of Chapter 48.091, Florida Statutes.

Registered Agent

STATE OF FLORIDA)
)SS:
COUNTY OF PALM BEACH)

BEFORE ME, the undersigned authority, this day personally appeared James E. MacKenzie, who, after being duly sworn, according to law, deposes and says that he is competent to contract and further acknowledges that he did subscribe to the foregoing Articles of Incorporation freely and voluntarily and for the purposes therein expressed.

IN WITNESS WHEREOF, I have hereunto set my hand and seal at Palm Beach County, Florida, this _____ day of _____, 1980.

(Notary Seal)

Notary Public, State of Florida

My Commission Expires:

STATE OF FLORIDA)
)SS:
COUNTY OF PALM BEACH)

BEFORE ME, the undersigned authority, this day personally appeared Jeffrey Miller, who, after being duly sworn, according to law, deposes and says that he is competent to contract and further acknowledges that he did subscribe to the foregoing Articles of Incorporation freely and voluntarily and for the purposes therein expressed.

IN WITNESS WHEREOF, I have hereunto set my hand and seal at Palm Beach County, Florida, this _____ day of _____, 1980.

(Notary Seal)

Notary Public, State of Florida

My Commission Expires:

STATE OF FLORIDA)
)SS:
COUNTY OF PALM BEACH)

BEFORE ME, the undersigned authority, this day personally appeared George P. Ord, who, after being duly sworn, according to law, deposes and says that he is competent to contract and further acknowledges that he did subscribe to the foregoing Articles of Incorporation freely and voluntarily and for the purposes therein expressed.

IN WITNESS WHEREOF, I have hereunto set my hand and seal at Palm Beach County, Florida, this _____ day of _____, 1980.

(Notary Seal)

Notary Public, State of Florida

My Commission Expires:

BYLAWS OF GOLDEN RAIN TREE II HOMEOWNERS' ASSOCIATION

BYLAWS OF
GOLDEN RAINTREE II HOMEOWNERS' ASSOCIATION, INC.
A NON-PROFIT CORPORATION

Offices

1. The principal office of the corporation shall be in Coconut Creek, Broward County, Florida, or such other place in Florida as the Board of Directors shall determine.
2. For the purpose of service of process, the corporation shall designate a registered agent, which designation may be changed from time to time, and his office shall be deemed an office of the corporation for the purpose of service of process.

Members' Meetings

3. All meetings shall be held at the office of the corporation, or may be held at such place and time as shall be stated in a notice thereof.
4. An annual meeting of members, commencing with the year 1981, shall be held on the third Tuesday of February or such other date in February as the Board of Directors may designate, at which the members shall elect, by a majority vote, a Board of Directors, and transact such other business as may properly be brought before the meeting.
5. Written notice of the annual meeting shall be served upon or mailed by regular mail (without certification) to each member entitled to vote thereat, at such address as appears on the books of the corporation, at least fourteen (14) days prior to the meeting and by the posting in a conspicuous place on the Properties, as defined in the Declaration of Covenants, Conditions and Restrictions, a notice of the meeting at least fourteen (14) days prior to the meeting. Post office certificate of mailing shall be conclusive proof of mailing.
6. At least fourteen (14) days before every election of directors, a complete list of the members entitled to vote at such election, arranged numerically by Lots within the address for notice of each, shall be prepared by the secretary. Such list shall be opened at the place where the election is to be held for said fourteen (14) days to the examination of any member, and shall be produced and kept at the time and place of election during the whole time thereof, and subject to the inspection of any member who may be present. Within sixty (60) days after members other than the Developer hold a majority of votes of the corporation, the Board shall call and give notice of the first annual meeting even if such shall be earlier than that provided for in Paragraph 4 hereof.
7. Special meeting of the members, for any purpose or purposes, unless otherwise prescribed by statute or by the Articles of Incorporation, may be called by the President and shall be called by the President or Secretary at the request in writing of a majority of the Board of Directors, or at the request in writing of four (4) members. Such request shall state the purpose or purposes of the proposed meeting.
8. Written notice of a special meeting of members, stating the time, place and object of such meeting and the

specific action to be taken thereat, shall be served upon or mailed to each member entitled to vote thereat at such address as appears on the books of the corporation, at least fourteen (14) days before such meeting.

9. Business transacted at all special meetings shall be confined to the objects and actions to be taken as stated in the notice.

10. Members representing fifty (50%) percent plus one (1) of the total number of votes of the corporation, present in person or represented by valid proxy, shall be requisite and shall constitute a quorum at all meetings of the members for the transaction of business except as otherwise provided by the Declaration of Covenants, Conditions and Restrictions or by the Articles of Incorporation. If, however, such quorum shall not be present, or represented at any meeting of the members, the members entitled to vote thereat, present in person or represented by proxy, shall have the power to adjourn the meeting from time to time, without notice other than announcement at the meeting, and at such adjourned meeting members representing thirty-five (35%) percent of the total number of votes of the corporation shall constitute a quorum. At such adjourned meeting at which a quorum shall be present or represented, any business may be transacted which might have been transacted at the meeting originally called.

11. When a quorum is present at any meeting, a majority of the votes cast by the members present in person or represented by proxy shall decide any question brought before such meeting, unless the question is one upon which by express provision of the Declaration of Covenants, Conditions and Restrictions, or of the Articles of Incorporation or of these Bylaws, a different vote is required, in which case such express provision shall govern and control the decision of such question.

12. At any meeting of the members, every member having the right to vote shall be entitled to vote in person, or by proxy appointed by an instrument in writing subscribed by such member.

13. Whenever the vote of members at a meeting is required or permitted by any provisions of statutes or the Declaration of Covenants, Conditions and Restrictions or of the Articles of Incorporation or of these Bylaws to be taken in connection with any corporation action, the meeting and the vote of members may be dispensed with, if all the members who would have been entitled to vote upon the action, if such meeting were held, shall consent in writing to such corporation action being taken.

Directors

14. The number of directors which shall constitute the whole board shall be not less than three (3) nor more than six (6). The initial Board of Directors and the manner of filling vacancies of the initial Board of Directors shall be as set forth in Article VII of the Articles of Incorporation of the corporation and they shall serve as provided for therein until the first annual meeting of the members or until their respective successors are chosen and shall qualify. (The directors shall be elected at the annual meeting of the members, and each director shall be elected to serve until the next annual meeting of the members and/or until his successor shall be elected and shall qualify. Directors must be members or nominees of corporate members, except as otherwise provided for in the Articles of Incorporation.)

15. The directors may hold their meetings and keep the books of the corporation at the office of the corporation in Coconut Creek, Broward County, Florida, or at such other place as they may from time to time determine.

16. If the office of one or more directors becomes vacant by reason of death, resignation, retirement, disqualification, removal from office, or otherwise, a majority of the remaining directors, though less than a quorum, shall choose a successor or successors, who shall hold office of the unexpired term in respect to which such vacancy occurred. Vacancies in the initial Board of Directors shall be filled as provided for in the Articles of Incorporation.

17. Directors other than the initial members of the Board may be removed for cause by an affirmative vote of a majority of the members.

18. The property and business of the corporation shall be managed by its Board of Directors which may exercise all such powers of the corporation and do all such lawful acts and things as are not by statute or by the Articles of Incorporation or by these Bylaws or by the foregoing Declaration of Covenants, Conditions and Restrictions directed or required to be exercised or done by the members.

19. The salaries of all employees and agents of the corporation shall be fixed by the Board of Directors, excepting that the salaries for directors for services other than as such shall be fixed by the members, as provided in succeeding Paragraph 22.

Executive Committee

20. The Board of Directors may, by resolution passed by a majority of the whole board, designate an executive committee to consist of one or more of the directors of the corporation, which, to the extent provided in said resolution, shall have and may exercise the powers of the Board of Directors in the management of the business and affairs of the corporation, and may have power to authorize the seal of the corporation to be affixed to all papers which may require it, provided the said resolution shall so provide.

21. The executive committee shall keep regular minutes of its proceedings and report the same to the board when required.

Compensation of Directors

22. Directors, as such, shall not receive any salary for their services, provided that nothing herein contained shall be construed to preclude any director from serving the corporation in any other capacity and receiving compensation therefor. The salaries for directors for services other than as such shall be fixed by the members.

Meetings of the Board

23. The initial Board of Directors and the initial officers shall be as set forth in the Articles of Incorporation and shall hold office until the first annual meeting as provided in the Articles of Incorporation or unless sooner replaced. Any Association member may attend any meeting of the Board.

24. Regular meetings of the board may be held without notice at such time and place as shall be determined from time to time by the board, except that notice of such meetings shall be given to Association members by posting notice of such in a conspicuous place forty-eight (48) hours in advance of such a meeting.

25. Special meetings of the board may be called by the President on three (3) days' notice to each director, either personally or by mail or by telegram. Special meetings shall be called by the President or Secretary in like manner and on like

notice on the written request of two (2) directors. Notice of any and all meetings of the board may be waived by appropriate written waiver.

26. At all meetings of the board a majority of the directors shall be necessary and sufficient to constitute a quorum for the transaction of business and the act of a majority of the directors present at any meeting at which there is a quorum shall be the act of the Board of Directors, except as may be otherwise specifically provided by statute or by the Articles of Incorporation or by these Bylaws. If a quorum shall not be present at any meeting of directors, the directors present thereat may adjourn the meeting from time to time, without notice other than announcement at the meeting, until a quorum shall be present.

Notices

27. Whenever under the provisions of the statutes or of the Articles of Incorporation or of these Bylaws, notice is required to be given to any director or member, it shall not be construed to mean personal notice, but such notice may be given in writing, by mail, depositing the same in a post office or letter box, in a postage-paid sealed wrapper, addressed to such director or member at such address as appears on the books of the corporation, and such notice shall be deemed given at the time when the same shall be thus mailed.

28. Whenever any notice is required to be given under the provisions of the statutes or of the Articles of Incorporation, or of these Bylaws, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time state therein, shall be deemed equivalent thereto.

Officers

29. The officers of the corporation shall be chosen by the directors and shall be a president, a vice president, a secretary and a treasurer. The Board of Directors may also choose additional vice presidents, and one or more assistant secretaries, and assistant treasurers. No person can serve simultaneously as both president and secretary.

30. The Board of Directors at its first meeting after each annual meeting of members shall choose a president, and one or more vice presidents, a secretary and treasurer, none of whom, excepting the president, need be a member of the board.

31. The board may appoint such other officers and agents as it shall deem necessary, who shall hold their offices for such terms and shall exercise such powers and perform such duties as shall be determined from time to time by the board.

32. The officers of the corporation shall hold office until their successors are chosen and qualify in their stead. Any officer elected or appointed by the Board of Directors may be removed at any time by the affirmative vote of a majority of the whole Board of Directors. If the office of any officer becomes vacant for any reason, the vacancy shall be filled by the Board of Directors. The initial officers and the manner of filling vacancies of the initial officers shall be as set forth in Article VI of the Articles of Incorporation of the corporation and they shall serve as provided for therein.

The President

33. The president shall be the chief executive officer of the corporation; he shall preside at all meetings of the members and directors, shall be ex-officio member of all standing committees, shall have general and active management of the business of the corporation, and shall see that all orders and resolu-

tions of the board are carried into effect.

34. He shall execute all documents and contracts requiring a seal, under the seal of the corporation, except where the same are required or permitted by law to be otherwise signed and executed and except where the signing and execution thereof shall be expressly delegated by the Board of Directors to some other officer or agent of the corporation.

The Vice Presidents

35. The vice presidents in the order of their seniority shall, in the absence or disability of the president, perform the duties and exercise the powers of the president, and shall perform such other duties as the Board of Directors shall prescribe.

The Secretary, Treasurer and Assistants

36. The secretary shall attend all sessions of the board and all meetings of the members and record all votes and the minutes of all proceedings in a book to be kept for that purpose and shall perform like duties for the standing committees when required. He shall give, or cause to be given, notice of all meetings of the members and special meetings of the Board of Directors, and shall perform such other duties as may be prescribed by the Board of Directors or president, under whose supervision he shall be. He shall keep in safe custody the seal of the corporation and, when authorized by the board, affix the same to any instrument requiring it and, when so affixed, it shall be attested by his signature or by the signature of the treasurer or an assistant secretary.

37. Assistant secretaries in order of their seniority shall, in the absence or disability of the secretary, perform the duties and exercise the powers of the secretary and shall perform such other duties as the board shall prescribe.

38. The treasurer shall have the custody of the corporate funds and securities and shall keep full and accurate accounts of receipts and disbursements in books belonging to the corporation and shall deposit all moneys and other valuable effects in the name and to the credit of the corporation in such depositories as may be designated by the Board of Directors.

39. The treasurer shall disburse the funds of the corporation as may be ordered by the board, taking proper vouchers for such disbursements, and shall render to the president and directors, at the regular meeting of the board, or whenever they may require it, an account of all of his transactions as treasurer and of the financial condition of the corporation.

40. If required by the Board of Directors, the treasurer shall give the corporation a bond, the premium therefor to be paid by the corporation, in such sum and with such surety or sureties as shall be satisfactory to the board for the faithful performance of the duties of his office and for the restoration to the corporation, in case of his death, resignation, retirement or removal from office, of all his books, papers, vouchers, money and other property of whatever kind in his possession or under his control belonging to the corporation.

41. Assistant treasurers in the order of their seniority shall, in the absence or disability of the treasurer, perform the duties, exercise the powers and assume the obligations of the treasurer and shall perform such other duties as the Board of Directors shall prescribe.

Directors' Annual Statement

42. The Board of Directors shall present at each annual meeting, and when called for by the vote of the members at any

special meeting of the members, a full and clear statement of the business and condition of the corporation. The annual statements shall include profit and loss statements and balance sheets prepared in accordance with sound business and accounting practice and copies thereof shall be furnished to each of the members.

Checks

43. All checks or demands for money and notes of the corporation shall be signed by such officer or officers or such other person or persons as the Board of Directors may from time to time designate.

Fiscal Year

44. The corporation shall operate upon the calendar year beginning on the 1st day of January and ending on the 31st day of December of each year. The Board of Directors is expressly authorized to change from a calendar year basis to that of a fiscal year whenever deemed expedient for the best interests of the corporation.

Seal

45. The corporate seal shall have inscribed thereon the name of the corporation, the year of its organization and the words "Corporate Seal, Florida". Said seal may be used by causing it or a facsimile thereof to be impressed or affixed or reproduced or otherwise.

Membership

46. Every person or entity who is a record owner of a fee, or undivided fee, interest in a Lot located upon the Properties shall be a member in the corporation, provided, however, that any such person or entity who holds such interest merely as security for the performance of an obligation shall not be a member.

47. The Corporation shall have two classes of voting membership:

Class A members shall be all those owners as defined in Section 46, with the exception of the Developer. Class A members shall be entitled to one vote for each Lot in which they hold the interests required for membership by Section 46. When more than one person holds such interest or interests in any Lot all such persons shall be members, and the vote for such Lot shall be exercised as they among themselves determine, but in no event shall more than one vote be cast with respect to any such Lot.

Class B members shall be the Developer as long as it owns any Lot in the Properties. The Class B member shall be entitled to a number of votes equal to the total number of Class A votes plus one; provided that the Class B membership shall cease and become converted to Class A membership on the happening of the following events, whichever occurs earlier:

(a) Two years after the first conveyance of a Living Unit.

(b) Upon voluntary conversion to Class A membership by the Developer.

From and after the happening of these events, whichever occurs earlier, the Class B member shall be deemed to be a Class A member entitled to one vote for each Lot in which it holds the interest required for membership under Section 46.

Transfer of Membership

48. Membership in the corporation shall be transferred as and only as an incident to the transfer of a Lot.

Assessments

49. The Board of Directors shall, from time to time, fix and determine the sum or sums necessary and adequate for the continued ownership, operation and maintenance of the Properties including its operating expenses, the payment for any items of betterments, and the establishment of appropriate reserve funds as the Board shall deem proper. That sum or sums shall include provision for property taxes and assessments (until such time as any of such taxes or assessments are made against the Lots individually, and thereafter as to such taxes or assessments, if any, as may be assessed against any Properties owned by the Association); insurance premiums for fire, windstorm and extended coverage insurance on the Association's property and improvements thereof (and such personal property of the Association as are part of its Common Properties), which may include a deductible provision, premiums for adequate public liability insurance as specified in the Declaration, legal and accounting fees, management fees, operating expenses of the Properties and this corporation, maintenance repairs and replacements of the Properties and this corporation, charges for utilities and water used in common for the benefit of the Properties, cleaning and janitorial service of the Common Properties, expenses or reserves for exterior painting maintenance of Living Units, any expenses and liabilities incurred by the corporation in connection with the indemnification of officers and directors provided for herein and in and about the enforcement of its rights or duties against the members or others, and the creation of reasonable contingency or reserve requirements for the protection of the members.

Regular assessments shall be paid by the members on a quarterly basis. The standard of assessments for the first year of operation (or pro rata part thereof) shall be as set forth in a projected operating budget certified by the Developer to be the then existing projected operating budget of the Properties. Said assessment shall be computed then and thereafter in the manner set forth in the Declaration of Covenants, Conditions and Restrictions. When the assessment is fixed by the Board of Directors, it shall be retroactive to the first day of that fiscal year and the members will be credited against any accrued monthly assessment charged for that year with the sums they have theretofore paid in that year. Monthly assessment charges once fixed shall continue until changed by the Board of Directors hereunder and shall be due and payable without notice or demand no later than the fifth (5th) day of each January, April, July and October. With respect to changed assessments and/or demands for retroactive arrearages, notice in writing must be given to each of the members thereof and payment will be due and payable without further or other notice within ten (10) days of the posting of such a notice as hereinabove provided for the service of notices.

It is understood between the members and the corporation that an assessment fixed hereunder is based upon the projection and estimate of the Board of Directors and may be in excess of or less than the sums required to meet the cash requirements of the Properties, in which event the Board of Directors by appropriate action taken at a meeting may increase or diminish the amount of said assessment and make such adjustments respecting the reserves as in their discretion is proper, including the assessment of each member of his proportionate share of any deficiency or the distribution to each member of his proportionate share of any excess of sums paid beyond the requirements of the Properties or its reasonable reserves as fixed by the Board of Directors.

The aforescribed assessment charges shall not include assessment for utilities separately charged and metered to each Living Unit and consumed therein. Nor shall said assessment include any charges for alterations, repairs, painting or maintenance within the interior of any Living Unit.

The budget shall be determined by the Board of Directors no later than the first week of the fourth month of the fiscal year.

On or before thirty (30) days prior to the meeting of the board at which a budget for the Association is to be considered for adoption by the Board of Directors, a copy thereof shall be mailed to all members of the Association together with a notice of the meeting at which the budget will be considered which notice shall state the time and the place of the meeting and that it is open to all members of the Association. The proposed annual budget shall be detailed and shall show the amounts budgeted by accounts and expense classification. If, at that meeting, a proposed budget is adopted requiring an assessment against the members in any fiscal year of an amount exceeding one hundred fifteen (115%) percent of the assessment levied for the prior year upon the written request of ten (10%) percent of the members of the Association, a special meeting of the members shall be held upon not less than ten (10) days' written notice to all members but within thirty (30) days of the date of the request for the meeting. At the special meeting the members may consider and enact a revision of the budget or recall any or all members of the Board of Directors and elect their successors. The Board of Directors may, in any event, propose a budget to the members at a meeting of the members or in writing and if that budget shall be approved by the membership at the special meeting aforesaid or by a majority of their whole number in writing, such budget shall not thereafter be re-examined by the unit owners in the manner hereinabove set forth.

In determining whether an assessment exceeds one hundred fifteen (115%) percent of the assessment in the prior year, there shall be excluded from such computation any provision for reasonable reserves made by the Board of Directors for repair or replacement or for anticipated expenses by the Association which are not expected to be incurred on a regular or annual basis nor shall such calculation include any amounts for betterments of the Common Property.

Special assessments, should they be required, shall be levied and paid in the same manner as heretofore provided for regular assessments. Special assessments can be of three kinds: (i) those chargeable to all members in the same proportions as regular assessments to meet shortages or emergencies; (ii) those assessed against one member alone (requiring unanimous vote of the board) to accomplish repairs or maintenance for which he is responsible within his Lot which he has failed to make, which situation impairs the value of or endangers the Common Properties or the development, or which are for expenses incident to the abatement of a nuisance within his Lot.

Assessments for capital improvements costing in excess of Nine Thousand (\$9,000.00) Dollars must be submitted to the membership for approval by majority vote. Capital improvements costing in excess of Ninety Thousand (\$90,000.00) Dollars must be approved by seventy (70%) percent of the members.

Any excess assessments received by the Association in any year shall be retained by the Association specifically for the account prorata of the members and applied to reduce the next year's assessment.

Default Under Assessments

50. In the event of a default by a member in the payment of any assessment payable by him, the Declaration of Covenants, Conditions and Restrictions rights and remedies provided by the liability of the member shall include liability for a reasonable attorney's fee and for court costs incurred by the corporation incident to the collection of such assessment or enforcement of its lien. If the corporation elects to enforce its lien by foreclosure, the member shall be required to pay a reasonable rental for the Lot pendente lite, to be fixed by the Board of Directors, and the

corporation shall be entitled to the appointment of a receiver to collect same. At any judicial sale held in the proceedings to enforce said lien, the corporation may bid in the Lot thereat and acquire and hold, lease, mortgage and convey the same, as the Board of Directors may determine. Nothing herein contained shall bar a suit to recover a money judgment for unpaid assessments without waiving the lien securing the same.

Responsibility for Repair and Maintenance of a Living Unit

51. The interior and all parts thereof of a Living Unit shall be kept in a good condition and repair at all times by and at the expense of the owner thereof and shall be maintained in a clean and safe condition and free of nuisance or commission of waste. Each owner will promptly comply with any requirements of the insurance underwriters of the Properties. Any failure to repair or replace within the walls of the Living Unit as may be required for good and proper and safe maintenance thereof and which endangers, or impairs the value of the buildings or the Common Properties, may be repaired or replaced by the corporation at the expense of the owner, to be collected by special assessment as heretofore provided, which assessment may include the cost of the corporation in and about the abatement of any nuisance kept and maintained by the owner therein; and a right of entry is granted to the corporation in and to any Living Unit to inspect same and/or make repairs or replacements thereto as may be required hereunder.

Nuisance

52. Each member shall be responsible for the use and occupation of his Living Unit in a quiet and orderly fashion so as not to disturb or endanger other members or their families or guests. Any nuisance, public or private, may be abated by the public authority or by court action by the corporation or any aggrieved member.

Books and Records

53. The corporation shall maintain accounting records according to good accounting practices and said records shall be open to inspection by members at reasonable times. Such records shall include:

- (a) The record of all receipts and expenditures.
- (b) An account for each Lot which shall designate the name and address of the owner, the amount of each assessment, the dates and amounts in which the assessment comes due, the amounts paid upon the account and the balance due.
- (c) A register for the names of any mortgage holders or lien holders on Living Units who have requested in writing that they be registered and to whom the corporation will give notice of default in case of nonpayment of assessments. No responsibility by the corporation is assumed with respect to said register except that it will give notice of default to any registered mortgagee or lienor therein, if so requested by said mortgagee or lienor.

The secretary of this corporation shall act as the transfer agent to record all transfers and/or registrations in the aforescribed books.

Authority of Owner

54. No owner or member, except as an officer of this corporation, shall have any authority to act for the corporation or bind it.

Amendments of Bylaws or Articles of Incorporation

55. The Bylaws of said corporation and/or the Articles of Incorporation may be amended, altered, rescinded, or added to by resolution adopted by a two-thirds (2/3) vote of the Board of Directors of this corporation at any duly called meeting of said board and by a two-thirds (2/3) vote of the members present at any duly convened meeting of the members; provided, however, that no such meeting shall be deemed competent to consider or amend, alter, rescind or add to these Bylaws or said Articles of Incorporation unless prior written notice of said meeting specifying the proposed change has been given to all directors and members at least ten (10) days prior to the meeting or said notice is appropriately waived by written waiver. Any member of this corporation or any member of the board of this corporation may propose an amendment to these Bylaws or to the Articles of Incorporation to the board and the membership. Provided further, that as long as the initial Board of Directors holds office, any changes in the Bylaws and/or the Articles of Incorporation may be made by a two-thirds (2/3) vote of the Board of Directors of the corporation.

Construction

56. Wherever the masculine singular form of the pronoun is used in these Bylaws, it shall be construed to mean masculine or feminine, singular or plural, wherever the context so requires, and shall include and apply to a corporation.

Use

57. The property and facilities of the corporation shall at all times be restricted in use to the housing and related needs of the lawful occupants of the Living Units and their guests.

Validity of Bylaws

58. If any Bylaw or part thereof shall be adjusted invalid, the same shall not affect the validity of any other Bylaw or part thereof.

Rules and Regulations

59. The Board of Directors may from time to time adopt rules and regulations for the operation of the Properties and all members shall abide thereby; provided, however, that said rules and regulations shall be equally applicable to all members similarly situated and uniform in their application and effect.

Indemnification

60. Every director and every officer of the Association shall be indemnified by the Association against any and all expenses, and liabilities, including counsel fees, reasonably incurred by or imposed upon him in connection with any proceeding or any settlement of any proceeding to which he may be a party or in which he may become involved by reason of his being or having been a director or officer of the Association, whether or not he is a director or officer at the time such expenses are incurred except when a director or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties; provided that in the event of a settlement, the indemnification shall apply only when the Board of Directors approves such settlement and reimbursement as being for the best interest of the Association. The foregoing right of indemnification shall be in addition to and not exclusive of all other rights to which such director or officer may be entitled, and such director or officer shall be entitled to any indemnification authorized by any provision of the laws of the State of Florida for corporations generally and for nonprofit corporations.

Management Agreement

61. The Board of Directors may enter into a Management Agreement for the operation, maintenance and management of the affairs of the Association.

Fidelity Bonds

62. All officers and directors of the Association who control or disburse Association funds shall be bonded in an amount not less than twenty-five (25%) percent of the Association's last annual budget. The cost of the bond shall be a common expense.

GOLDEN RAINTREE II HOMEOWNERS'
ASSOCIATION, INC.

(CORPORATE SEAL)

By _____
Its President

ATTEST:

Secretary

Declaration of Covenants, Conditions,
and Restrictions of The Township

DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS
OF
THE TOWNSHIP

This Declaration of Covenants, Conditions and Restrictions made by TARTAN MINTO CORPORATION, a Florida corporation, hereinafter referred to as "Declarant".

WITNESSETH:

WHEREAS, the Declarant on the date hereof is the owner of certain real property located in Broward County, Florida, described as follows:

See Exhibit "A" attached hereto; and

WHEREAS, Declarant intends to develop the real property described in Exhibit "A" subject to certain protective covenants, conditions, restrictions, reservations, liens and charges as hereinafter set forth.

NOW, THEREFORE, Declarant hereby declares that all of the real property described in Exhibit "A" attached hereto shall be held, sold, conveyed, leased, mortgaged and otherwise dealt with subject to the easements, covenants, conditions, restrictions, reservations, liens and charges as hereinafter set forth, all of which are for the purpose of enhancing and protecting the value, desirability and attractiveness of said real property. Said easements, covenants, conditions, restrictions, reservations, liens and charges shall run with the real property described in Exhibit "A" attached hereto, shall be binding upon all parties having and/or acquiring any right, title or interest in the real property described therein or in any part thereof, and shall inure to the benefit of each and every person or entity, from time to time, owning or holding an interest in said real property.

ARTICLE I

DEFINITIONS

Section 1. The following words and terms when used in this Declaration or any supplemental declaration hereto (unless the context shall clearly indicate otherwise) shall have the following meanings:

A. "Articles" and "By-Laws" shall mean and refer to the Articles of Incorporation and the By-Laws of the Association as they may exist from time to time.

B. "Association" or "Master Association" shall mean and refer to The Township Community Master Association, Inc., a Florida non-profit corporation, its successors and assigns.

C. "Commercial Common Property" shall mean and refer to those tracts of land, together with any improvements thereon, which are actually deeded or leased to the Association and designated in said deed or lease as "Commercial Common Property". The term "Commercial Common Property" shall also include any personal property acquired by the Association if said property is designated as "Commercial Common Property" in the bill of sale or instrument transferring same. Any land or personal property which is leased by the Association for use as Commercial Common Property shall lose its character as Commercial Common Property upon the expiration of such lease.

D. "Commercial Expenses" shall mean and refer to that portion of expenditures for cleanup, maintenance, operation and other services required or authorized to be performed by the Association which is attributable to Commercial Common Property.

E. "Commercial Site" shall mean any unimproved parcel of land within the Properties intended for use as a site for Commercial Units. A Commercial Site shall not include property upon which improvements are to be built which also qualifies as a Multi-Family Tract. For the purposes of this Declaration, a parcel of land shall not be deemed a Commercial Site until such time as it has been conveyed by the Company to a third party under covenants, conditions and restrictions limiting such property to commercial use.

F. "Commercial Unit" shall mean any improved parcel of land within the Properties, which is intended and designed to accommodate commercial enterprises to serve the public, including but not limited to business and professional offices, facilities for the retail sale of goods and services, banks and other financial institutions, restaurants, hotels, motels, inns, theaters, lounges, marinas, transportation terminals or stations, automobile parking facilities and gasoline stations. For the purposes of this Declaration, any such parcel of land shall not be deemed to be improved until a certificate of occupancy has been issued by the appropriate governmental authorities for the Commercial Unit to be constructed on said parcel, or until said Commercial Unit is determined by the Association, in its reasonable discretion, to be substantially complete.

G. "Common Property" shall mean and refer to those tracts of land, together with any improvements thereon, which are actually deeded or leased to the Association and designated in said deed or lease as "Common Property." The term "Common Property" shall also include any personal property acquired by the Association if said property is designated as "Common Property" in the bill of sale or instrument transferring same. Any land or personal property which is leased by the Association for use as Common Property, shall lose its character as Common Property upon the expiration of such lease. Common Property shall not include those tracts of land falling within the definition of "Residential Common Property" or "Commercial Common Property" set forth below.

H. "Company" or "Declarant", shall mean Tartan Minto Corporation, a Florida corporation or, its successors and assigns to the rights of Tartan Minto Corporation as Company hereunder.

I. "Declaration" shall mean and refer to this Declaration of Covenants, Conditions and Restrictions and include the same as it may, from time to time, be amended.

J. "Development Plan" shall mean and refer to any planned unit development approved by appropriate government agencies for the development of The Township. Since the future development of The Township is subject to revision and change by the Company, all references to the "Development Plan" shall be references to the latest approved revision thereof.

K. "Family Dwelling Unit" shall mean and refer to any improved property intended for use as a single family dwelling, including, but not limited to, any single family detached dwelling, patio home, condominium unit, garden

home, townhouse unit, cooperative apartment unit, or rental apartment unit located within the Properties. For the purposes of this Declaration, any such single family dwelling shall not be deemed to be improved until a certificate of occupancy has been issued by the appropriate governmental authorities for the single family dwelling to be constructed on said parcel, or until said single family dwelling is determined by the Association, in its reasonable discretion, to be substantially complete.

L. "General Expenses" shall mean and refer to that portion of expenditures for cleanup, maintenance, operation and other services required or authorized to be performed by the Association which is not attributable to Residential Common Property, Recreational Facilities or Commercial Common Property.

M. "Institutional Lender" shall mean and refer to the owner and holder of a mortgage encumbering a Residential Lot, Family Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit or Undivided Land, which owner and holder of said mortgage shall be a bank, builder, life insurance company, federal or state savings and loan association, real estate or mortgage investment trust or a lender generally recognized in the community as an institutional lender.

N. "Member" shall mean and refer to all those Owners who are Members of the Association as provided in Article III hereof.

O. "Multi-Family Tract" shall mean any unimproved parcel of land located within the Properties, intended for use as a site for Multi-Family Units. For the purposes of this Declaration, a parcel of land shall not be deemed a "Multi-Family Tract" until such time as it has been conveyed by the Company to a third party under covenants, conditions and restrictions limiting such property to multi-family use.

P. "Multi-Family Unit" shall mean any Family Dwelling Unit, the Owner of which by acceptance of a deed or other instrument of conveyance thereto automatically accepts membership in a Sub-Association.

Q. "Owner" shall mean and refer to the Owner as shown by the real estate records in the Office of the Clerk of the Circuit Court of Broward County, Florida, whether it be the Company, one or more persons, firms, associations, corporations, or other legal entities, of fee simple title to any Residential Lot, Family Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit or Undivided Land, located within the Properties. Owner shall not mean or refer to the holder of a mortgage or security deed its successors or assigns, unless and until such holder has acquired title pursuant to foreclosure or a proceeding or deed in lieu of foreclosure; nor shall the term "Owner" mean or refer to any lessee or tenant of an Owner.

R. "Properties" or "The Township" shall mean and include the real property described in Exhibit "A" attached hereto and, when added in accordance with the terms and conditions hereof, shall also include such real property as is in the future subjected to this Declaration under the provisions of Article II hereof.

S. "Recreational Facilities" shall mean and refer to those tracts of land, together with any improvements thereon, such as a clubhouse, pool and tennis facilities which are actually deeded or leased to the Association and designated in such deed or lease as "Recreational Facilities. The term

"Recreational Facilities" shall also include any personal property acquired by the Association if said property is designated as "Recreational Facilities" in the bill of sale or instrument transferring same. Any land or personal property which is leased to the Association for use as Recreational Facilities shall lose its character as Recreational Facilities upon the expiration of such lease.

T. "Residential Common Property" shall mean and refer to those tracts of land, together with any improvements thereon, such as grassy areas, pathways, beaches and lakes and canals not owned by the City of Coconut-Creek which are actually deeded or leased to the Association and designated in said deed or lease as "Residential Common Property". Pending final development of The Township, the Company reserves the right to expand and contract the shorelines of any lakes or beaches and thereby to modify the boundaries of same. Accordingly, the exact location of any boundary between any lakes or beaches and any contiguous properties shall not become fixed until final development of all properties contiguous to and surrounding any lakes or beaches. The term "Residential Common Property" shall also include any personal property acquired by the Association if said property is designated as "Residential Common Property" in the bill of sale or instrument transferring same. Any land or personal property which is leased by the Association for use as Residential Common Property shall lose its character as Common Property upon the expiration of such lease.

U. "Residential Expenses" shall mean and refer to that portion of expenditures for cleanup, maintenance, operation and other services required or authorized to be performed by the Association which is attributable to Residential Common Property and Recreational Facilities.

V. "Residential Lot" shall mean any unimproved parcel of land located within the Properties which is intended for use as a site for a Single-Family Unit. For the purposes of this Declaration, a parcel of land shall not be deemed a "Residential Lot" until such time as it has been conveyed by the Company to a third party under covenants, conditions and restrictions limiting such property to single-family use.

W. "Single-Family Unit" shall mean and refer to any Family Dwelling Unit which is not a Multi-Family Unit.

X. "Sub-Association" shall mean and refer to any association which may hereafter be formed to manage and operate Family Dwelling Units or Commercial Units.

Y. "Undivided Land" shall mean and refer to all unimproved parcels of land within the Properties which do not qualify as Residential Lots, Multi-Family Tracts or Commercial Sites. For the purposes of this Declaration, the following classifications of Property shall not be deemed "Undivided Land" and shall be expressly exempted from the definition thereof:

(1) All lands designated on the Development Plan for intended use, or by actual use, if applicable, for outdoor recreation facilities; operating farms, nurseries or animal pastures; woodland, marsh and swamp conservancies; places of worship; community, civic, and cultural clubs; parks, libraries, nursery and other schools or instructional centers; non-profit medical centers, hospitals,

clinics, nursing, care, rest and convalescent homes; and charitable institutions.

(2) All lands conveyed to the Association including, but not limited to, those lands designated, in any way, as Common Property, Residential Common Property, Commercial Common Property or Recreational Facilities.

ARTICLE II

PROPERTY SUBJECT TO DECLARATION

Section 1. Initial Property. The real property which shall be held, transferred, sold, conveyed, given, donated, leased and/or occupied subject to this Declaration is described in Exhibit "A" attached hereto and made a part hereof by reference. The Company intends to develop The Township in accordance with the Development Plan, but hereby reserves the right to review and modify the Development Plan from time to time in its sole discretion and at its option.

The Company shall not be required to follow any predetermined order of improvement and development within the Township; and it may bring within this Declaration additional lands, and develop them before completing the development of The Township. The Company shall have the full power to add to, subtract from or make changes in the Development Plan regardless of the fact that such actions may alter the relative voting strength of the various types of membership of the Association.

Section 2. Additional Property. Additional property may become subject to this Declaration in the following manner:

A. Future Phases. The Company shall have the right, without any consent of the Association being required to subject to this Declaration, additional properties as future phases of The Township. The additional property shall automatically become subject to this Declaration by filing in the Public Records of Broward County, Florida, a Supplemental Declaration of Covenants, Conditions and Restrictions with respect to the additional property (the "Supplemental Declaration"). The Supplemental Declaration may contain such complementary additions and modification of the covenants, conditions and restrictions contained in this Declaration as may be necessary or convenient, in the judgment of the Company, to reflect the different character, if any, of the additional property. The additional property which the Company may subject to this Declaration is more particularly described in Exhibit "B" attached hereto and made a part hereof by reference; provided, however, that the Company is not obligated to subject to this Declaration any or all of the real property described in Exhibit "B" and no portion of said real property shall in any way be subject to this Declaration unless and until a Supplemental Declaration therefor is duly filed in accordance with this Declaration.

B. Other Additions. Upon approval in writing of the Declarant or Association, the owner of any other real property, who desires to subject it to this Declaration, may file or record a Supplemental Declaration of Covenants, Conditions and Restrictions with respect to such additional property which Supplemental Declaration, if duly executed by both said owner and the declarant, shall extend the operation and effect of this Declaration to such additional property. The Supplemental Declaration may contain any such complementary additions and modifications of the covenants, conditions and restrictions contained in this Declaration as may be necessary or convenient, in the judgment of the Declarant, to

reflect the different character, if any, of the added properties, but such modifications shall have no effect on the real property described in Exhibits "A" or "B" except as may be consistent with this Declaration.

C. Mergers. Upon a merger or consolidation of the Association with another association, the Association's properties, rights and obligations may, by operation of law, be transferred to the surviving or consolidated association, or, in the alternative, the properties, rights and obligations of the other association may, by operation of law, be added to the properties of the Association as a surviving corporation pursuant to a merger. Except as hereinafter provided, no such merger or consolidation shall revoke, change or add to the covenants, conditions and restrictions established by this Declaration.

ARTICLE III

MASTER ASSOCIATION

Section 1. Membership. Every Owner, including the Company, shall be a Member of the Association, and by acceptance of a deed or other instrument evidencing his ownership interest, each Owner accepts his membership in the Association, acknowledges the authority of the Association as herein stated, and agrees to abide by and be bound by the provisions of this Declaration or any Supplemental Declaration, the Articles of Incorporation, the By-Laws and other rules and regulations of the Association. In addition to the foregoing, the family, guests, invitees and tenants of said Owners shall, while in or on the Property, abide and be bound by the provisions of this Declaration or any Supplemental Declaration, the Articles of Incorporation, the By-Laws and other rules and regulations of the Association.

Section 2. Types of Membership. Membership in the Association shall consist of the following three (3) classes, each with distinct rights and privileges:

Class "A" - Class "A" Members shall be all those Owners, including the Company, of Residential Lots and Single-Family Units.

Class "B" - Class "B" Members shall be all those Owners, including the Company, of Multi-Family Units.

Class "C" - Class "C" Members shall be all those Owners, including the Company, of Multi-Family Tracts, Commercial Sites, Commercial Units, and Undivided Lands.

Section 3. Change of Membership. Change of membership in the Association shall be established by recording in the Public Records of Broward County, Florida, a deed or other instrument conveying record fee title to any Residential Lot, Family-Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit or Undivided Land and by the delivery to the Association of a copy of such recorded instrument. The Owner designated by such instrument shall, by his acceptance of such instrument, become a Member of the Association, and the membership of the prior owner shall be terminated. In the event that a copy of said instrument is not delivered to the Association, said Owner shall become a Member, but shall not be entitled to voting privileges enjoyed by his predecessor in interest. The foregoing shall not, however, limit the Association's powers or privileges. The interest, if any, of a Member in the funds and assets of the Association shall not be assigned, hypothecated or transferred in any manner except as an appurtenance to his real property. Membership in the Association by all Owners shall be compulsory and shall continue, as to each Owner, until such time as such Owner transfers or conveys of record his interest in the real property upon which his membership is based or until said interest is transferred or conveyed by operation of law, at which time the membership shall automatically be conferred upon the transferee. Membership shall be appurtenant

to, run with, and shall not be separated from the real property interest upon which membership is based.

Section 4. Voting Rights. The number of votes which may be cast on all matters on which the membership is entitled to vote shall be determined as follows:

A. Each Class "A" Member shall be entitled to cast one (1) vote for each Residential Lot or Single-Family Unit owned by said Member.

B. The voting rights of all Class "B" Members shall be exercised on their collective behalf by the Sub-Association to which they belong, except that if a Class "B" Member does not belong to a Sub-Association, he shall be entitled to one vote for each Multi-Family Unit owned by said Member. A Sub-Association in the collective exercise of Class "B" voting rights shall be entitled to cast the number of votes equal to the number of Multi-Family Units owned by its Members.

C. Except as may be provided elsewhere in this Declaration, the Articles or the By-Laws, Class "C" Members shall not be entitled to vote. When entitled to vote, Class "C" Members who are Commercial Unit Owners shall be entitled to cast one (1) vote for each Commercial Unit owned by said Member, and Class "C" Members who are Multi-Family Tract or Commercial Site Owners shall be entitled to cast one (1) vote for each Multi-Family Unit or Commercial Unit that said Members' property will have once improved in accordance with the Development Plan. When entitled to vote, Class "C" Members who are Undivided Land Owners shall be entitled to cast one (1) vote for each Family Dwelling Unit or Commercial Unit that said Members' property will have once improved in accordance with the Development Plan. Size and square footage of Multi-Family Units or Commercial Units are irrelevant considerations for purposes of this subparagraph C.

D. Should any Class "A" Member be the Owner of more than one (1) Residential Lot or Single-Family Unit he shall be entitled to cast one (1) vote for each such Lot or Unit, provided however, that any Class "A" Member who also qualifies under this Article as a Class "B" Member shall, notwithstanding this fact, be allowed to exercise both Class "A" and Class "B" membership rights, and the number of votes which he may cast shall be determined with regard to his ownership of both Class "A" and Class "B" property.

E. When any property entitling the Owner to membership in the Association is owned of record in the name of two or more persons or entities, whether fiduciaries, joint tenants, tenants in common, tenants in partnership or in any other manner of joint or common ownership, or if two or more persons or entities have the same fiduciary relationship respecting the same property, then unless the instrument or order appointing them or creating the tenancy otherwise directs and it or a copy thereof is filed with the secretary of the Association, such owner shall select one official representative to qualify for voting in the Association and shall notify the Secretary of the Association of the name of such individual. The vote of such individual shall be considered to represent the will of all the owners of that property.

F. The voting rights of any Owner may be assigned by an Owner to his lessee who has entered into a lease with a term of two (2) years or more; provided, however, that the Owner may not assign to such lessee any vote or votes not attributable to the property actually leased by such lessee.

G. Any other provision of this Declaration to the contrary notwithstanding, any action proposed to be taken by the Association which has a material adverse impact upon the Development Plan or commercial activities within the Properties shall require approval by a majority of the votes of the Class "C" Members voting and, in addition, a majority of the votes of the Class "A" and "B" Members voting. The Company, in its reasonable discretion, shall determine whether any proposed action by the Association will have a material adverse impact.

Section 5. Board of Directors. The Association shall be governed by a Board of Directors as provided in the Articles or By-Laws of the Association.

Section 6. Quorum Required for Any Action Authorized at Regular or Special Meetings of the Association. The quorum required for any action which is subject to a vote of the Members at any meeting of the Association shall be as is provided in the Articles or By-Laws of the Association except as is otherwise specifically provided in this Declaration.

Section 7. Proxies. All Members of the Association may vote and transact business at any meeting of the Association by Proxy as provided in the By-Laws of the Association.

ARTICLE IV

FUNCTIONS OF MASTER ASSOCIATION

Section 1. Required Services. The Association shall be required to provide the following services:

A. cleanup, landscaping, landscaping maintenance and other maintenance of all Common Property, Residential Common Property, Commercial Common Property, Recreational Facilities and all city, county or municipal properties which are located within or in a reasonable proximity to the Properties to the extent that their deterioration would adversely affect the appearance of the Properties as a whole and the standard of maintenance by said city, county or municipality is less than that desired by the Association. The Association shall adopt standards of cleanup, landscaping, maintenance and operation required by this and other subsections within this Section 1 which are, at the very least, as stringent as those adopted and/or followed by other first-class developments similar to The Township. The Company shall, in its reasonable discretion, determine whether such standards adopted by the Association meet the requirements herein.

B. cleanup, landscaping, landscaping maintenance and other maintenance of any real property located within The Township upon which the Association has accepted an easement for said maintenance by duly recording an instrument granting said easement to the Association executed and delivered by the Owner of said Property to the Association.

C. cleanup, dredging, treatment and other maintenance of beaches, lakes and canals owned by the Association within the Properties, as well as cleanup, dredging, treatment and other maintenance of canals not owned by the Association within the Properties if and to the extent permitted by the County and to the extent that cleanup and maintenance of such canals by the city, county or municipal entity does not comport with standards desired by the Association and would adversely affect the appearance of the Properties as a whole. Maintenance as used herein shall include, but not be limited to, the preservation of any shorelines or beaches together with

lakes as bodies of water in an ecologically sound condition to be used for such water activities as may be determined and allowed from time to time by the Association. The Company shall, in its reasonable discretion, determine whether appearance of the properties described in this subsection or subsection A above would be adversely affected.

D. operation of Recreation Facilities in accordance with the rules, regulations and standards adopted by the Association from time to time.

E. insect and pest control to the extent that it is necessary or desirable in the judgment of the Association to supplement the service provided by the state and local governments.

F. taking any and all actions necessary to enforce all covenants, conditions and restrictions affecting the Properties and to perform any of the functions or services delegated to the Association in any covenants, conditions or restrictions applicable to the Properties or in the Articles or By-Laws.

G. to conduct business of the Association, including but not limited to administrative services such as legal, accounting and financial, and communication services informing Members of Activities, Notice of Meetings, and other important events.

H. to purchase general liability and hazard insurance covering improvements and activities on the Common Property, Residential Common Property, Commercial Common Property and Recreational Facilities.

I. to establish and operate the Architectural Review Committee as hereinafter defined in the event that the Association is designated for such purpose.

Section 2. Authorized Services. The Association shall be authorized, but not required, to provide the following services:

A. lighting of roads, sidewalks and walking paths throughout the Properties.

B. fire protection and prevention.

C. garbage and trash collection and disposal.

D. to conduct recreation, sport, craft, and cultural programs of interest to Members, their families, tenants and guests.

E. to support the operation of transportation facilities serving the Properties.

F. to construct improvements on Common Property, Residential Common Property, Commercial Common Property or Recreational Facilities as may be required to provide the services as authorized in this Section 2 of this Article.

G. protection and security, including but not limited to the employment of security guards, maintenance of control centers for the protection of persons and property within the Properties, and assistance in the apprehension and prosecution of persons who violate the laws of Florida within the Properties.

Purposed Changes to the Bylaws of Golden Raintree II Home Owners Association, Inc.

Page 2, Par. 14

Which reads: - and shall qualify. "The directors shall be elected at the annual meeting of the membership, and each director shall be elected to serve until the next annual meeting of the members and or until his successor shall be elected and qualify."

To read: - and shall quality. "The directors shall be elected at the annual meeting of the membership or One [1] year from their date of installation, as chosen by the presiding board and each director shall be elected to serve until the next annual meeting of the members or until one [1] year from the date of their installation, as chosen by the presiding board and or until his successor shall be elected and qualify."

H. maintenance of electronic and other security devices, subject to the Declarant's rights in this area as reserved in Section 3, Article VI of this Declaration.

Section 3. Obligation of the Association. The Association shall be obligated to carry out the functions and services specified in Section 1 of this Article to the extent such maintenance and services can be provided with the proceeds first from annual assessments and then, if necessary, from special assessments. The functions and services specified in Section 2 of this Article to be carried out or offered by the Association at any particular time shall be determined by the Board of Directors of the Association taking into consideration remaining proceeds of annual assessments and the needs of the Members of the Association. The functions and services which the Association is authorized to carry out or to provide, may be added to or reduced at any time upon the affirmative vote of a majority of the Board of Directors.

Section 4. Mortgage and Pledge. The Board of Directors of the Association shall have the power and authority to mortgage the property of the Association and to pledge the revenues of the Association as security for loans made to the Association which loans shall be used by the Association in performing its functions.

Section 5. Conveyance to Association. The Association shall be obligated to accept any and all deeds of conveyance delivered to it by Declarant, which deeds convey title to Common Property, Recreational Facilities, Residential Common Property and/or Commercial Common Property.

ARTICLE V

DECLARANT CONTROL OF ASSOCIATION

Notwithstanding anything herein to the contrary, until January 1, 1995 or an earlier date as the Company may decide, the Company shall have a total number of votes equal to not less than the number of votes cumulatively held by all other Members, plus one (1); providing it with a majority of the vote of the membership. Upon expiration of the stated period, the Company shall continue to possess voting rights incident to ownership as described in Article III hereinabove.

ARTICLE VI

EASEMENTS

Section 1. Appurtenant Easements. Declarant hereby grants to the Owner of each Family Dwelling Unit and Residential Lot, their guests, lessees and invitees, as an appurtenance to the ownership of fee title interest to same and subject to this Declaration, the Articles and By-Laws of the Master Association and the rules and regulations promulgated by the Master Association, a perpetual nonexclusive easement for ingress and egress over, across and through and for the use and enjoyment of all Recreational Facilities and Residential Common Property, such use and enjoyment to be shared in common with the other Owners of Family Dwelling Units and Residential Lots, their guests, lessees and invitees as well as guests, lessees and invitees of the Declarant. Declarant further grants to all Owners, their guests, lessees and invitees, as an appurtenance to the ownership of fee title interest to certain defined real property within the Properties and subject to this Declaration, the Articles and By-Laws of the Master Association and the rules promulgated by the Master Association, a perpetual nonexclusive easement for ingress and egress over, across and through and for the use and enjoyment of

all Common Property and Commercial Common Property, such use and enjoyment to be shared in common with the other Owners, their guests; lessees and invitees as well as the guests, lessees and invitees of the Declarant.

Section 2. Utility Easement. The Declarant reserves to itself, its successors or assigns, a perpetual easement upon, over, under and across the Properties for the purpose of maintaining, installing, repairing, altering and operating sewer lines, water lines, waterworks, sewer works, force mains, lift stations, water mains, sewer mains, water distribution systems, sewage disposal systems, effluent disposal systems, pipes, weirs, syphons, valves, gates, pipelines, cable television service, electronic security system and all machinery and apparatus appurtenant thereto to all of the foregoing as may be necessary or desirable for the installation and maintenance of utilities servicing all Owners of Family Dwelling Units and Commercial Units in the Project and servicing the Common Property, Recreational Facilities, Residential Common Property and Commercial Common Property, all such easements to be of a size, width and location as Declarant, in its discretion, deems best but selected in a location so as to not unreasonably interfere with the use of any improvements which are now, or will be, located upon the Properties.

Section 3. Declarant Easement. The Declarant hereby reserves to itself, its successors and assigns, a perpetual easement, privilege and right in and to, over, under, on and across the Common Property, Recreational Facilities, Residential Common Property and Commercial Common Property for ingress and egress as required by its officers, directors, employees, agents and/or independent contractors and invitees in order to show said properties and facilities to prospective purchasers and other invited guests, post signs and maintain sales offices; provided, however, that such access and use do not unnecessarily interfere with the reasonable use and enjoyment of these properties and facilities by the Owners. Notwithstanding anything herein to the contrary, Declarant further reserves unto itself, its successors and assigns, the exclusive right to operate in The Township a cable television system and electronic security system, including all services and facilities related thereto, as well as a perpetual easement upon, over, under and across the Properties for the purpose of maintaining, installing, repairing, altering and operating said cable television service and electronic security system.

Section 4. Service Easement. Declarant hereby grants to delivery, pickup and fire protection services, police and other authorities of the law, United States mail carriers, representatives of electrical, telephone, cable television and other utilities authorized by the Declarant, its successors or assigns to service the Properties, and to such other persons as the Declarant from time to time may designate, the nonexclusive, perpetual right of ingress and egress over and across the Common Property, Recreational Facilities, Residential Common Property and Commercial Common Property for the purposes of performing their authorized services and investigation.

Section 5. Extent of Easements. The rights and easements of enjoyment created hereby shall be subject to the following:

A. The right of the Company or the Association, in accordance with its By-Laws, to borrow money from the Company or any other lender for the purpose of improving and/or maintaining the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property and providing the services authorized herein and, in aid thereof, to mortgage said properties;

B. The right of the Association, as provided in its By-Laws, to suspend the rights and easements of enjoyment of any Member or any tenant of any Member for any period during which any assessment remains unpaid, and for any period, not

to exceed sixty (60) days, for any infraction of its published rules and regulation, it being understood that any suspension for either non-payment of any assessment or breach of any rules and regulations of the Association shall not constitute a waiver or discharge of the Member's obligation to pay the assessment, provided, however, that the Association shall not suspend the right to use any roads belonging to the Association subject, however, to the rules and regulations of the Association for such use, and provided further that the Association may not suspend any rights and easements reserved herein by the Declarant;

C. The right of the Association to charge reasonable admission and other fees for the use of the Recreational Facilities, provided that such tolls and fees shall not apply to Owners and their lessees or the guests, lessees and invitees of the Company unless provided otherwise in the rules and regulations adopted by the Association from time to time.

D. The Board of Directors of the Association shall have the power to place any reasonable restrictions upon the use of any roadways owned by the Association including, but not limited to, the maximum and minimum speeds of vehicles using said roads, all other necessary traffic and parking regulations, and the maximum noise levels of vehicles using said roads. The fact that such restrictions on the use of such roads shall be more restrictive than the laws of any state or local government having jurisdiction over the Properties shall not make such restrictions unreasonable.

E. The right of the Association to give, dedicate or sell all or any part of the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property (including leasehold interest therein) to any public agency, authority, or utility or private concern for such purposes and subject to such conditions as may be determined by the Association, provided that no such gift or sale or determination of such purposes or conditions shall be effective unless the same shall be authorized by the affirmative vote of three-fourths (3/4) of the votes cast at a duly called meeting of the Members of the Association, (including three-fourths (3/4) of the votes of Class "C" Members where such transfer involves Commercial Common Property) and unless written notice of the meeting and of the proposed agreement and action thereunder is sent at least thirty (30) days prior to such meeting to every Member entitled hereunder to vote. A true copy of such resolution together with a certificate of the results of the vote taken thereon shall be made and acknowledged by the President or Vice-President and Secretary or Assistant Secretary of the Association and such certificate shall be annexed to any instrument of dedication or transfer affecting the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property, prior to the recording thereof. Such certificate shall be conclusive evidence of authorization by the Members.

Section 6. Further Restrictions. Nothing other than storm water may be discharged into any lake, canal, or other body of water located within or adjacent to the Properties. Any device through which water is drawn other than a pumping device from any lake, canal, or other body of water onto or within any Residential Lot, Multi-Family Tract, Commercial Site, Undivided Land, Family Dwelling Unit or Commercial Unit must not be visible or pose a hazard to navigation or water recreation. The construction and/or installation of any such device through which water is drawn shall be subject to the prior written approval of the Architectural Review Committee as hereinbelow established in Article VIII of this Declaration.

ARTICLE VII

ASSESSMENTS

Section 1. Creation of the Lien and Personal Obligations of Assessments. The Company covenants, and each Owner of any Residential Lot, Family Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit, or Undivided Land shall by acceptance of a deed therefore, regardless of whether it shall be so expressed in any such deed or other conveyance, be deemed to covenant and agree to all the terms and provisions of this Declaration and to pay to the Association: (1) annual assessments (2) special assessments and (3) individual assessments, all fixed, established and collected from time to time as hereinafter provided. The annual, special and individual assessments together with such interest thereon and costs of collection therefor shall be a charge and continuing lien as provided herein on the real property and improvements thereon of the Owner against whom each such assessment is made. Each such assessment, together with such interest thereon and cost of collection, shall also be the personal obligation of the person who was the Owner of such real property at the time when the assessment first became due and payable. The liability for assessments may not be avoided by waiver of the use or enjoyment of any Common Property, Commercial Common Property, Residential Common Property or Recreational Facilities or by the abandonment of the property against which the assessment was made. In the case of co-ownership of a Residential Lot, Family Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit, or any Undivided Land, all of such co-Owners shall be jointly and severally liable for the entire amount of the assessment.

Section 2. Purpose of Annual Assessments. The annual assessments levied by the Association shall be used exclusively for the improvement, maintenance, enhancement and operation of the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property and to provide services which the Association is authorized or required to provide including, but not limited to, the payment of taxes and insurance thereon, construction of improvements, repair, replacement, payment of the costs to acquire labor, equipment, materials, management and supervision, necessary to carry out its authorized functions, and for the payment of principal, interest and any other charges connected with loans made to or assumed by the Association for the purpose of enabling the Association to perform its authorized or required functions. The Association may establish reserve funds to be held in reserve in an interest drawing account or investments as a reserve for (a) major rehabilitation or major repairs, and (b) for emergency and other repairs required as a result of storm, fire, natural disaster or other casualty loss. Each year the Association may not contribute more than ten percent (10%) of its receipts from its annual assessments to said account.

Section 3. Initial Period. Until December 31, 1982, an annual assessment shall be levied by the Association only as follows:

A. One Hundred Twenty Dollars (\$120.00) for each Family Dwelling Unit and Residential Lot.

B. For each Multi-Family Tract, One Hundred Twenty Dollars (\$120.00) multiplied by the maximum number of Multi-Family Units allowed under the final site plan of said Multi-Family Tract.

After December 31, 1982, annual assessments shall be levied and determined in accordance with Section 6 of this Article VII.

Section 4. Annual Budget. The Association shall prepare an annual budget not less than thirty (30) days in advance of the commencement of each fiscal year which shall project the estimated total expenditures for the services set forth in Section 2 above for the forthcoming year, and shall apportion the said budget among the General Expenses, Residential Expenses and Commercial Expenses. The Association shall, at the same time as it prepares the annual budget, prepare a schedule which sets forth the amount of the annual assessment for each Owner. Notwithstanding anything herein to the contrary, for the initial period described in Section 3 hereinabove of this Article VII, the Association shall estimate the deficit, if any, between said budget and annual assessments projected for the coming year. The Company shall, in twelve (12) equal monthly installments, contribute an amount of money to the Association sufficient to eliminate said deficit; provided, however, said contribution shall be reduced by the surplus, if any, between said budget and annual assessment for the previous month.

Section 5. Types of Property. Only for purposes of this Article VII and Article X, Section 10, all real property of Owners shall be classified into three (3) groups:

A. Group 1. Group 1 property shall consist of all Family Dwelling Units, Residential Lots and Multi-Family Tracts.

B. Group 2. Group 2 property shall consist of all Commercial Units and Commercial Sites.

C. Group 3. Group 3 property shall consist of all Undivided Lands.

Section 6. Proportion and Amount of Annual Assessments. Annual assessments for Group 1, Group 2 and Group 3 property Owners shall be determined as follows:

A. Each Group 1 property Owner shall pay an annual assessment equal to the sum of his proportionate share of the General Expenses plus his proportionate share of the Residential Expenses. The proportionate share of General Expenses for each Group 1 property Owner shall be determined by multiplying the General Expenses by a fraction, the numerator of which is equal to the assessed value of all Group 1 property owned by such Owner, and the denominator of which is equal to the total assessed value of all Group 1 and Group 2 property owned by all Owners. The proportionate share of Residential Expenses for each Group 1 property Owner shall be determined by multiplying the Residential Expenses by a fraction, the numerator of which is equal to the assessed value of all Group 1 property owned by such Owner, and the denominator of which is equal to the total assessed value of all Group 1 property owned by all Owners. For the purposes herein, "assessed value" shall refer to the most recent tax assessment value on the tax rolls of Broward County, Florida as of January 1 of each year; provided, however, that "assessed value" shall refer to the value established by the Association, in its reasonable discretion, if said tax assessment value was based upon unimproved land which was subsequently improved.

B. Each Group 2 property Owner shall pay an annual assessment equal to the sum of his proportionate share of the General Expenses plus his proportionate share of the Commercial Expenses. The proportionate share of General Expenses for each Group 2 property Owner shall be determined by multiplying the General Expenses by a fraction, the numerator of which is equal to the assessed value of all Group 2 property owned by such Owner, and the denominator of which is equal to

the total assessed value of all Group 1 and Group 2 property owned by all Owners. The proportionate share of Commercial Expenses for each Group 2 property Owner shall be determined by multiplying the Commercial Expenses by a fraction, the numerator of which is equal to the assessed value of all Group 2 property owned by such Owner, and the denominator of which is equal to the total assessed value of all Group 2 property owned by all Owners.

C. Each Group 3 property Owner shall pay a minimum annual assessment, as established in the schedule hereinbelow unless the Board of Directors determines that the important and essential functions of the Association may be properly funded only by an assessment above or below the minimum but not more than the maximum assessment, as established hereinbelow. If the Board of Directors shall levy the applicable minimum assessment or some lesser amount for any assessment year and thereafter, during such assessment year, determine the important and essential functions of the Association can not be funded by such assessment, the Board may levy a supplemental assessment but in no event shall the sum of the initial and supplemental annual assessments for that year exceed the maximum annual assessment.

Minimum Annual
Assessment

\$100.00/acre

Maximum Annual
Assessment

\$200.00/acre

In calculating the amount of acreage of Undivided Lands for annual assessment purposes, the following types of land shall not be included: land intended for use as the site of roads, parks, canals, greenbelts or conservancy areas, trails, walks, Common Property, Residential Common Property, Commercial Common Property or Recreational Facilities.

Section 7. Purpose of Special Assessments. In addition to the annual assessments authorized by this Article VII, the Association may levy special assessments for the acquisition of any Common Property, Residential Common Property, Commercial Common Property or Recreational Facilities, including the payment of any mortgages thereon. The Association may also levy a special assessment, for the purpose of defraying, in whole or in part, the cost of any construction or reconstruction, unexpected repair or replacement of capital improvement upon the Common Property or Residential Common Property, Commercial Common Property or Recreational Facilities including the necessary fixtures and personal property related thereto and to repay any loan made to the Association to enable it to perform the duties and functions authorized herein; provided, however, that any special assessment relative to Residential Common Property or Recreational Facilities shall not be levied against Group 2 property Owners nor shall any special assessment relative to Commercial Common Property be levied against Group 1 property Owners. To the extent that annual assessments are insufficient to fund the services which the Association is authorized or required to provide, the Association may levy a special assessment to cover the cost thereof. Notwithstanding anything herein to the contrary, the Company shall not be liable for any special assessment.

Section 8. Proportion and Amount of Special Assessments. Special assessments for Group 1 and Group 2 property Owners shall be determined as follows:

A. Each Group 1 property Owner shall pay his proportionate share of special assessments regarding Residential

Common Property and Recreational Facilities. The proportionate share of special assessments regarding Residential Common Property and Recreational Facilities for each Group 1 property Owner shall be determined by multiplying such special assessment by a fraction which is equal to the fraction utilized in determining each such Owner's proportionate share of Residential Expenses as set forth in Section 6 above.

B. Each Group 2 property Owner shall pay his proportionate share of special assessments regarding Commercial Common Property. The proportionate share of special assessments regarding Commercial Common Property for each Group 2 property Owner shall be determined by multiplying such special assessment by a fraction which is equal to the fraction utilized in determining each such Owner's proportionate share of Commercial Expenses as set forth in Section 6 above.

C. Each Group 1 and Group 2 property Owner shall pay his proportionate share of special assessments regarding Common Property. The proportionate share of special assessments regarding Common Property for each Group 1 and Group 2 property Owner shall be determined by multiplying such special assessment by a fraction which is equal to the fraction utilized in determining each such Owner's proportionate share of General Expenses as set forth in Section 6 above.

D. The total amount of special assessments, in any one year, may not exceed a sum equal to the amount of annual assessment for such year, except in the case of emergency and other repairs required as a result of storm, fire, natural disaster or other casualty loss. This provision shall be interpreted to mean that the Association may make in any one year an annual assessment as set forth in Section 6 of this Article plus an additional special assessment which additional assessment being considered alone may not exceed the annual assessment.

Section 9. Individual Assessments. Each Owner of a Family Dwelling Unit, Residential Lot, Multi-Family Tract, Commercial Site, Commercial Unit or Undivided Land is required to maintain his property, whether improved or unimproved, in a state of good repair at all times, which shall include, but shall not be limited to, the periodic painting (or other appropriate refinishing) of all structures requiring same and the maintenance of the lawns, shrubery and trees in a well-groomed and trim condition, and if unimproved, in an orderly and uncluttered condition. Such Owners are further required to maintain their property in accordance with any other covenants, conditions and restrictions to which their deeds or other instruments of conveyance make reference. In the event of the failure of such Owner(s) to maintain their property as required herein, the Association, after first giving thirty (30) days' notice to such Owners, may take such steps as are necessary to remedy any defective and/or unsightly conditions or comply with requirements imposed herein, and such Owner(s) of said property shall be assessed for the expense of same. Entry upon such Owners' Property for such purposes shall not constitute a trespass. Assessments may also be levied against such Owners for any damage to Common Property, Residential Common Property, Commercial Common Property or Recreational Facilities which may be caused by such Owners, their families, lessees, guests or invitees.

Section 10. Date of Commencement and Pro Ration of Annual Assessments Due Date. The annual assessments provided for herein shall commence on January 1, 1981. The assessments for any year shall become due and payable on February 1, of said year and shall become past due on March 1 of the same year, except with regard to the Company whose annual assessment shall be due in twelve (12)

equal monthly installments. The Board of Directors shall have the power to change the date upon which annual assessments become due and payable and also to determine the manner of payment of annual assessments, i.e., lump sums, monthly installments, etc., provided, however, that the annual assessments shall be due and payable not less frequently than annually. The due date of any special assessment under Section 7 hereof shall be fixed in the resolution authorizing such assessment.

Section 11. Duties of the Board of Directors. The Board of Directors of the Association shall prepare an annual budget and fix the amount of the assessment against each Residential Lot, Family Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit, or Undivided Land as provided hereinabove for each assessment period and shall, at that time, prepare a roster of the properties and assessments applicable thereto which shall be kept in the office of the Association and shall be open to inspection by any Owner. Written notice of the assessment shall thereupon be sent to every Owner subject thereto as provided in Article X, Section 5 of this Declaration. The Association shall upon demand at any time furnish to any Owner liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said assessment has been paid. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

Section 12. Effect of Non-Payment of Assessment; Lien. If any assessment is not paid on or before the past-due date specified in Section 10 of this Article VII, then such assessment shall become delinquent and shall, together with interest thereon at the maximum rate allowed under law from the due date and the cost of collection thereof as hereinafter provided, thereupon become a charge and continuing lien on the land and all improvements thereon, against which each such assessment is made. The personal obligation of the Owner at the time when the assessment first became due and payable to pay such assessment, however, shall remain his personal obligation and shall not pass as a personal obligation to his successors in title unless expressly assumed by them.

Section 13. Remedies. If the assessment is not paid within thirty (30) days, the Association may bring an action at law against the Owner personally obligated to pay the same or an action in equity to foreclose the lien against the subject property, and there shall be added to the amount of such assessment the costs of preparing and filing the complaint in such action, and in the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and a reasonable attorney's fee to be fixed by the court together with the costs of the action.

Section 14. Subordination of the Lien to Mortgages. The lien of the assessments provided for herein shall be subordinate to the lien of any mortgage or mortgages held by an Institutional Lender now or hereafter placed upon the properties subject to assessment; provided, however, that such subordination shall apply only to the assessments which have become due and payable prior to a sale or transfer of such property pursuant to a decree of foreclosure, or any other proceeding or deed in lieu of foreclosure. Such sale or transfer shall not relieve such property from liability for any assessments thereafter becoming due nor from the lien created thereby.

Section 15. Exempt Property. The following property and persons shall be exempted from assessments under this Declaration and liens therefore:

A. The grantee in conveyances of any portion of the Properties made for the purpose of granting utility easements or dedicated public roadways;

B. All Common Property, Residential Common Property, Commercial Common Property and Recreational Facilities;

Section 17. Annual Statements. The President, Treasurer, or such other officer as may have custody of the funds of the Association shall annually, within ninety days after the close of the fiscal year of the Association, prepare and execute under oath a general itemized statement showing the actual assets and liabilities of the Association at the close of such fiscal year, and a statement of revenues, costs and expenses. It shall be necessary to set out in the statement the name of each creditor of the Association, provided, however, that this requirement shall be construed to apply only to creditors of more than \$1,000. Such officer shall furnish to each Member of the Association who may make request therefor in writing, a copy of such statement, within thirty days after receipt of such request. Such copy may be furnished to the Member either in person or by mail.

ARTICLE VIII

ARCHITECTURAL CONTROL

Section 1. Architectural Review Committee. There is hereby established an Architectural Review Committee ("ARC") whose duties, powers and responsibilities shall be as hereinafter set forth:

A. Initially, the ARC shall consist of three (3) persons designated by the Declarant. At such time as Declarant no longer owns any property within The Township, the Declarant shall assign to the Association the rights, powers, duties and obligations of the ARC, whereupon the Board of Directors of the Association shall appoint the members of the ARC and shall provide for the terms of the members of the ARC.

B. The ARC shall have the right of specific approval or veto of all architectural and landscaping aspects of any improvement or development of individual units or buildings as well as the general plan for development of any individual lot or subdivision, tract or parcel of land within The Township; provided, further, that the ARC may, in its sole discretion, impose standards on said architectural and landscaping aspects and said general plan for development, which standards are greater or more stringent than standards prescribed in applicable building, zoning or other local governmental codes.

C. No building, sign, outside lighting, fence, hedge, wall, walk, dock or other structure or planting shall be constructed, erected, removed, planted or maintained nor shall any addition to or any change or alteration therein be made until the plans and specifications showing the nature, kind, shape, height, materials, floor plans, color scheme and the location of same shall have been submitted to and approved in writing by the ARC. As part of the application process, two (2) complete sets of plans and specifications prepared by an architect, landscape architect, engineer or other person found to be qualified by the ARC shall be submitted for approval by written application on such form as may be provided or required by the ARC.

D. In the event the information submitted to the ARC is, in its opinion, incomplete or insufficient in any manner, it may request and require the submission of additional or supplemental information.

E. The ARC shall have the right to refuse to approve any plans and specifications which are not suitable or desirable, in its sole discretion, for aesthetic or any other reasons, provided such approval is not unreasonably withheld. In ap-

proving or disapproving such plans and applications, the ARC shall consider the suitability of the proposed building, improvements, structure or landscaping and materials of which the same are to be built, the site upon which it is proposed to be erected, the harmony thereof with the surrounding area and the effect thereof on adjacent or neighboring property.

F. Unless specifically excepted by the ARC, all improvements for which approval of the ARC is required under this Declaration shall be completed within a reasonable time from the date of commencement of said improvements or within the time set by the ARC in the event that the approval is so conditioned.

G. The ARC shall in all cases have the right to determine and designate building set back lines necessary to conform to the general plan of the land, in order to preserve the integrity of The Township and the Development Plan. In this respect, the ARC's judgment and determination shall be final and binding.

H. In the event the ARC shall fail to approve or disapprove any plans and specifications submitted in final and complete form, within thirty (30) days after written request for approval or disapproval is delivered to the ARC by the Owner or the Owner's agent or attorney, then such approval of the ARC shall not be required; provided, however, that no building or other structure shall be erected or shall be allowed to remain which violates any of the covenants, conditions or restrictions contained in this Declaration, or which violates any zoning or building ordinance or regulation.

I. There is specifically reserved unto the ARC, the right of entry and inspection upon any Residential Lot, Multi-Family Tract, Commercial Site, or lot upon which is located a Family Dwelling Unit or Commercial Unit for the purpose of determination by the ARC whether there exists any construction of any improvement which violates the terms of any approval by the ARC or the terms of this Declaration or of any other covenants, conditions and restrictions to which its deed or other instrument of conveyance makes reference. The ARC is specifically empowered to enforce the provisions of this Declaration by any legal or equitable remedy, and in the event it becomes necessary to resort to litigation to determine the propriety of any constructed improvement, or to remove any unapproved improvements, the prevailing party shall be entitled to recovery of all court costs, expenses and reasonable attorney's fees in connection therewith. The Association shall indemnify and hold harmless the ARC from all costs, expenses and liabilities including attorney's fees incurred by virtue of any member of the ARC's service as a member of the ARC.

J. The ARC is empowered to publish or modify from time to time, design and development standards for The Township, including but not limited to the following:

- (1) Roof and roof design.
- (2) Fences, walls and similar structures.
- (3) Exterior building materials and colors.
- (4) Exterior landscaping.
- (5) Exterior appurtenances relating to development and utility installations.

(6) Signs and graphics, mail boxes and exterior lighting.

(7) Building set backs, side yards and related height, bulk and design criteria.

(8) Pedestrian and bicycle ways, sidewalks and pathways.

(9) All buildings, landscaping and improvements on lands owned or controlled by the Association including recreational facilities.

K. No contractor, sub-contractor or other builder may effect any of the improvements herein discussed without the express written approval of the ARC, which permission may be withheld on the basis of the ARC's determination that such builder's qualifications and general reputation in the community indicate a potential calibre of work inferior to that deemed desirable by the ARC. The ARC may, from time to time, publish a list of builders it has in advance determined to be acceptable.

L. The ARC shall have the right to approve the location of Family Dwelling Units on the lots in order to insure that each Family Dwelling Unit will be staggered so as to provide the maximum view to all other buildings and to preserve the large trees and other natural vegetation to the maximum extent possible. In this respect, the ARC's judgment and determination shall be final and binding.

ARTICLE IX

INSTRUMENT OF CONVEYANCE

Subsequent to the recording of this Declaration of Covenants, Conditions and Restrictions in the Public Records of Broward County, Florida, each and every conveyance is subject to the herein contained covenants, conditions and restrictions and the instrument of said conveyance shall recite the Official Records Book and page numbers wherein this Declaration of Covenants, Conditions and Restrictions is recorded in the Public Records of Broward County, Florida. These Restrictions shall be covenants running with the land, be a part thereof, and be binding upon the land and the owners thereof and their successors, successors-in-title, designees, grantees and assigns.

ARTICLE X

GENERAL PROVISIONS

Section 1. Duration. The covenants, conditions and restrictions of this Declaration shall run with and bind the Properties, and shall inure to the benefit of and be enforceable by the Association, the Company and any Owner, their respective legal representatives, heirs, successors, and assigns, for a period of thirty (30) years from the date this Declaration is recorded. Upon the expiration of said thirty (30) year period this Declaration shall be automatically renewed and extended for successive ten (10) year periods. The number of ten (10) year renewal periods hereunder shall be unlimited with this Declaration being automatically renewed and extended upon the expiration of each ten (10) year renewal period for an additional ten (10) year period; provided, however, that there shall be no renewal or extension of this Declaration if during the last year of the initial thirty (30) year period, or during the last year of any subsequent ten (10) year renewal period, three-fourths (3/4) of

the votes cast at a duly held meeting of Members of the Association vote in favor of terminating this Declaration at the end of its then current term. It shall be required that written notice of any meeting at which such proposal to terminate this Declaration is to be considered, setting forth the fact that such a proposal will be considered, shall be given at least forty-five (45) days in advance of said meeting. In the event that the Association votes to terminate this Declaration, the President and Secretary of the Association shall execute a certificate which shall set forth the resolution of termination adopted by the Association, the date of the meeting of the Association at which such resolution was adopted, the date that notice of such meeting was given, the total number of votes of Members of the Association, the total number of votes required to constitute a quorum at a meeting of the Association, the number of votes necessary to adopt a resolution terminating this Declaration, the total number of votes cast in favor of such resolution, and the total number of votes cast against such resolution. Said certificate shall be recorded in the Official Real Estate Records for Broward County, Florida, and may be relied upon for the correctness of the facts contained therein as they relate to the termination of this Declaration.

Section 2. Amendments by Members. This Declaration may be amended at any time provided that three-fourths (3/4) of the votes cast by the Members present at a duly called and held meeting of the Association vote in favor of the proposed amendment provided, however, that if the affirmative vote required, for approval of action under the specific provision to be amended, is a higher or lower percentage, then such higher or lower percentage shall be required to approve amendment of that provision. Notice shall be given at least forty-five (45) days prior to the date of the meeting at which such proposed amendment is to be considered. If any proposed amendment to this Declaration is approved by the Members as set forth above the President and Secretary of the Association shall execute an Amendment to this Declaration which shall set forth the amendment, the effective date of the amendment which in no event shall be less than sixty (60) days after the date of recording the amendment, the date of the meeting of the Association at which such amendment was adopted, the date that notice of such meeting was given, the total number of votes of Members of the Association, the total number of votes required to constitute a quorum at a meeting of the Association, the number of votes necessary to adopt the amendment, the total number of votes cast for the amendment, and the total number of votes cast against the amendment. Such amendment shall be recorded in the Official Records for Broward County, Florida.

Section 3. Amendments by Company. The Company may amend this Declaration without the consent of the Members for the following purposes in addition to those purposes set forth in Article II:

A. to provide that the Company shall not vote for certain seats on the Board of Directors and that these seats shall be filled exclusively by the vote of the other Members;

B. to increase the amount of the annual assessment due by the Company to the Association;

C. to incorporate in this Declaration a specific list of Common Property, Residential Common Property, Commercial Common Property or Recreational Facilities to be conveyed by the Company to the Association, which list shall include all of the items previously set forth herein, and which list may include the specific dates before which said items shall be transferred to the Association and any conditions upon which they will be transferred; and

D. for any other purpose which requires a greater contribution by the Company to the Association or which lessens the role of the Company in the operation of the Association and increases the role of the other Members.

Section 4. Quorum. Quorum requirements in the Articles of Incorporation to the contrary notwithstanding, the first time any meeting of the Members of the Association is called to take action under Section 2 of this Article X, the presence at the meeting of the Members or proxies entitled to cast sixty (60%) per cent of the total vote of the Members shall constitute a quorum. If the required quorum is not forthcoming at any such meeting, a second meeting may be called subject to the giving of proper notice and the required quorum at such subsequent meeting shall be the presence of the Members or proxies entitled to cast fifty (50%) per cent of the total vote of the Association.

Section 5. Notices. Any notice required to be sent to any Member or Owner under the provisions of the Declaration shall be deemed to have been properly sent, and notice thereby given, when mailed, with the proper postage affixed to the last known address of the person or entity who appears as Owner in the public records of Broward County, Florida. Notice to one of two or more co-owners of a Residential Lot, Family Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit, or Undivided Land shall constitute notice to all co-Owners. It shall be the obligation of every Member to immediately notify the Secretary of the Association in writing of any change of address. Any person who becomes an Owner and Member following the first day in the calendar month in which said notice is mailed shall be deemed to have been given notice, if notice was given to his predecessor in title.

Section 6. Enforcement. Enforcement of these covenants, conditions and restrictions shall be by any proceeding at law or in equity and may be instituted by the Declarant, its successors or assigns, the Association, its successors or assigns, or any Owner against any person or persons violating or attempting to violate or circumvent any covenant, condition or restriction, either to restrain violation or to recover damages, and against the land and to enforce any lien created by these covenants; and failure by the Association or any Owner or the Company to enforce any covenant, condition or restriction herein contained for any period of time shall in no event be deemed a waiver or estoppel of the right to enforce same thereafter.

Section 7. Severability. Should any covenant, condition or restriction herein contained, or any Article, Section, Subsection, sentence, clause, phrase or term of this Declaration be declared to be void, invalid, illegal, or unenforceable, for any reason, by the adjudication of any court or other tribunal having jurisdiction over the parties hereto and the subject matter hereof, such judgment shall in no way affect the other provisions hereof which are hereby declared to be severable and which shall remain in full force and effect.

Section 8. Interpretation. The Board of Directors of the Association shall have the right except as limited by any other provisions of this document or the By-Laws to determine all questions arising in connection with this Declaration of Covenants, Conditions and Restrictions and to construe and interpret its provisions, and its good faith, determination, construction or interpretation shall be final and binding. In all cases, the provisions of this Declaration of Covenants, Conditions and Restrictions shall be given that interpretation or construction that will best tend toward the consummation of the general plan of improvements.

Section 9. Authorized Action. All actions which the Association is allowed to take under this instrument shall be authorized actions of the Association if approved by the Board of Directors of the Association in the manner provided for in the By-Laws of the Association, unless the terms of this instrument provide otherwise.

Section 10. Termination of Declaration. Should the Members of the Association vote not to renew and extend this Declaration as provided for herein, all Common Property, Residential Common Property, Recreational Facilities and Commercial Property owned by the Association at such time shall be transferred to a Trustee appointed by the Circuit Court of Broward County, Florida, which Trustee shall sell the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property free and clear of the limitations imposed hereby upon terms established by the Circuit Court of Broward County, Florida. The proceeds of such a sale shall first be used for the payment of any debts or obligations constituting a lien on the Common Property, Residential Common Property, Recreational Facilities or Commercial Common Property then for the payment of any obligations incurred by the Trustee in the operation, maintenance, repair and upkeep of the Common Property, Residential Common Property, Recreational Facilities or Commercial Common Property. The excess of proceeds, if any, from Residential Common Property and Recreational Facilities shall be distributed among Group 1 property Owners in a proportion which is equal to the proportionate share of such Owners in Residential Expenses. The excess of proceeds, if any, from Commercial Common Property shall be distributed among Group 2 property Owners in a proportion which is equal to the proportionate share of such Owners in Commercial Expenses. The excess of proceeds, if any, of Common Property shall be distributed among Group 1 and Group 2 property Owners in a proportion which is equal to the proportionate share of such Owners in General Expenses.

Section 11. Execution of Documents. The Development Plan for the development of the Properties may require from time to time the execution of certain documents required by the City of Coconut Creek or Broward County. To the extent that said documents require the joinder of Owners, the Company by its duly authorized officers may, as the agent or the attorney-in-fact for the Owners, execute acknowledge and deliver such documents and the Owners, by virtue of their acceptance of deeds, irrevocably nominate, constitute and appoint the Company, through its duly authorized officers, as their proper and legal attorneys-in-fact for such purpose. Said appointment is coupled with an interest and is therefore irrevocable. Any such documents executed pursuant to this Section shall recite that it is made pursuant to this Section.

Section 12. Notwithstanding anything contained herein to the contrary, the Association will perform no act nor undertake any activity which will violate its non-profit or tax exempt status under applicable state or federal law.

Section 13. Whenever the context so permits, the use of the singular shall include the plural and the plural shall include the singular, and the use of any gender shall be deemed to include all genders.

Section 14. The provisions of this Declaration shall be liberally construed to effectuate its purpose of creating a uniform plan for the operation of the Project.

IN WITNESS WHEREOF, the Declarant has caused this Declaration to be executed in its name and its corporate seal to be affixed this _____ day of _____, 1980.

Signed, sealed and delivered
in the presence of:

TARTAN MINTO CORPORATION, a
Florida corporation (SEAL)

By: _____
President

Attest: _____
Secretary

STATE OF FLORIDA)
) ss
COUNTY OF)

BEFORE ME, the undersigned authority, a notary public in and for the State of Florida at Large, personally appeared _____ and _____, President and Secretary respectively of TARTAN MINTO CORPORATION, a Florida corporation, known to me to be the persons referred to in the foregoing instrument and who acknowledged before me that they executed the foregoing Declaration of Covenants, Conditions and Restrictions, as President and Secretary of said corporation, affixed the seal of said corporation and did so as the act and deed of said corporation.

WITNESS my hand and official seal at _____, Florida, this _____ day of _____, 1980.

NOTARY PUBLIC, State of Florida
at Large

My Commission Expires:

(NOTARY SEAL)

CONSENT AND JOINDER

WHEREAS, Minto Builders (Florida), Inc., a Florida corporation ("Minto"), is the owner of the following described property ("Land"):

Tracts 1 through 9 and Tracts 11 through 14 of Tartan Coconut Creek Phase I, according to the Plat thereof, recorded in Plat Book 103, Page 29, of the Public Records of Broward County, Florida.

WHEREAS, Minto acquired the Land from the Declarant and, in partial consideration therefor, agreed to subject the Land to, and cause the Land to be restricted by, the foregoing Declaration of Covenants, Conditions and Restrictions.

NOW, THEREFORE, Minto reaffirms said agreement and does hereby join in and consent to the submission of the Land to the terms and conditions of said Declaration. Notwithstanding

anything herein to the contrary, it is expressly understood and agreed that Minto is not the Declarant of said Declaration.

This Consent and Joinder shall be binding upon Minto, its successors and assigns.

IN WITNESS WHEREOF, Minto has caused this Consent and Joinder to be executed in its name and its corporate seal to be affixed this ____ day of _____, 1980.

Signed, sealed and delivered in the presence of: MINTO BUILDERS (FLORIDA), INC., a Florida corporation (SEAL)

By: _____, President

Attest: _____, Secretary

STATE OF FLORIDA)
COUNTY OF) ss

BEFORE ME, the undersigned authority, a notary public in and for the State of Florida at Large, personally appeared _____ and _____, President and Secretary respectively of MINTO BUILDERS (FLORIDA), Inc., a Florida corporation, known to me to be the persons referred to in the foregoing instrument and who acknowledged before me that they executed the foregoing Declaration of Covenants, Conditions and Restrictions, as President and Secretary of said corporation, affixed the seal of said corporation and did so as the act and deed of said corporation.

WITNESS my hand and official seal at _____, Florida, this _____ day of _____, 1980.

NOTARY PUBLIC, State of Florida
at Large

My Commission Expires: (NOTARY SEAL)

CONSENT AND JOINDER

WHEREAS, Green Kroll Corp., a Florida corporation ("Green Kroll"), is the owner of the following described property ("Land"):

Lots 1 through 20, inclusive, of Block 5 and Lots 1 through 6, inclusive, of Block 6 of Tartan Coconut Creek Phase I, according to the Plat thereof recorded in Plat Book 103, at Page 29 of the Public Records of Broward County, Florida.

WHEREAS, Green Kroll acquired the Land from the Declarant and, in partial consideration therefor, agreed to subject the Land to, and cause the Land to be restricted by, the foregoing Declaration of Covenants, Conditions and Restrictions.

NOW, THEREFORE, Green Kroll reaffirms said agreement and does hereby join in and consent to the submission of the Land to the terms and conditions of said Declaration. Notwithstanding anything herein to the contrary, it is expressly understood and agreed that Green Kroll is not the Declarant of said Declaration.

This Consent and Joinder shall be binding upon Green Kroll, its successors and assigns.

IN WITNESS WHEREOF, Green Kroll has caused this Consent and Joinder to be executed in its name and its corporate seal to be affixed this ____ day of _____, 1980.

Signed, sealed and delivered
the presence of:

GREEN KROLL CORP., A Florida in
corporation (SEAL)

By: _____, President

Attest: _____, Secretary

STATE OF FLORIDA)
) ss
COUNTY OF)

BEFORE ME, the undersigned authority, a notary public in and for the State of Florida at Large, personally appeared _____ and _____, President and Secretary respectively of GREEN KROLL CORP., a Florida corporation, known to me to be the persons referred to in the foregoing instrument and who acknowledged before me that they executed the foregoing Declaration of Covenants, Conditions and Restrictions, as President and Secretary of said corporation, affixed the seal of said corporation and did so as the act and deed of said corporation.

WITNESS my hand and official seal at _____, Florida, this _____ day of _____, 1980.

NOTARY PUBLIC, State of Florida
at Large

My Commission Expires:

(NOTARY SEAL)

EXHIBIT "A"
TARTAN MINTO PROPERTY

Parcels of land lying in TARTAN COCONUT CREEK PHASE I, according to the plat thereof, as recorded in Plat Book 103, Page 29, of the Public Records of Broward County, Florida, more particularly described as follows:

Parcel Number 1

Tract 10, containing 17.81 acres more or less.

Parcel Number 2

Private lake drainage easement, containing 10.54 acres more or less.

Parcel Number 3

All of Block 1, Lots 1 thru 17 inclusive, containing 5.03 acres more or less.

Parcel Number 4

All of Block 2, Lots 1 thru 20 inclusive, containing 5.73 acres more or less.

Parcel Number 5

All of Block 3, Lots 1 thru 12 inclusive, containing 3.07 acres more or less.

Parcel Number 6

All of Block 4, Lots 1 thru 28 inclusive, containing 7.39 acres more or less.

Parcel Number 7

All of Block 7, Lots 1 thru 18 inclusive, containing 6.26 acres more or less.

Parcel Number 8

All of Block 8, Lots 1 thru 6 inclusive, containing 2.51 acres more or less.

Parcel Number 9

All of Block 9, Lots 1 thru 4 inclusive, containing 1.15 acres more or less.

Parcel Number 10

All of Block 10, Lots 1 thru 13 inclusive, containing 4.44 acres more or less.

Parcel Number 11

All of Block 11, Lots 1 thru 20 inclusive, containing 5.54 acres more or less.

Parcel Number 12

All of Block 12, Lots 1 thru 5 inclusive, containing 1.55 acres more or less.

Parcel Number 13

All of Block 13, Lots 1 thru 11 inclusive, containing 3.35 acres more or less.

Parcel Number 14

All of Block 14, Lots 1 thru 10 inclusive, containing 2.51 acres more or less.

Parcel Number 15

All of Block 15, Lots 1 thru 4 inclusive, containing 1.06 acres more or less.

Parcel Number 16

All of Block 16, Lots 1 thru 4 inclusive, containing 1.17 acres more or less.

Parcel Number 17

All of Block 17, Lots 1 thru 3 inclusive, containing 0.95 acres more or less.

TOGETHER WITH:

A parcel of land lying in Sections 19 & 20, Township 48 South, Range 42 East and a portion of Tracts 2, 3, 4, 5, 6, 15, 16, 21, 22, 25, 26, 27 and 28. Together with Tracts 7, 8, 11, 12, 13, 14, 17, 18, 19, 20, 23 and 24, Block 91, according to the "PALM BEACH FARMS COMPANY PLAT NO. 3", recorded in Plat Book 2, Pages 45 thru 54 inclusive, of the Public Records of Palm Beach

County, Florida, more particularly described as follows:

COMMENCE at the Northeast corner of the Northwest one-quarter (N.W. $\frac{1}{4}$) of the aforesaid Section 20; thence South $00^{\circ} 33' 26''$ East (on an assumed bearing), 100.02 feet along the East line of said Northwest one-quarter (N.W. $\frac{1}{4}$), to an intersection with the South right-of-way line of Sample Road (as recorded in O.R. Book 8168, Page 830); thence South $88^{\circ} 30' 36''$ West, 1050.12 feet along said South right-of-way line (and also being 100.00 feet South of, as measured at right angles and parallel to the North line of the Northwest one-quarter (N.W. $\frac{1}{4}$) of said Section 20) to the POINT OF BEGINNING; thence South $00^{\circ} 00' 54''$ East, 950.57 feet; thence North $89^{\circ} 59' 06''$ East, 1493.74 feet; thence along the arc of a curve to the right, concave to the South, having a radius of 300.00 feet, a delta of $39^{\circ} 02' 28''$, an arc distance of 204.42 feet; thence tangent to said curve South $50^{\circ} 58' 26''$ East, 146.47 feet; thence along the arc of a curve to the right and concave to the West, having a radius of 300.00 feet, a delta of $105^{\circ} 11' 31''$, an arc distance of 550.78 feet; thence tangent to said curve South $54^{\circ} 13' 05''$ West, 48.14 feet; thence along the arc of a curve to the left and concave to the East, having a radius of 315.00 feet, a delta of $101^{\circ} 57' 51''$, an arc distance of 560.58 feet; thence tangent to said curve South $47^{\circ} 44' 46''$ East, 162.15 feet; thence along the arc of a curve to the right and concave to the West, having a radius of 250.00 feet, a delta of $96^{\circ} 03' 08''$, an arc distance of 419.11 feet; thence tangent to said curve South $48^{\circ} 18' 22''$ West, 128.53 feet; thence along the arc of a curve to the right and concave to the Northwest, having a radius of 400.00 feet, a delta of $41^{\circ} 40' 44''$, an arc distance of 290.97 feet; thence tangent to said curve South $89^{\circ} 59' 06''$ West, 1124.59 feet; thence along the arc of a curve to the left and concave to the Southeast, having a radius of 261.41 feet, a delta of $43^{\circ} 49' 51''$, an arc distance

of 199.98 feet; to a point on the arc of a curve to the right and concave to the Northwest, having a radius of 600.00 feet, a delta of $43^{\circ} 49' 51''$, an arc distance of 459.00 feet; thence tangent to said curve South $89^{\circ} 59' 06''$ West, 208.61 feet to a point on the arc of a non-tangent curve (radial line thru said point bears North $69^{\circ} 31' 39''$ West); thence along the arc of said curve, being concave to the Northwest, having a radius of 400.00 feet, a delta of $69^{\circ} 30' 45''$, an arc distance of 485.29 feet; thence tangent to said curve, South $89^{\circ} 59' 06''$ West, 408.00 feet; thence North $00^{\circ} 00' 54''$ West, 60.00 feet; thence South $89^{\circ} 59' 06''$ West, 895.00 feet (the previous three (3) courses being contiguous with the northerly boundary of TARTAN COCONUT CREEK PHASE I, as recorded in Plat Book 103, Page 29, of Broward County, Florida records) to a point 57.00 feet East of the West line of said Block 91; thence North $00^{\circ} 01' 54''$ West along a line 57.00 feet East of the West line of said Block 91 (as measured at right angles) and parallel with said West line of Block 91, for 2299.63 feet; thence North $01^{\circ} 13' 06''$ East, a distance of 550.13 feet; thence North $00^{\circ} 01' 54''$ West, along a line 69.00 feet East of (as measured at right angles) and parallel with the West line of said Block 91, for 300.00 feet; thence North $45^{\circ} 55' 01''$ East, 50.31 feet to an intersection with a line 100.00 feet South of (as measured at right angles) and parallel with the North line of the Northeast one-quarter (N.E. $\frac{1}{4}$) of the aforesaid Section 19; thence South $88^{\circ} 08' 04''$ East, 474.97 feet along said parallel line South of said Section 19, to a point of intersection with a line 100.00 feet South of (as measured at right angles) and parallel to the North line of the Northwest one-quarter (N.W. $\frac{1}{4}$) of the aforesaid Section 20; thence North $88^{\circ} 30' 36''$ East, along said parallel line South of said Section 20, a distance of 1613.91 feet (the previous six (6) courses being contiguous with the East right-of-way line of Lyons Road and the South right-of-way line of Sample Road, as

recorded in O. R. Book 8539, Page 802) to the POINT OF BEGINNING.

Said lands lying in the City of Coconut Creek, Broward County, Florida, containing 229.1828 acres more or less.

TOGETHER WITH:

A parcel of land lying in Section 19, Township 48 South, Range 42 East, and being a portion of Tracts 1, 50, 51, 54, 71, 72, 73, 74 and 76. Together with Tracts 19, 20, 21, 22, 23, 24, 25, 43, 44, 45, 46, 47, 48, 52, and 53, Block 90, according to the "PALM BEACH FARMS COMPANY PLAT NO. 3", as recorded in Plat Book 2, Pages 45 thru 54 inclusive of the Public Records of Palm Beach County, Florida, more particularly described as follows:

COMMENCE at the Northeast corner of said Section 19; thence South $00^{\circ} 19' 00''$ West along the East line of said Section 19, a distance of 53.00 feet to a point on the South right-of-way line of Sample Road, as described on the Warranty Deed, as recorded in O. R. Book 2345, Page 518, of Broward County, Florida records; thence North $88^{\circ} 08' 04''$ West along said line, 1290.75 feet to a point on the West boundary of said Tract 1; thence South $00^{\circ} 01' 54''$ East along said line, 47.03 feet to a point on the South right-of-way line of Sample Road, as described on the Warranty Deed, as recorded in O. R. Book 8539, Page 802, of Broward County, Florida records, as Parcel Number 3, said point being the POINT OF BEGINNING; thence South $88^{\circ} 08' 04''$ East along said line, 613.49 feet; thence South $44^{\circ} 04' 59''$ East, 48.67 feet to a point on a line, 13.00 feet West of and parallel with the East boundary of said Block 90; thence South $00^{\circ} 01' 54''$ East along said line, 2280.31 feet to a point on a line, 15.00 feet South of the South line of said Tract 48; thence South $89^{\circ} 59' 06''$ West along said line, 330.00 feet; thence South $00^{\circ} 01' 54''$ East along the West line of said Tract 49, a distance of 94.20 feet; thence South $89^{\circ} 59' 06''$ West, 550.00 feet; thence South $00^{\circ} 01' 54''$ East, 580.90 feet; thence southeasterly along the arc of a tangent curve, being concave

to the Northeast, having a radius of 70.00 feet, a delta of $64^{\circ} 30' 53''$, an arc distance of 78.82 feet; thence tangent to said curve South $64^{\circ} 32' 47''$ East, 127.06 feet to a point on the North line of TARTAN COCONUT CREEK PHASE I, as recorded in Plat Book 103, Page 29, of the Public Records of Broward County, Florida; thence South $25^{\circ} 27' 13''$ West, 60.00 feet; thence North $64^{\circ} 32' 47''$ West, 235.00 feet; thence South $25^{\circ} 27' 13''$ West, 120.00 feet; thence North $64^{\circ} 32' 47''$ West, 30.00 feet; thence South $25^{\circ} 27' 13''$ West, 235.00 feet; thence North $43^{\circ} 31' 46''$ West, 53.46 feet; thence South $89^{\circ} 59' 06''$ West, 700.00 feet to the Northwest corner of said TARTAN COCONUT CREEK PHASE I, plat and a line 100.00 feet West of and parallel with the West line of said Tracts 71 and 54; thence North $00^{\circ} 01' 54''$ West along said line, 1000.00 feet to a point on the North line of said Tract 54; thence South $89^{\circ} 59' 06''$ West along said line, 100.00 feet to the Northwest corner of said Tract 54; thence North $00^{\circ} 01' 54''$ West, 690.00 feet to the Northwest corner of said Tract 43; thence North $89^{\circ} 59' 06''$ East along the North line of said Tract 43, a distance of 330.00 feet to a point on the West line of said Tract 25; thence North $00^{\circ} 01' 54''$ West along said line, 660.00 feet to a point on the North line of said Tract 25; thence North $89^{\circ} 59' 06''$ East along said line, 330.00 feet to the Northeast corner of said Tract 25; thence North $00^{\circ} 01' 54''$ West, 690.00 feet to a point on the North line of said Tract 19; thence North $89^{\circ} 59' 06''$ East along said line, 660.00 feet to a point on the West line of said Tract 1; thence North $00^{\circ} 01' 54''$ West along said line, 310.26 feet to the POINT OF BEGINNING, containing 103.9397 acres more or less.

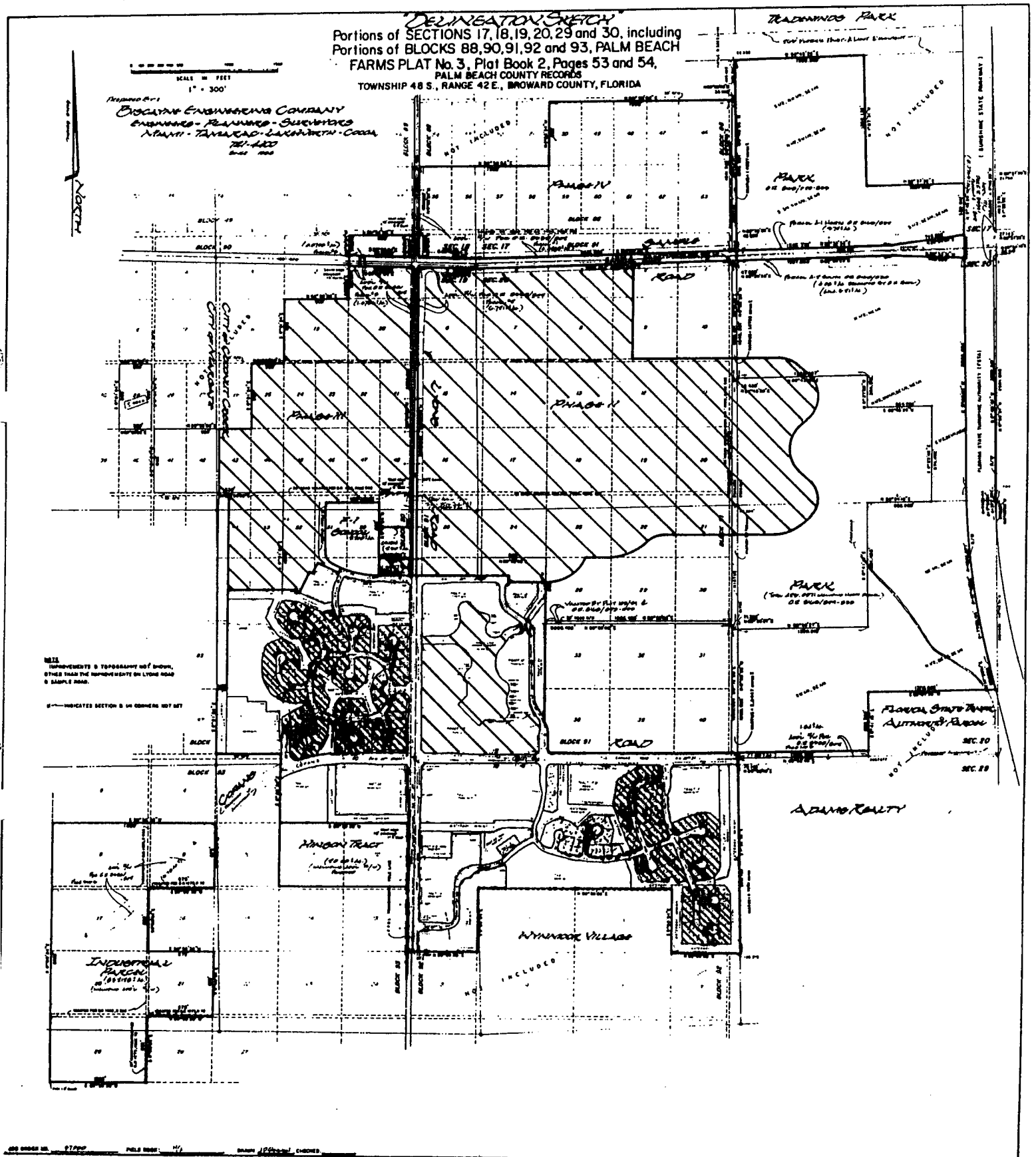
TOGETHER WITH:

The North 201.00 feet of said Tract 76, containing
1.5227 acres more or less.

All said lands lying in the City of Coconut Creek,
Broward County, Florida, containing in aggregate 414.705
acres more or less.

Prepared by:
Biscayne Engineering Co., Inc.
Engineers, Planners & Surveyors
6010 North University Drive
Tamarac, Florida
Project No. 57980
February 27, 1980

**TARTAN MINTO PROPERTY
(MASTER)**



Blocks 1 thru 17 LESS Blocks 5 & 6, Tract 10,
Private Lake Drainage Easement, Phase III,
North 201' of Tract 76, Block 90, Phase II,
containing 414.705 Ac. +

EXHIBIT "B"

A parcel of land lying in Section 30, Township 48 South, Range 42 East, more particularly described as follows:

Tracts 11 and 12, Block 93, "PALM BEACH FARMS COMPANY PLAT NO. 3", according to the plat thereof, as recorded in Plat Book 2, Pages 45 thru 54 inclusive, of the Public Records of Palm Beach County, Florida, containing 20.00 acres more or less.

TOGETHER WITH:

A parcel of land lying in Section 19, Township 48 South, Range 42 East, more particularly described as follows:

The North one-half (N. $\frac{1}{2}$) of Tract 49, and the adjoining 15.00 feet of vacated road on the North side thereof.

ALSO LESS:

The East 13.00 feet thereof, all in Block 90, "PALM BEACH FARMS COMPANY PLAT NO. 3", according to the plat thereof, as recorded in Plat Book 2, Pages 45 thru 54 inclusive, of the Public Records of Palm Beach County, Florida, containing 2.51 acres more or less.

TOGETHER WITH:

A parcel of land lying in Section 18, Township 48 South, Range 42 East, more particularly described as follows:

BEGIN at the Northwest corner of Tract 1, Block 90, "PALM BEACH FARMS COMPANY PLAT NO. 3", according to the plat thereof, as recorded in Plat Book 2, Pages 45 thru 54 inclusive, of the Public Records of Palm Beach County, Florida; thence South $00^{\circ} 01' 54''$ East along the West line of said Tract, 149.60 feet; thence South $88^{\circ} 08' 04''$ East, 587.16 feet; thence North $45^{\circ} 55' 01''$ East, 50.31 feet; thence North $00^{\circ} 01' 54''$ West, 133.86 feet to a point on the North line of said Tract 1; thence along said line South $89^{\circ} 59' 06''$ West, 623.00 feet to the POINT OF BEGINNING, containing 2.27 acres more or less.

TOGETHER WITH:

A parcel of land lying in Sections 17 and 18, Township 48 South, Range 42 East, more particularly described as follows:

COMMENCE at the Southeast corner of the Southwest one-quarter (S.W. $\frac{1}{4}$) of said Section 17; thence North $00^{\circ} 49' 05''$ West along the East line of said Southwest one-quarter (S.W. $\frac{1}{4}$), a distance of 100.00 feet to a point on the North right-of-way line of Sample Road, as described on the Warranty Deed, as recorded in O. R. Book 8539, Page 802, as recorded in the Broward County records, said point being the POINT OF BEGINNING; thence South $88^{\circ} 30' 36''$ West along said line, 2660.76 feet; thence North $88^{\circ} 08' 04''$ West along the North line of said Sample Road, 502.41 feet; thence North $44^{\circ} 04' 59''$ West, 48.67 feet to a point on a line, 45.00 feet East of and parallel with the West line of Blocks 88 and 91, "PALM BEACH FARMS COMPANY PLAT NO. 3", according to the plat thereof, as recorded in Plat Book 2, Pages 45 thru 54 inclusive, of Palm Beach County, Florida; thence North $00^{\circ} 01' 54''$ West along said parallel line and its projection, 165.59 feet; thence North $00^{\circ} 03' 24''$ West, 684.86 feet along said parallel line to a point on the North line of Tract 55, of said Block 88; thence North $89^{\circ} 59' 06''$ East along the North line of Tracts 55 thru 58 inclusive, a distance of 1275.00 feet to a point on the West line of Tract 50, of said Block 88; thence North $00^{\circ} 03' 24''$ West along said line, 660.00 feet to the Northwest corner of Tract 50; thence North $89^{\circ} 59' 06''$ East along the North line of Tracts 50 thru 46 inclusive, 1900.96 feet to a point on the East line of the Southwest one-quarter (S.W. $\frac{1}{4}$) of said Section 17; thence South $00^{\circ} 49' 05''$ East along the East line of said Southwest one-quarter (S.W. $\frac{1}{4}$) of Section 17, a distance of 1493.66 feet to the POINT OF BEGINNING, containing 92.72 acres more or less.

All of said lands lying in the City of Coconut Creek,
Broward County, Florida, containing in aggregate 117.50
acres more or less.

Prepared by:
Biscayne Engineering Co., Inc.
Engineers, Planners & Surveyors
6010 North University Drive
Tamarac, Florida
Project No. 57980
February 27, 1980

TARTAN MINTO PROPERTY (MASTER)



Phase IV, containing 117.50 Ac. +

Declaration of Class "B" Covenants,
Conditions and Restrictions

DECLARATION OF CLASS "B" RESIDENTIAL
COVENANTS, CONDITIONS AND RESTRICTIONS

This Declaration of Class "B" Residential Covenants, Conditions and Restrictions made this _____ day of _____, 1980 by TARTAN MINTO CORPORATION, a Florida corporation, herein-after referred to as "Declarant".

WITNESSETH:

WHEREAS, Declarant has recorded that certain Declaration of Covenants, Conditions and Restrictions of the Township under Clerk's File # _____, in Official Records Book _____, Page _____, of the Public Records of Broward County, Florida, and the real property which is subject to the said Declaration is defined as "The Township".

WHEREAS, Declarant is the owner of certain real property described in Exhibit "A" attached hereto and made a part hereof, and located within The Township.

WHEREAS, Declarant now wishes to declare certain restrictive covenants affecting the lands described in Exhibit "A" and located within The Township.

NOW, THEREFORE, Declarant does hereby declare that the covenants contained herein shall be covenants running with the land and shall apply to lands described in Exhibit "A".

ARTICLE I

DEFINITIONS

Section 1. As used herein, the following words and terms shall be defined and have the same meanings as those words set forth in the Declaration of Covenants, Conditions and Restrictions of The Township: Company, Multi-Family Unit, Architectural Review Committee (ARC) and Association.

Section 2. As used herein, the following words and terms shall have the following meanings:

A. "Multi-Family Lot" shall mean any parcel of land which is intended for or actually used as a Site for Multi-Family Units.

B. "Site" shall mean and refer to the exact location of the intended Multi-Family Units on a Lot.

C. "Owner" shall mean and refer to the Owner as shown by the real estate records in the Office of the Clerk of the Circuit Court of Broward County, Florida, whether it be one or more persons, firms, associations, corporations, or other legal entities, of fee simple title to any Multi-Family Lot or Multi-Family Unit. Owner shall not mean or refer to the holder of a mortgage or security deed, its successors or assigns, unless and until such holder has acquired title pursuant to foreclosure or a proceeding or deed in lieu of foreclosure; nor shall the term "Owner" mean or refer to any lessee or tenant of an Owner.

D. "Declaration" shall mean and refer to this Declaration of Class "B" Residential Covenants, Conditions and Restrictions.

E. "Patio Home" shall mean and refer to any detached Multi-Family Unit, one or more walls of which is located on or within two (2) feet of one or more boundaries of said Multi-Family Unit or the Lot upon which it sits.

ARTICLE II

PROPERTY SUBJECT TO DECLARATION

Section 1. The Township Phase I. The real property which shall be held, transferred, sold, conveyed, given, donated, leased and occupied subject to this Declaration is described in Exhibit "A" attached hereto and made a part hereof by reference.

Section 2. Additional Property. Additional property may become subject to this Declaration in the following manner:

A. Future Phases. The Company, shall have the right, without any consent of the Association being required to subject to this Declaration, additional properties as future phases of The Township. The additional property shall automatically become subject to this Declaration by filing in the Public Records of Broward County, Florida, a Supplemental Declaration of Class "B" Covenants, Conditions and Restrictions with respect to the additional property (the "Supplemental Declaration"). The Supplemental Declaration may contain such complimentary additions and modification of the covenants, conditions and restrictions contained in this Declaration as may be necessary or convenient, in the judgment of the Company, to reflect the different character, if any, of the additional property. The additional property which the Company may subject to this Declaration is more particularly described in Exhibit "B" attached hereto and made a part hereof by reference; provided, however, that the Company is not obligated to subject to this Declaration any or all of the real property described in Exhibit "B" and no portion of said real property shall be in any way be subject to this Declaration unless and until a Supplemental Declaration therefor is duly filed in accordance with this Declaration.

B. Other Additions. Upon approval in writing of the Declarant or the Association, the Owner of any other real property, including the Declarant, who desires to add and subject it to this Declaration, may file or record a Supplemental Declaration of Covenants, Conditions and Restrictions with respect to such additional property which Supplemental Declaration, if duly executed by both said Owner and Declarant, shall extend the operation and effect of this Declaration to such additional property. The Supplemental Declaration may contain any such complimentary additions and modifications of the covenants, conditions and restrictions contained in this Declaration as may be necessary or convenient, in the judgment of the Declarant, to reflect the different character, if any, of the added properties, but such modifications shall have no effect on the real property described in Exhibit "A" or "B" except as may be consistent with this Declaration.

C. Mergers. Upon a merger or consolidation of the Association with another association, the Association's properties, rights and obligations may, by operation of law, be transferred to the surviving or consolidated association, or,

in the alternative, the properties, rights and obligations of the other association may, by operation of law, be added to the properties of the Association as a surviving corporation pursuant to a merger. Except as hereinafter provided, no such merger or consolidation shall revoke, change or add to the covenants, conditions and restrictions established by this Declaration.

ARTICLE III

COVENANTS, CONDITIONS AND RESTRICTIONS APPLICABLE TO ALL MULTI-FAMILY LOTS AND MULTI-FAMILY UNITS

Section 1. The following covenants, conditions and restrictions shall be applicable to all Multi-Family Lots and all Family Dwelling Units which are subject to this Declaration and the Owners thereof.

A. Each Multi-Family Unit shall be used and occupied solely as a single-family residence by the Owners thereof, their families, guests or tenants.

B. The exterior of all Multi-Family Units must be completed within two (2) years after construction of same shall have commenced except where completion is impossible or would result in great hardship to the builder thereof or Owner due to strikes, fires, national emergencies or natural calamities.

C. Each Owner shall maintain his property so as to prevent the development of any unclean, unsightly or unkempt conditions of his Multi-Family Lot or Multi-Family Unit which shall, in the Association's opinion, tend to decrease the beauty of the neighborhood as a whole or the specific area.

D. No noxious or offensive activity shall be carried on in any Multi-Family Unit or upon any Multi-Family Lot, nor shall anything be done tending to cause embarrassment, discomfort, annoyance or nuisance to the neighborhood. There shall not be maintained any plants or animals or device or thing of any sort whose normal activities or existences in any way are noxious, dangerous, unsightly, unpleasant or of a nature as may diminish or destroy the enjoyment of other property in The Township by the Owners thereof.

E. No horses, hogs, cattle, cows, goats, sheep, poultry, or other animals, birds or reptiles, shall be kept, raised or maintained on any Multi-Family Lot provided, however, that dogs, cats and other household pets may be kept in numbers established by the Association if their presence causes no disturbance to others. All pets shall be kept on a leash when not on the Owner's Multi-Family Lot.

F. No commercial activity, trade or business shall be maintained upon any Multi-Family Lot or in any Multi-Family Unit.

G. No fence shall be erected, maintained or permitted on any Multi-Family Lot without the prior written approval of the ARC.

H. No clotheslines or clothes poles shall be erected, maintained or permitted on any Multi-Family Lot.

I. No fuel tanks or similar storage receptacles other than those required for normal residential use shall be allowed, nor may they be exposed to view, and instead may only be installed within an accessory building or buried underground.

J. No garbage, trash, refuse or rubbish shall be deposited, dumped or kept on any Multi-Family Lot except in closed containers, dumpsters or other sanitary garbage collection facilities. All containers, dumpsters and garbage facilities shall be screened from view, kept in a clean and sanitary condition and subject to size restrictions as determined by the ARC; no noxious or offensive odors shall be permitted; no refuse shall be allowed to accumulate so as to constitute a nuisance.

K. No signs of any kind, including commercial signs such as "For Rent", "For Sale" and the like, nor flags of any kind shall be erected or maintained except with the written permission of the ARC or its assigns or except as may be required by legal proceedings, it being understood that the ARC will not grant permission to maintain or erect said signs unless such is reasonably necessary to avert serious hardship to the Owner. If such permission is granted, the ARC reserves the right to restrict size, color and content of such signs.

L. Each Multi-Family Lot shall provide space for off-street parking. The parking and/or storage on property subject to this Declaration of trucks, campers, trailers, mobile homes, buses, storage vehicles or industrial vehicles, except in approved areas, if any, is prohibited without the prior written consent of the Association.

M. No exterior radio antennas, television antennas, electronic antennas, aerials or cables shall be erected or maintained on any Multi-Family Lot or Multi-Family Unit without the prior written consent of the ARC.

N. No tents and no temporary or accessory buildings or structures shall be erected on any Multi-Family Lot without the prior written consent of the ARC.

O. No immoral, improper, offensive or unlawful use shall be made of or conducted on or within any Multi-Family Unit or any part thereof; all laws, zoning ordinances and regulations of all governmental bodies having jurisdiction thereof shall be observed.

P. No trees measuring six (6) inches or more in diameter may be removed from any Multi-Family Lot without the written approval of the ARC, unless located within ten (10) feet of the approved site for Multi-Family Units.

Q. No Multi-Family Lot shall be subdivided or its boundary lines changed except with the prior written consent of the Declarant. However, the Declarant expressly reserves to itself, its successors or assigns the right to replat any Multi-Family Lot shown upon any plat within The Township in order to create a modified Multi-Family Lot or lots and to take such other steps as are reasonably necessary to make such Multi-Family Lot suitable and fit for its intended purpose.

R. The Association shall have the sole authority to determine the existence or non-existence of a nuisance under this Article, and the determination by the Association shall not be limited to those nuisances defined herein, but shall include any act, omission or condition which, in the opinion of the Association, detracts from or interferes with the use and enjoyment intended to be preserved by this Declaration for all Owners.

S. The banks of all waterfront Multi-Family Lots leading to and in the water shall be planted and maintained with grass and shall, at all times, be maintained on a slope ratio of not less than 3 horizontal feet to every vertical foot unless prior approval for other use is obtained from the ARC.

T. No boats powered by internal combustion engines, nor boats which exceed a length of fifteen (15) feet shall be permitted to be kept, stored or used upon the property within The Township without the prior written consent of the Association.

U. No fishing is allowed except in those areas designated by the Association. This, however, does not preclude an Owner, his family and guests from fishing in an area adjacent to his Lot.

V. No bulkheading, barge, dock, piling, float or other structure shall be erected in or adjacent to the water areas within or adjacent to the property subject to this Declaration except with the express written approval of the ARC.

W. No refuse, garbage or other waste material of any kind shall be disposed of in said waters.

X. Prior to the construction and use of a Multi-Family Unit on any Multi-Family Lot, proper and suitable provision shall be made for the disposal of sewage by connection with the sewer mains of the Company or a public utility authority, or if no such main has been constructed in the vicinity of such Multi-Family Lot, such disposal shall be made by means of a septic tank or tanks constructed on such Multi-Family Lot subject to applicable governmental requirements. All sewage shall be emptied or discharged into such main or tanks. No sewage shall be emptied or discharged into any lake, canal or beach or shorelines thereof. No sewage disposal system shall be permitted on any Multi-Family Lot nor may any sewage disposal system be used unless such system is designed, located, constructed and maintained in accordance with the requirements, standards and recommendations of the appropriate public health authority. Approval of such system shall be obtained from such authority after the completion of said system and prior to the use of the system.

Y. No private water wells for purposes other than irrigation may be drilled or maintained on any Multi-Family Lot so long as the Company plans a water distribution line within fifty (50) feet of such Multi-Family Lot, provided, however, that if such water distribution line is not completed within five (5) days from the date of completion of any Multi-Family Unit, a private well may be drilled by the Owner.

ARTICLE IV

SPECIAL RESTRICTIONS AFFECTING PATIO HOME UNITS

Section 1. The following restrictions shall be applicable to all Patio Homes and the Owners thereof:

A. Each Patio Home must be constructed such that one or more walls thereof shall be located within two (2) feet inside of, and parallel to the designated Multi-Family Lot line.

B. The Patio Home shall utilize a portion of the patio wall as one of its exterior walls and shall be constructed so that neither the patio wall nor the Patio Home provides any window or view openings looking into or overlooking the adjacent Patio Home Lot and provides no access way or entry way into the Lot of said adjacent Patio Home.

C. The cost of construction, maintenance and repair of a patio wall shall be the sole responsibility of the Owner on whose Lot the same is located.

D. There shall be reserved an easement on each Lot between the exterior of the patio wall and/or Patio Home and the parallel Lot boundary line for the use and enjoyment of the adjacent Lot Owner, only as hereinafter provided. Said easement area and the exterior of the patio wall and/or Patio Home may be used by an adjacent Owner only for the planting and care of shrubbery and other landscaping, providing the same does not interfere with the structural integrity of the patio wall and/or Patio Home.

E. An easement is further reserved along the boundary line of each Patio Home Lot, adjacent to the patio wall on the adjacent lot, for the construction, repair and maintenance of the patio wall and/or Patio Home on the adjoining Lot. The use of the easement area by an adjoining Owner shall not exceed a reasonable period of time during construction nor shall it exceed a period of thirty (30) days each year for essential maintenance. Any shrubbery or planting in the easement area that is removed or damaged by the adjoining Owner during the construction, maintenance or repair of his patio wall and/or Patio Home, shall be repaired or replaced at the expense of the adjoining Unit Owner causing such damage.

ARTICLE V

GENERAL PROVISIONS

Section 1. Duration. The covenants, conditions and restrictions of this Declaration shall run with and bind the property subject to this Declaration, and shall inure to the benefit of and be enforceable by the Association, the Company or the Owner of any real property subject to this Declaration, their respective legal representatives, heirs, successors, and assigns, for a period of thirty (30) years from the date this Declaration is recorded. Upon the expiration of said thirty (30) year period this Declaration shall be automatically renewed and extended for successive ten (10) year periods. The number of ten (10) year renewal periods hereunder shall be unlimited with this Declaration being automatically renewed and extended upon the expiration of each ten (10) year renewal period for an additional ten (10) year period; provided, however, that there shall be no renewal or extension of this Declaration if during the last year of the initial thirty (30) year period, or during the last year of any subsequent ten (10) year renewal period, three-fourths (3/4) of the votes cast at a duly held meeting of Owners vote in favor of terminating this Declaration at the end of its then current term. It shall be required that written notice of any meeting at which such proposal to terminate this Declaration is to be considered, setting forth the fact that such a proposal will be considered, shall be given at least forty-five (45) days in advance of said meeting. In the event that the Owners vote to terminate this Declaration, the President and Secretary of the Association shall execute a certificate which shall set forth the resolution of termination adopted by the Owners, the date of the meeting of the Owners at which such resolution was adopted, the date that notice of such meeting was

given, the total number of votes of Owners, the total number of votes cast in favor of such resolution, and the total number of votes cast against such resolution. Said certificate shall be recorded in the Official Real Estate Records for Broward County, Florida, and may be relied upon for the correctness of the facts contained therein as they relate to the termination of this Declaration.

Section 2. Enforcement. Enforcement of these covenants, conditions and restrictions shall be by any proceeding at law or in equity against any person or persons violating or attempting to violate or circumvent any covenant, condition or restriction, either to restrain violation or to recover damages, and against the land and to enforce any lien created by these covenants; and failure by the Association or any Owner or the Company to enforce any covenant, condition or restriction herein contained for any period of time shall in no event be deemed a waiver or estoppel of the right to enforce same thereafter.

Section 3. Additional Restrictions. The Company reserves in each instance the right to add additional restrictive covenants in respect to lands conveyed subsequent to the recording of this Declaration, or to limit therein the application of these covenants, provided that no limitations shall be made applicable to a portion of the Lots in a platted subdivision, with any limitations to this Declaration to be applicable only as to subdivisions in which no parcels have been previously conveyed subject to this Declaration.

Section 4. Construction. In the event of any conflict or ambiguity between the terms and conditions of this Declaration and the Declaration of Covenants, Conditions and Restrictions of The Township Phase I, the latter shall have priority over this Declaration, and the latter shall take precedence over and supersede the terms and conditions of this Declaration.

IN WITNESS WHEREOF, the Declarant, Tartan Minto Corporation, has caused this Declaration to be executed in its name and its corporate seal to be affixed this _____ day of _____ 1980.

Signed, sealed and delivered
in the presence of:

TARTAN MINTO CORPORATION,
a Florida corporation (SEAL)

By: _____
President

Attest: _____
Secretary

(CORPORATE SEAL)

STATE OF FLORIDA)
) ss
COUNTY OF)

BEFORE ME, the undersigned authority, a notary public in and for the State of Florida at Large, personally appeared _____ and _____, President and Secretary respectively, of TARTAN MINTO CORPORATION, a Florida corporation, known to me to be the persons referred to in the foregoing instrument and who acknowledged before me that they executed the foregoing Declaration of Class "B" Residential Covenants, Conditions and Restrictions as President and Secretary of said corporation, affixed the seal of said corporation and did so as the act and deed of said corporation.

WITNESS my hand and official seal at _____, Florida, this _____ day of _____, 1980.

NOTARY PUBLIC
State of Florida at Large
My Commission Expires:

(NOTARY SEAL)

CONSENT AND JOINDER

WHEREAS, Minto Builders (Florida), Inc., a Florida corporation ("Minto"), is the owner of the following described property included in Exhibit "A" ("Land"):

Tracts 1 through 9 and Tracts 11 through 14 of Tartan Coconut Creek Phase I, according to the Plat thereof, recorded in Plat Book 103, Page 29, of the Public Records of Broward County, Florida.

WHEREAS, Minto acquired the Land from the Declarant and, in partial consideration therefor, agreed to subject the Land to, and cause the Land to be restricted by, the foregoing Declaration of Class "B" Residential Covenants, Conditions and Restrictions.

NOW, THEREFORE, Minto reaffirms said Agreement and does hereby join in and consent to the submission of the Land to the terms and conditions of said Declaration. Notwithstanding anything herein to the contrary, it is expressly understood and agreed that Minto is not the Declarant of said Declaration.

This Consent and Joinder shall be binding upon Minto, its successors and assigns.

IN WITNESS WHEREOF, Minto has caused this Consent and Joinder to be executed in its name and its corporate seal to be affixed this _____ day of _____, 1980.

Signed, sealed and delivered
in the presence of:

MINTO BUILDERS (FLORIDA), INC., a
Florida corporation (SEAL)

By: _____, President

Attest: _____, Secretary

STATE OF FLORIDA)
) ss
COUNTY OF)

BEFORE ME, the undersigned authority, a notary public in and for the State of Florida at Large, personally appeared _____ and _____, President and Secretary respectively, of MINTO BUILDERS (FLORIDA), INC., a Florida corporation, known to me to be the persons referred to in the foregoing instrument and who acknowledged before me that they executed the foregoing Declaration of Class "B" Covenants, Conditions and Restrictions as President and Secretary of said corporation, affixed the seal of said corporation and did so as the act and deed of said corporation.

WITNESS my hand and official seal at _____, Florida, this _____ day of _____, 1980.

NOTARY PUBLIC, State of Florida
at Large

My Commission Expires:

(NOTARY SEAL)

EXHIBIT A
LEGAL DESCRIPTION
- NONE -

EXHIBIT B
LEGAL DESCRIPTION
- NONE -

Articles of Incorporation of Township
Community Master Association, Inc.

ARTICLES OF INCORPORATION

-of-

THE TOWNSHIP COMMUNITY MASTER ASSOCIATION, INC.

A Non-Profit Corporation

The undersigned hereby associate themselves for the purpose of forming a corporation not for profit under and pursuant to Chapter 617, Florida Statutes, and do hereby state as follows:

ARTICLE I

NAME

The name of this corporation shall be THE TOWNSHIP COMMUNITY MASTER ASSOCIATION, INC. ("Association").

ARTICLE II

PURPOSES

The purposes for which this Association is formed are as follows:

A. To take title to and to to operate, maintain, repair, improve, lease and administer the Common Property, Residential Common Property, Recreational Facilities, and Commercial Common Property (hereinafter referred to as the "Property") which are defined in and subject to the Declaration of Covenants, Conditions and Restrictions of THE TOWNSHIP, which Declaration is or shall be recorded in the Official Records of Broward County, Florida (said Declaration, as amended from time to time, is hereinafter referred to as the "Declaration"), and to own, operate, lease, sell and trade property, whether real or personal, including Residential Lots, Family Dwelling Units, Multi-Family Tracts, Commercial Units and Commercial Sites subject to the Declaration, as may be necessary or convenient in the administration of the Properties.

B. To carry out the duties and obligations and receive the benefits given the Association by the Declaration.

C. To establish by-laws ("By-Laws") for the operation of the Association and rules and regulations for governing the same, and enforce the provisions of the Declaration, these Articles of Incorporation and the By-Laws.

D. To contract for the management of the Property and to delegate to the party with whom such contract has been executed the appropriate powers and duties of the Association except those which require specific action by or approval of the board of directors or members ("Members") of the Association.

E. Fix, levy, collect and enforce payment by any lawful means of all charges and/or assessments made pursuant to the terms of the Declaration; to pay all expenses in connection therewith and all office and other expenses incident to the conduct of the business of the Association, including all licenses, taxes or governmental charges levied or imposed against the property of the Association.

F. Acquire (by gift, purchase or otherwise), own, hold improve, build upon, operate and maintain both real and personal property in connection with the affairs of the Association.

G. Dedicate, sell or transfer all or any part of the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property owned by the Association to any public agency, authority or utility for such purposes and subject to such conditions as may be agreed to by the Members. No such dedication or transfer shall be effective except upon an affirmative vote of the Members, as provided herein, whose annual and special assessments are used for maintenance and acquisition of such properties.

H. To participate in mergers and consolidations with other non-profit corporations provided that any such merger

or consolidation shall have been approved by the Members as provided herein.

I. The Association shall have all of the common law and statutory powers provided under the laws of the State of Florida, and those powers provided by the Declaration, these Articles and the By-Laws of the Association.

ARTICLE III

MEMBERS

A. All Owners shall automatically be Members of the Association. Membership certificates are not required and shall not be issued.

B. Membership in the Association shall consist of the following three (3) classes, each with distinct rights and privileges:

Class "A" - Class "A" Members shall be all those Owners of Residential Lots and Single-Family Units, including the Company.

Class "B" - Class "B" Members shall be all those Owners of Multi-Family Units, including the Company.

Class "C" - Class "C" Members shall be all those Owners of Multi-Family Tracts, Commercial Sites, Commercial Units, and Undivided Lands, including the Company.

C. Change of membership shall be established by recording in the Public Records of Broward County, Florida, a deed or other instrument conveying record fee title to any Residential Lot, Family-Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit or Undivided Land and by the delivery to the Association of a certified copy of such instrument. The Owner designated by such instrument thus becomes a Member of the Association, and the membership of the prior owner shall be terminated. In the event that a certified copy of said instrument is not delivered to the Association, said Owner shall become a Member, but shall not be entitled to voting privileges enjoyed by his predecessor in inter-

est. The foregoing shall not, however, limit the Association's powers or privileges. The interest, if any, of a Member in the funds and assets of the Association shall not be assigned, hypothecated or transferred in any manner except as an appurtenance to his real property. Membership in the Association by all Owners shall be compulsory and shall continue until such time as the Owner transfers or conveys of record his interest in the real property upon which his membership is based or until said interest is transferred or conveyed by operation of law, at which time the membership shall automatically be conferred upon the transferee. Membership shall be appurtenant to, run with, and shall not be separated from the real property interest upon which membership is based.

D. The number of votes which may be cast on all matters on which the membership is entitled to vote shall be determined as follows:

(1) Each Class "A" Member shall be entitled to cast one (1) vote for each Residential Lot or Single-Family Unit owned by said Member.

(2) The voting rights of all Class "B" Members shall be exercised on their collective behalf by the Sub-Association to which they belong, except that if a Class "B" Member does not belong to a Sub-Association, he shall be entitled to one vote for each Multi-Family Unit owned by said Member. A Sub-Association in the collective exercise of Class "B" voting rights shall be entitled to cast the number of votes equal to the number of Multi-Family Units owned by its Members.

(3) Except as may be provided elsewhere in these Articles, the Declaration or the By-Laws, Class "C" Members shall not be entitled to vote. When entitled to vote, Class "C" Members who are Commercial Unit Owners shall be entitled to cast one (1) vote for each Commercial Unit owned by said Member, and Class "C" Members who are Multi-Family Tract or

Commercial Site Owners shall be entitled to cast one (1) vote for each Multi-Family Unit or Commercial Unit that said Members' property will have once improved in accordance with the Development Plan. When entitled to vote, Class "C" Members who are Undivided Land Owners shall be entitled to cast one (1) vote for each Family Dwelling Unit or Commercial Unit that said Members property will have once improved in accordance with the Development Plan. Size and square footage of Multi-Family Units or Commercial Units are irrelevant considerations for purposes of this subparagraph (3).

(4) Should any Class "A" Member be the Owner of more than one (1) Residential Lot or Single-Family Unit he shall be entitled to cast one (1) vote for each such Lot or Unit; provided, however, that any Class "A" Member who also qualifies under this Article as a Class "B" Member shall, notwithstanding this fact, be allowed to exercise both Class "A" and Class "B" membership rights, and the number of votes which he may cast shall be determined with regard to his ownership of both Class "A" and Class "B" property.

(5). When any property entitling the Owner to membership in the Association is owned of record in the name of two or more persons or entities, whether fiduciaries, joint tenants, tenants in common, tenants in partnership or in any other manner of joint or common ownership, or if two or more persons or entities have the same fiduciary relationship respecting the same property, then unless the instrument or order appointing them or creating the tenancy otherwise directs and it or a copy thereof is filed with the secretary of the Association, such owner shall select one official representative to qualify for voting in the Association and shall notify the Secretary of the Association of the name of such individual. The vote of such individual shall be considered to represent the will of all the owners of that property.

(6) The voting rights of any Owner may be assigned by an Owner to his lessee who has entered into a lease with a term of two (2) years or more; provided, however, that the Owner may not assign to such lessee any vote or votes not attributable to the property actually leased by such lessee.

E. The Association may give, dedicate or sell all or any part of the Property (including leasehold interest therein) to any public agency, authority, or utility or private concern for such purposes and subject to such conditions as may be determined by the Association, provided that no such gift or sale or determination of such purposes or conditions shall be effective unless the same shall be authorized by the affirmative vote of three-fourths (3/4) of the votes cast at a duly called meeting of the Members of the Association, (including three-fourths (3/4) of the votes of Class "C" Members where such transfer involves Commercial Common Property) and unless written notice of the meeting and of the proposed agreement and action thereunder is sent at least thirty (30) days prior to such meeting to every Member entitled hereunder to vote. A true copy of such resolution together with a certificate of the results of the vote taken thereon shall be made and acknowledged by the President or Vice-President and Secretary or Assistant Secretary of the Association and such certificate shall be annexed to any instrument of dedication or transfer affecting the Common Property, Residential Common Property, Recreational Facilities or Commercial Common Property, prior to the recording thereof. Such certificate shall be conclusive evidence of authorization by the Members.

F. The participation in a merger or consolidation with other corporations not for profit shall require the same vote as is provided in paragraph E hereinabove.

ARTICLE IV

EXISTENCE

This Association shall have perpetual existence.

ARTICLE V

SUBSCRIBERS

The names and street addresses of the subscribers to these Articles of Incorporation are as follows:

<u>Name</u>	<u>Address</u>
JAMES MACKENZIE	1580 N.W. 2 Avenue, Suite 6 Boca Raton, Florida 33432
JEFFREY MILLER	1580 N.W. 2 Avenue, Suite 6 Boca Raton, Florida 33432
GEORGE P. ORD	321 Royal Poincia Plaza South Palm Beach, Florida 33480

ARTICLE VI

DIRECTORS

A. The affairs and property of the Association shall be managed and governed by a Board of Directors ("Board of Directors") composed of not less than three (3) persons ("Directors"). The first Board of Directors shall have three (3) members and, in the future, the number shall be determined from time to time in accordance with By-Laws of the Association.

B. Directors shall be elected by the Members in accordance with the By-Laws at the regular annual meetings of the membership of the Association. Directors shall be elected to serve for a term of one (1) year and, in the event of a vacancy, the remaining Directors may appoint a Director to serve the balance of said unexpired term. The Directors named herein shall serve until the first election of a director or directors as provided in the By-Laws and any vacancies in their number occurring before the first election shall be filled by the remaining Directors.

ARTICLE VII

FIRST BOARD OF DIRECTORS

The following persons shall constitute the first Board of Directors and shall serve until the first election of the Board of Directors at the first regular meeting of the membership:

<u>Name</u>	<u>Address</u>
JAMES MACKENZIE	1580 N.W. 2 Avenue, Suite 6 Boca Raton, Florida 33432
JEFFREY MILLER	1580 N.W. 2 Avenue, suite 6 Boca Raton, Florida 33432
GEORGE P. ORD	321 Royal Poincia Plaza South Palm Beach, Florida 33480

ARTICLE VIII

OFFICERS

A. Subject to the direction of the Board of Directors, the affairs of the Association shall be administered by officers who shall be elected by and serve at the pleasure of said Board of Directors. The following persons shall constitute the initial officers of the Association and they shall continue to serve as such officers until removed by the Board of Directors:

<u>Name</u>	<u>Office</u>
JAMES MACKENZIE	President/Treasurer
JEFFREY MILLER	Vice President/Secretary
GEORGE P. ORD	Assistant Secretary

B. All officers shall be elected by the Board of Directors in accordance with the By-Laws at the regular annual meeting of the Board as established by the By-Laws. The Board of Directors shall elect a President, Vice President, Secretary, Treasurer and such other officers as it shall deem desirable. The President shall be elected from among the membership of the Board of Administration but no other officer need be a Director.

ARTICLE IX

BY-LAWS

A. The By-Laws of this Association shall be adopted by the Board of Directors. The By-Laws may be amended by the Members in the manner provided in said By-Laws.

B. No amendment to the By-Laws shall be passed which would change the rights and privileges of the Declarant referred to in the Declaration without the Declarant's written approval.

C. No amendment to the By-Laws shall be passed which would operate to impair or prejudice the rights or liabilities of any mortgagee.

ARTICLE X

AMENDMENTS

A. Proposals for amendments to these Articles of Incorporation which do not conflict with the Declaration may be made by a majority of the Board of Directors or a majority of the Members. Such proposals shall be in writing and shall be delivered to the President who shall thereupon call a special meeting of the Members not less than forty-five (45) days nor more than sixty (60) days following his receipt of the proposed amendment. Notice of such special meeting shall be given and posted in the manner provided in the By-Laws. An affirmative vote of three-fourths (3/4) of the Members present at a duly called and held meeting of the Association and an affirmative vote of two-thirds (2/3) of the Board of Directors shall be required for approval of the proposed amendment.

B. Any Member may waive any or all of the requirements of this Article as to the submission of proposed amendments to these Articles of Incorporation to the President or notice of special meetings to vote thereon, either before, at or after a membership meeting at which a vote is taken to amend these Articles.

C. Notwithstanding the provisions of Paragraph A above, no amendment may be made to these Articles of Incorporation which would in any way prejudice or impair any right or privilege of a

Class C Member without the affirmative vote of three-fourths (3/4) of the Class C Members.

ARTICLE XI

INDEMNIFICATION

Every Director and officer of the Association shall be indemnified by the Association against all expenses and liabilities, including counsel fees reasonably incurred by or imposed upon him, in connection with any proceedings or any settlement thereof, to which he may be a party, or in which he may become involved by reason of his being or having been a Director or officer of the Association, whether or not he is a Director or officer at the time such expenses are incurred, except in such cases wherein the Director or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties; provided, that all settlements must be approved by the Board of Directors as being in the best interest of the Association. The foregoing right of indemnification shall be in addition to and not exclusive of all other rights to which such Director or officer may be entitled.

ARTICLE XII

CONSTRUCTION

In the event of any conflict or ambiguity between the terms and conditions of the Declaration and these Articles or the By-Laws, the Declaration shall have priority over these Articles and the By-Laws and the terms and conditions of the Declaration shall take precedence over and supersede the terms and conditions of the Articles and the By-Laws. In the event of a conflict between these Articles and the By-Laws, the terms of the Articles shall take precedence over the terms of the By-Laws. Any conflict or ambiguity with regard to the affairs of the Association shall be resolved by reference to this provision.

ARTICLE XV

ADDRESS

The principal address of the Association shall be 1580 N.W. 2 Avenue, Suite 6, Boca Raton, Florida 33432 or at such other place as may be subsequently designated by the Board of Directors.

IN WITNESS WHEREOF, we have hereunto set our hands and seals at _____, Broward County, Florida, this _____ day of _____, 1980.

Signed, Sealed and Delivered
in the Presence of:

Bylaws of Township Community
Master Association, Inc.

BY-LAWS

- of -

THE TOWNSHIP COMMUNITY MASTER ASSOCIATION, INC.

ARTICLE I

GENERAL

Section 1. Name. The name of the corporation shall be THE TOWNSHIP COMMUNITY MASTER ASSOCIATION, INC. ("Association").

Section 2. Principal Office. The principal office of the Association shall be 3880 Coconut Creek Parkway, Coconut Creek, Florida 33066 or at such other place as may be subsequently designated by the Board of Directors. All books and records of the Association shall be kept at its principal office.

Section 3. Definitions. As used herein, the term corporation shall be synonymous with "Association" as defined in the Declaration of Covenants, Conditions and Restrictions for THE TOWNSHIP, which is or shall be recorded in the Public Records of Broward County, Florida, ("Declaration"), and the words "Sub-Association", "Company", "Residential Common Property", "Commercial Common Property", "Recreational Facilities", "Single-Family Unit", "Multi-Family Unit", "Family Dwelling Unit", "Common Property", "Owner" and "Declarant" are defined as set forth in the Declaration. As used herein, the word "Lot" shall mean and refer to any parcel of land which is intended for or actually used as a site for a Family Dwelling Unit or Commercial Unit.

ARTICLE II

DIRECTORS

Section 1. Number and Term. The number of directors ("Directors") which shall constitute the Association's Board of Directors shall be not less than three (3) and no more than six (6). Until succeeded by Directors elected at the first meeting of members ("Members"), Directors need not be Members of the Association, but, thereafter, all Directors, except for those Directors

elected by the Declarant, shall be Members of the Association. Within the limits above specified, the number of Directors shall be elected to serve for a term of one (1) year or until his successor shall be elected and shall qualify. The first Board of Directors shall have three (3) members.

Section 2. Vacancy and Replacement. If the office of any Director or Directors becomes vacant by reason of death, resignation, retirement, disqualification, removal from office or otherwise, a majority of the remaining Directors, though less than a quorum, at a special meeting of Directors duly called for this purpose, shall choose a successor or successors who shall hold office for the unexpired portion of the term of the vacated office. Notwithstanding the foregoing, the Declarant is authorized to replace any Director elected by the Declarant.

Section 3. Removal. Any member of the Board of Directors may be removed from office with or without cause by the vote or agreement in writing of holders of a majority of the total votes of the members. A special meeting of the members of the Association to remove a member or members of the Board of Directors may be called by holders of ten percent (10%) of the total votes of members giving notice of the meeting as required for a meeting of Members and the notice shall state the purpose of the meeting. No Director shall continue to serve on the Board if, during his term of office, his membership in the Association shall be terminated for any reason whatsoever. The above provisions shall not be applicable to Directors elected or appointed by the Declarant. If any Director fails to pay any Assessment levied against him by the Board of Directors, whether regular or special Assessment, within thirty (30) days after its due date, he shall automatically be removed as a Director and the remaining Directors shall select a successor to serve the unexpired portion of the term of said removed Director.

Section 4. Powers. The property and business of the Association shall be managed by the Board of Directors, which may exer-

cise all corporate powers not specifically prohibited by the Florida Statutes, the Articles of Incorporation or the Declaration. The powers of the Board of Directors shall specifically include, but not be limited to, the following:

A. To levy and collect regular and special assessments.

B. To use and expend the assessments collected to acquire, maintain, operate, lease, care for and preserve the Common Property, Recreational Facilities, Residential Common Property and Commercial Common Property.

C. To purchase the necessary equipment required in the maintenance, care and preservation referred to above.

D. To enter into and upon the Lots when necessary, with as little inconvenience to the Owners as possible, in connection with said maintenance, care and preservation.

E. To insure and keep insured said Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property against loss from fire and/or other casualty and the Owners against public liability, and to purchase such other insurance as the Board of Directors may deem advisable.

F. To collect delinquent assessments by suit or otherwise, abate nuisances and enjoin or seek damages from the Members for violations of these By-Laws, the Articles of Incorporation, the Declaration, and the rules and regulations promulgated by the Board of Directors.

G. To employ and compensate such personnel as may be required for the maintenance and preservation of the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property.

H. To make reasonable rules and regulations applicable to all members.

I. To contract for the management of the Properties and to delegate to such other party all powers and duties of

the Association except those specifically required by the Declaration to have the specific approval of the Board of Directors or membership.

J. To carry out the obligations of the Association under any easements, restrictions or covenants running with any land subject to the Declaration.

K. To perform the services authorized or required of the Association pursuant to the Declaration or the Articles of Incorporation.

Section 5. Compensation. Neither Directors nor officers shall receive compensation for their services as such.

Section 6. Meetings. Meetings of the Board of Directors shall be held in accordance with the following:

A. The first meeting of each Board of Directors newly elected by the Members shall be held immediately upon adjournment of the meeting at which they were elected, provided a quorum shall then be present, or as soon thereafter as may be practicable. The annual meeting of the Board of Directors shall be held at the same place as the Members' meeting and immediately after the adjournment of same.

B. Special meetings shall be held whenever called by the president or a majority of the Board. The secretary shall give notice of each special meeting either personally or by mail or telegram, at least three (3) days before the date of such meeting, but the Directors may waive notice of the calling of the meeting.

C. Meetings of the Board of Directors shall be open to all Members and, except in cases of emergency, notices of such meetings shall be posted conspicuously on the Common Property at least forty-eight (48) hours in advance of such meetings.

D. A majority of the Board shall be necessary at all meetings to constitute a quorum for the transaction of business and the act of a majority present at any meeting at which there is a quorum shall be the act of the Board. If a

quorum shall not be present at the meeting, the Directors then present may adjourn the meeting until a quorum shall be present.

Section 7. Order of Business. The order of business at all meetings of the Board shall be as follows:

- A. Roll call.
- B. Reading of minutes of the last meeting.
- C. Consideration of communications.
- D. Resignations and elections.
- E. Reports of officers and employees.
- F. Reports of committees.
- G. Unfinished business.
- H. Original resolutions and new business.
- I. Adjournment.

Section 8. Accounting Records. The Association shall maintain accounting records according to generally accepted principles of accounting, consistently applied, which shall be open to inspection by Members or their authorized representatives at a reasonable time and written summaries of which shall be supplied at least annually to Members or their authorized representatives. Such records shall include, but are not limited to, a record of all receipts and expenditures and an account for each Family Dwelling Unit, Residential Lot, Multi-Family Tract, Commercial Site and Commercial Unit, which account shall designate the name and address of the Owner, the amount of each Assessment, the dates and amounts in which the Assessments come due, the amounts paid upon the account and the balance due.

ARTICLE III

OFFICERS

Section 1. Officers. The officers of the Association shall be a President, Vice-President, Treasurer and Secretary, all of whom shall be elected annually by the Board of Directors. Any two (2) of said offices may be united in one (1) person, except that

the President shall not also be the Secretary or an Assistant Secretary of the Association. If the Board so determines, there may be more than one (1) Vice- President.

Section 2. Subordinate Officers. The Board of Directors may appoint such other officers and agents as it may deem necessary, who shall hold office at the pleasure of the Board of Directors and who shall have such authority and perform such duties as from time to time may be prescribed by said Board.

Section 3. Tenure of Officers; Removal. All officers and agents shall be subject to removal, with or without cause, at any time by action of the Board of Directors, which may delegate such powers to any officer. In the event that any officer fails to pay any Assessment levied by the Board of Directors, whether regular or special Assessment, within thirty (30) days of its due date, said officer shall automatically be removed from office and the Board of Directors shall appoint a successor.

Section 4. The President.

A. The President shall be chairman of, and shall preside at all meetings of the Members and Directors, shall have general and active management authority over the business of the Association except that which is delegated, shall see that all orders and resolutions of the Board are carried into effect, and shall execute bonds, mortgages and other contracts requiring a seal of the Association. The seal, when affixed, shall be attested by the signature of the Secretary and the Assistant Secretary or the Treasurer.

B. He shall supervise and direct all other officers of the Association and shall see that their duties are performed properly.

C. He shall submit a report of the operations of the Association for the fiscal year to the Directors (whenever called for by them) and to the Members at their annual meeting, and from time to time shall report to the Board all

matters within his knowledge which the best interests of the Association may require be brought to its notice.

D. He shall be an ex-officio member of all committees and shall have the general powers and duties of supervision and management usually vested in the office of the President of a corporation.

Section 5. The Vice-President. The Vice-President shall be vested with all the powers and be required to perform all the duties of the President in his absence, together with such other duties as may be prescribed by the Board of Directors or the President.

Section 6. The Secretary.

A. The Secretary shall keep the minutes of meetings of the Members and of the Board of Directors in one (1) or more books provided for that purpose. The minute book shall be available for inspection by all Members, or their authorized representatives, and by the Board of Directors, which minutes shall be retained for a period of not less than seven (7) years.

B. He shall see that all notices are duly given in accordance with the provisions of these By-Laws or as otherwise required by law.

C. He shall be the custodian of the corporate records and of the seal of the Association and shall see that the seal of the Association is affixed to all documents of which a seal is required and the execution of which, on behalf of the Association, under its seal, is duly authorized in accordance with the provisions of these By-Laws.

D. He shall keep a register of the post office address of each Member, which shall be furnished to the Secretary by such Member.

E. In general, he shall perform all duties incident to the office of the Secretary and other duties as from time to

time may be assigned to him by the President or by the Board of Directors.

Section 7. The Treasurer.

A. The Treasurer shall keep full and accurate accounts of receipts and disbursements in books belonging to the Association, and shall deposit all monies and other valuable effects in the name and to the credit of the Association in such depositories as may be designated by the Board of Directors.

B. He shall disburse the funds of the Association as ordered by the Board, taking proper vouchers for such disbursement, and shall render to the President and Directors, at the regular meeting of the Board, or whenever they may require it, an account of all his transactions as Treasurer and of the financial condition of the Association.

C. He may be required to give the Association a bond in a sum and with one (1) or more sureties satisfactory to the Board for the faithful performance of the duties of his office and the restoration to the Association, in case of his death, resignation or removal from office, of all books, papers, vouchers, money or other property of whatever kind in his possession belonging to the Association.

Section 8. Vacancies. If the office of the President, Vice-President, Secretary, Treasurer or any other office established by the Board of Directors becomes vacant by reason of death, resignation, disqualification or otherwise, the Directors, by a majority vote of the Board of Directors, may choose a successor or successors who shall hold office for the unexpired portion of the term of the vacated office.

Section 9. Resignations. Any Director or officer may resign his office at any time, in writing, which resignation shall take effect from time of its receipt by the Association, unless some later time be fixed in the resignation, and then from that date.

The acceptance of a resignation shall not be required to make it effective.

ARTICLE IV

MEMBERSHIP

Section 1. Definition.

A. All Owners shall automatically be Members of the Association. Membership certificates are not required and shall not be issued.

B. Membership in the Association shall consist of the following three (3) classes, each with distinct rights and privileges:

Class "A" - Class "A" Members shall be all those Owners of Residential Lots and Single-Family Units, including the Company.

Class "B" - Class "B" Members shall be all those Owners of Multi-Family Units, including the Company.

Class "C" - Class "C" Members shall be all those Owners of Multi-Family Tracts, Commercial Sites, Commercial Units, and Undivided Lands, including the Company.

Section 2. Change of Membership. Change of membership shall be established by recording in the Public Records of Broward County, Florida, a deed or other instrument conveying record fee title to any Residential Lot, Family-Dwelling Unit, Multi-Family Tract, Commercial Site, Commercial Unit or Undivided Land and by the delivery to the Association of a certified copy of such instrument. The Owner designated by such instrument thus becomes a Member of the Association, and the membership of the prior owner shall be terminated. In the event that a certified copy of said instrument is not delivered to the Association, said Owner shall become a Member, but shall not be entitled to voting privileges enjoyed by his predecessor in interest. The foregoing shall not, however, limit the Association's powers or privileges. The interest, if any, of a Member in the funds and assets of the Associa-

tion shall not be assigned, hypothecated or transferred in any manner except as an appurtenance to his real property. Membership in the Association by all Owners shall be compulsory and shall continue until such time as the Owner transfers or conveys of record his interest in the real property upon which his membership is based or until said interest is transferred or conveyed by operation of law, at which time the membership shall automatically be conferred upon the transferee. Membership shall be appurtenant to, run with, and shall not be separated from the real property interest upon which membership is based.

Section 3. Voting Rights. The number of votes which may be cast on all matters on which the membership is entitled to vote shall be determined as follows:

A. Each Class "A" Member shall be entitled to cast one (1) vote for each Residential Lot or Single-Family Unit owned by said Member.

B. The voting rights of all Class "B" Members shall be exercised on their collective behalf by the Sub-Association to which they belong, except that if a Class "B" Member does not belong to a Sub-Association, he shall be entitled to one vote for each Multi-Family Unit owned by said Member. A Sub-Association in the collective exercise of Class "B" voting rights shall be entitled to cast the number of votes equal to the number of Multi-Family Units owned by its Members.

C. Except as may be provided elsewhere in these By-Laws, the Declaration or the Articles of Incorporation, Class "C" Members shall not be entitled to vote. When entitled to vote, Class "C" Members who are Commercial Unit Owners shall be entitled to cast one (1) vote for each Commercial Unit owned by said Member, and Class "C" Members who are Multi-Family Tract or Commercial Site Owners shall be entitled to cast one (1) vote for each Multi-Family Unit or Commercial Unit that said Members' property will have once improved in

accordance with the Development Plan. When entitled to vote, Class "C" Members who are Undivided Land Owners shall be entitled to cast one (1) vote for each Family Dwelling Unit or Commercial Unit that said Members property will have once improved in accordance with the Development Plan. Size and square footage of Multi-Family Units or Commercial Units are irrelevant considerations for purposes of this subparagraph (C).

D. Should any Class "A" Member be the Owner of more than one (1) Residential Lot or Single-Family Unit he shall be entitled to cast one (1) vote for each such Lot or Unit, provided however, that any Class "A" Member who also qualifies under this Article as a Class "B" Member shall, notwithstanding this fact, be allowed to exercise both Class "A" and Class "B" membership rights, and the number of votes which he may cast shall be determined with regard to his ownership of both Class "A" and Class "B" property.

E. When any property entitling the Owner to membership in the Association is owned of record in the name of two or more persons or entities, whether fiduciaries, joint tenants, tenants in common, tenants in partnership or in any other manner of joint or common ownership, or if two or more persons or entities have the same fiduciary relationship respecting the same property, then unless the instrument or order appointing them or creating the tenancy otherwise directs and it or a copy thereof is filed with the secretary of the Association, such owner shall select one official representative to qualify for voting in the Association and shall notify the Secretary of the Association of the name of such individual. The vote of such individual shall be considered to represent the will of all the owners of that property.

F. The voting rights of any Owner may be assigned by an Owner to his lessee who has entered into a lease with a term of two (2) years or more; provided, however, that the

Owner may not assign to such lessee any vote or votes not attributable to the property actually leased by such lessee.

G. The Association may give, dedicate or sell all or any part of the Property (including leasehold interest therein) to any public agency, authority, or utility or private concern for such purposes and subject to such conditions as may be determined by the Association, provided that no such gift or sale or determination of such purposes or conditions shall be effective unless the same shall be authorized by the affirmative vote of three-fourths (3/4) of the votes cast at a duly called meeting of the Association, (including three-fourths (3/4) of the Class "C" votes where such transfer involves Commercial Common Property) and unless written notice of the meeting and of the proposed agreement and action thereunder is sent at least thirty (30) days prior to such meeting to every Member entitled hereunder to vote. A true copy of such resolution together with a certificate of the results of the vote taken thereon shall be made and acknowledged by the President or Vice-President and Secretary or Assistant Secretary of the Association and such certificate shall be annexed to any instrument of dedication or transfer affecting the Common Property, Residential Common Property, Recreational Facilities and Commercial Common Property, prior to the recording thereof. Such certificate shall be conclusive evidence of authorization by the Members.

H. The participation in a merger or consolidation with other corporations not for profit shall require the same vote as is provided in paragraph G hereinabove.

ARTICLE V

MEETINGS OF ASSOCIATION

Section 1. Place. All meetings of the Association shall be held at such place as may be stated in the notice of the meeting.

Section 2. Annual Meeting.

A. The first annual meeting of the Association shall be held on the second Tuesday of February, 1982, if not a legal holiday and, if a legal holiday, then on the next business day following. In addition to the election of Directors at said first meeting, such other business as may properly come before the meeting may be transacted.

B. Regular annual meetings subsequent to the first meeting shall be held at 10:00 A.M. on the first Monday in February of each year if not a legal holiday and, if a legal holiday, then on the next business day following.

C. At the annual meetings, the Members or those voting on their behalf, by a majority vote (cumulative voting prohibited) shall elect a Board of Directors and transact such other business as may properly come before the meeting.

D. Written notice of the annual meeting shall be personally served upon or mailed by certified mail to each Member or that person voting on his behalf, including a tenant of same or a Sub-Association, entitled to vote at such address as appears on the books of the Association, at least fourteen (14) days prior to the meeting. A notice of such meeting shall be posted at a conspicuous place on the Common Properties at least fourteen (14) days prior to the meeting.

Section 3. Voting List. At least fourteen (14) days before every election of Directors, a complete list of those persons entitled to vote at said election shall be prepared by the Secretary. Such list shall be produced and kept for said fourteen (14) days and throughout the election at the office of the Association and shall be open to examination by any person entitled to vote throughout such time.

Section 4. Special Meetings.

A. Special meetings of the Association, for any purpose or purposes, unless otherwise prescribed by statute or by the Articles of Incorporation, may be called by the

President, and shall be called by the President or Secretary at the request, in writing, of those persons entitled to vote holding one-third (1/3) of the total Class A or Class B votes. Should the President fail to call such a special meeting, such persons may, in lieu thereof, call such meeting. Such request shall state the purpose or purposes of the proposed meeting.

B. Written notice of a special meeting of Association stating the time, place and object thereof shall be served upon or mailed to each person entitled to vote thereon at such address as appears on the books of the Association at least seven (7) days before such meeting. A notice of such meeting shall be posted at a conspicuous place on the Common Properties at least seven (7) days prior to the meeting.

C. Business transacted at all special meetings shall be confined to the objects stated in the notice thereof.

Section 5. Quorum. Persons entitled to vote holding a majority of the total Class A and Class B votes, present in person or represented by written proxy, shall be requisite to and shall constitute a quorum at all meetings of the Association for the transaction of business, except as otherwise provided by statute, the Articles of Incorporation or these By-Laws. If, however, such quorum shall not be present or represented at any meeting of the Association, the persons entitled to vote thereat, present in person or represented by written proxy, shall have the power to adjourn the meeting from time to time, without notice other than announcement at the meeting, until a quorum shall be present or represented. At such adjourned meeting at which a quorum shall be present or represented, any business may be transacted which might have been transacted at the meeting originally called.

Section 6. Vote Required to Transact Business. When a quorum is present at any meeting, a majority of the votes cast, in person or represented by written proxy, shall decide any question brought before the meeting, unless the question is one which, by

express provision of the Florida Statutes, the Declaration, the Articles of Incorporation or these By-Laws requires a different vote, in which case such express provision shall govern and control the decision of such question.

Section 7. Right to Vote.

A. Members who are delinquent in the payment of Assessments shall not be entitled to vote nor shall any person on said Member's behalf be entitled to vote at any meeting of the Association, annual or special, for so long as any such Assessments remain delinquent.

B. All proxies must be in writing, signed by the person entitled to vote granting the proxy and filed with the Secretary prior to the meeting, annual or special, for which said proxy is granted. The proxy shall be valid only for such meeting or meetings subsequently held pursuant to an adjournment of that meeting. Proxies may be given only to a voting Member or person authorized to vote on his behalf.

Section 8. Waiver and Consent. Whenever the vote of Members or persons on their behalf at a meeting is required or permitted by any provision of the Florida Statutes, the Declaration, the Articles of Incorporation or these By-Laws in connection with any action of the Association, the meeting and vote of Members or persons entitled to vote on their behalf may be dispensed with if all such persons who would have been entitled to vote upon the action of such meeting if such meeting were held shall consent in writing to such action being taken.

Section 9. Order of Business. The order of business at annual Members' meetings and, as far as practical, at other Members' meetings will be:

- A. Election of Chairman.
- B. Roll call.
- C. Proof of notice of meeting or waiver of notice.
- D. Reading of minutes of prior meeting.
- E. Officers' reports.

- F. Committee reports.
- G. Elections.
- H. Unfinished business.
- I. New business.
- J. Adjournment.

ARTICLE VI

NOTICES

Section 1. Definition. Whenever, under the provisions of the Florida Statutes, the Declaration, the Articles of Incorporation or these By-Laws, notice is required to be given to any Director, officer or Member, it shall not be construed to mean only personal notice, but such notice may be given in writing by mail by depositing the same in a post office or letter box in a postpaid, sealed envelope, addressed as appears on the books of the Association. Any such notice and any notice of any meeting of the Members, annual or special, need not be sent by certified mail, except as otherwise provided by statute, the Articles of Incorporation, these By-Laws or the Declaration.

Section 2. Service of Notice - Waiver. Whenever any notice is required to be given under the provisions of the Florida Statutes, the Declaration, the Articles of Incorporation or these By-Laws, a waiver thereof, in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, shall be deemed the equivalent thereof.

Section 3. Address. The address for notice to the Association is 3880 Coconut Creek Parkway, Coconut Creek, Florida 33066 or at such other place as may be subsequently designated by the Board of Directors.

ARTICLE VII

FINANCES

Section 1. Fiscal Year. The fiscal year shall be the calendar year.

Section 2. Checks. All checks or demands for money and notes of the Association shall be signed by any one (1) of the following officers: President, Vice-President, Secretary or Treasurer, or by such officer or officers or such other person or persons as the Board of Directors may from time to time designate. The Board of Directors, by resolution, may require more than one (1) signature.

Section 3. Fidelity Bonds for Officers. The Treasurer and all officers who are authorized to sign checks, and all officers and employees of the Association, and any contractor handling or responsible for Association funds shall be bonded in such amount as may be determined by the Board of Directors. The premiums on such bonds shall be paid by the Association. The bond shall be in an amount sufficient to equal the monies an individual handles or in which he has control via a signatory or a bank account or other depository account; however, notwithstanding the foregoing, the management firm, if any, under the terms of a management agreement, as to funds in its possession and/or control, shall determine, in its sole discretion, the amount of the bond and who is to be bonded, if any, among its employees.

ARTICLE VII

CONVEYANCE TO ASSOCIATION

The Association shall be obligated to accept any and all deeds of conveyance delivered to it by Declarant, which deeds convey title to Common Property, Recreational Facilities, Residential Common Property and/or Commercial Common Property.

ARTICLE VIII

ASSESSMENTS

Assessments shall be levied and collected in accordance with the provisions of the Declaration.

ARTICLE IX

AMENDMENT

A. Proposals for amendments to these By-Laws which do not conflict with the Declaration or the Articles of Incorporation may be made by a majority of the Board of Directors or a majority of the Members. Such proposals shall be in writing and shall be delivered to the President who shall thereupon call a special meeting of the Members not less than forty-five (45) days nor more than sixty (60) days following his receipt of the proposed amendment. Notice of such special meeting shall be given and posted in the manner provided in the By-Laws. An affirmative vote of three-fourths ($3/4$) of the votes cast at a duly called and held meeting of the Association and an affirmative vote of two-thirds ($2/3$) of the Board of Directors shall be required for approval of the proposed amendment.

B. Any Member may waive any or all of the requirements of this Article as to the submission of proposed amendments to these By-Laws to the President or notice of special meetings to vote thereon, either before, at or after a membership meeting at which a vote is taken to amend these By-Laws.

C. Notwithstanding the provisions of Paragraph A above, no amendment may be made to these By-Laws which would in any way prejudice or impair any right or privilege of a Class C Member without the affirmative vote of three-fourths ($3/4$) of the Class C Members or persons entitled to vote on their behalf.

ARTICLE X

DECLARANT CONTROL OF ASSOCIATION

Notwithstanding anything herein to the contrary, until January 1, 1995 or an earlier date as the Company may decide, the Company shall have a total number of votes equal to not less than the number of votes cumulatively held by all other Members, plus one (1), providing it with a majority of the vote of the membership. Upon expiration of the stated period, the Company shall

continue to possess voting rights incident to ownership as described in herein.

ARTICLE IX

CONSTRUCTION

Wherever the masculine singular form of the pronoun is used in these By-Laws, it shall be construed to include the masculine, feminine or neuter, singular or plural, wherever the context so requires.

Should any of the provisions of these By-Laws be void or be or become unenforceable at law or in equity, the remaining provisions of this instrument shall nevertheless be and remain in full force and effect.

The foregoing were adopted as the By-Laws of THE TOWNSHIP COMMUNITY MASTER ASSOCIATION, INC. at the first meeting of its Board of Directors.

SECRETARY

APPROVED:

PRESIDENT